

LAW LESSONS

No. 6

Damien Viguier

THE RAVENNA CONTROVERSY

JEW, INCEST, THE ANTICHRIST

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DAMIEN VIGUIER

THE RAVENNA CONTROVERSY

THE ANTINOMIAN ORIGINS OF SEMITIC AND
WESTERN FAMILY STRUCTURES

LESSONS IN LAW No. 6

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VXORI

FOREWORD

What on earth was I thinking? Céline Béguin¹ had just finished a presentation on the inheritance rights of the surviving spouse – rights which, as we know, have steadily increased since their introduction by the Civil Code – and, as it was time for comments, the professor first asked the audience for their views. I then raised my hand to ask for the floor, which he granted me immediately; I stood up whilst taking a deep breath, and addressing the audience I stated the following opinion: that recognising inheritance rights for the surviving spouse constituted *heresy*. And so, one morning in the year of our Lord 1999, in an old lecture theatre on the Place du Panthéon in Paris, I entered the Ravenna controversy. My audience was in shock. It was not so much that I had used the word ‘heresy’, for it is customary for lawyers to borrow

¹ Currently a lecturer at the Faculty of Law in Le Mans.

from religious vocabulary, if only to label as ‘laypeople’ all those who have not followed their course of study. But, articulating my point in the tone of a *fatwa*, I had put too much passion into my speech. The lecturer, Laurent Leveneur², at the DEA seminar³ in which I was participating, attempted to explain this—perhaps too hastily—by drawing a distinction between lineage and household. Whether husband or wife, the surviving spouse does not belong to their partner’s lineage, and if inheritance were to be passed on solely through that channel, they would be excluded from it. However, over the centuries, the couple has come to take precedence over the extended family, and inheritance laws reflect this development.

In truth, I was myself then under the spell of my discovery of a small book, edited by Pierre Legendre⁴. My attention had been drawn to Legendre ten years earlier, whilst reading the *Revue trimestrielle de droit civil*⁵, and he was partly the reason for my presence in Paris⁶. This little book contained a bilingual edition of a letter from a certain Pierre Damien, who described himself as a monk-sinner (*peccator monachus*). Peter Damian lived in northern

² Professor at the University of Paris II Panthéon-Assas.

³ *Diplôme d’études approfondies* (DEA), now known as a *Master II*, the fifth year of study and the first year of the doctoral programme, which normally leads to the defence of a thesis within three or four years.

⁴ Pierre LEGENDRE, *Le dossier occidental de la parenté. Textes juridiques indésirables sur la généalogie. Leçons IV, suite.*, Paris, Fayard, 1988, 230 pages. The book, written with Anton SCHÜTZ, Yan THOMAS and Marc SMITH, undoubtedly reflected the work at the time of the *European Laboratory for the Study of Filiation*.

⁵ LEGENDRE, ‘Revisiting the Foundations of Civil Law’, *Rtd civ* 1990, 639–644.

⁶ I had been attending his lectures at the École Pratique des Hautes Études since 1994.

Italy in the 11th century AD. Born in Ravenna⁷ in 1007 (the date 998 is sometimes cited), he had studied and then taught rhetoric there, as well as in Faenza and Parma. It seems that in 1035, at the age of twenty-eight, he withdrew from the world to become a hermit. He joined a Camaldolese monastery at Fonte Avellana. In 1043, he was appointed prior there. But from time to time he left his retreat to join Anselm of Lucca and Hildebrand of Soana, both of whom would later become popes—the former as Alexander II, the latter as Gregory VII—as one of the most ardent advocates of a *reformatio* of the Church. Step by step, he fought for priestly celibacy, against homosexuality and against simony. Advisor and legate to several popes, he was appointed Cardinal-Bishop of Ostia in 1057. His letter, **De parentelae gradibus** (On the degrees of kinship), is thought to date from 1046⁸.

Be that as it may, first a scholastic, then a monk and a politician, Peter Damian writes that having recently visited Ravenna, he found the city on the brink of collapse, shaken by a controversy in which he intervened vigorously. Envoys from Florence and the city's *sapientes*—perhaps jurists, in any case experts in the text of Roman law that was being invoked—were debating there at length over whether or not the canonical prohibition of seven generations was being violated, and thus whether incest was being committed, by

⁷ Ravenna is a city on the Adriatic coast situated between Venice and Florence, not far from Bologna.

⁸ It is in fact addressed to John, Bishop of Cesena, and a certain John II was bishop there from 1042 to 1053 – though the date 1060 is sometimes given, which would place it during the pontificate of Nicholas II, perhaps just before a famous decretal by ALEXANDER II on the same subject.

marrying one's *first cousin once removed*. Peter Damian, who gives an account of the entire controversy, says he reported the traditional view that there is a correlation between the right of succession and the prohibition against incest, that one right excludes the other—the right to succeed excluding the right to marry—and that a wife is necessarily someone who cannot inherit and from whom one cannot inherit either. It was this principle of a connection between incest and succession that struck me. Moreover, as I discussed it afterwards with Stéphanie Autier⁹, herself a student of Leveneur and curious to know the source from which I might well have drawn my remarks, she too acknowledged the power of the concept.

If today, twenty years on, I am speaking out once more, and this time within what Eugenio d'Ors called 'the high assembly'¹⁰, it is to begin by putting the casuistry of incest back in order. This fulfils one of the age-old missions of jurists, and is already an end in itself. But the value of the casuistic approach here lies in providing a technical gateway to the anthropological analysis of kinship systems. This is the primary objective of this work. This anthropological perspective enables us to situate, with the requisite precision, the place of the Western family within the broader spectrum of kinship systems observable across the globe, from the standpoint of its structure. This gives us a measure of the distance separating the

⁹ Now a magistrate, deputy public prosecutor at the Paris Regional Court.

¹⁰ Eugenio D'ORS, *Au grand Saint Christophe*, Paris, Corrêa, 1932, p. 11.

West from other societies, both primitive and civilised. And when viewed against primitive systems, the West appears as an anomaly. It is characterised by absolute exogamy, which contrasts with the equally anomalous opposite of Eastern endogamy. This distinctive feature of the Western family is the product of history. The controversy that unfolded in Ravenna in the 11th century may well have been the pivotal moment in a development spanning several millennia. It was then that the prohibition against incest took on an excessive scope.

And finally, as a lawyer specialising in civil law, notarial law and canon law, I would like to fan the flames of this controversy. At the foundation of the right of succession lies kinship. This is the universally accepted premise. Kinship, the second premise, prohibits marriage. This is our prohibition against incest. It is therefore understandable that for a long time in the West it was impossible to admit the surviving spouse to the inheritance. This is not the case in the Jewish, Christian or Muslim East, where the spouse's inheritance rights were recognised long before Islamic times. This is consistent, for in the Semitic world close kinship does not prohibit marriage. But my thesis is that there is nonetheless a Western catastrophe, and that it can be explained by a fundamental error in reasoning. This is, in a way, my response to Pierre Damien, to whom I pay my respects. And I hope that the reply will not have to wait another thousand years.

This book is published as part of the '*Leçons de droit*' series. It continues the line of inquiry begun by the first volume, which appeared five years ago. As early as 2008, having completed my thesis on joint ownership of an estate, I set about exploring in greater depth the links between parentage, marriage, incest and inheritance. This dates back to conversations I had with Cyril Grange at Paris City Hall. The text of my 'Lessons 1' already owed much to discussions with Alain Viguier, René Perriot and Renaud Almeras. It is partly thanks to the latter's comments that I resolutely focused my research on incest. This was followed by a series of lectures on the family organised by the association Égalité et Réconciliation: Lille on 25 June 2016, Nantes on 28 October 2017, Lyon on 12 May 2018 and Bordeaux on 15 September 2018 (the latter two entitled '*The Western Crisis of the Family in Europe and the Maghreb*'). In the meantime, the same association had introduced annual courses. From the start of the 2017–2018 academic year, and again in 2018–2019, my course on civil law, taught in Grenoble, Lyon, Geneva and Paris, covered marriage and parentage. This is why I wish to express my gratitude to the members of this association, from its president, Alain Soral, and its secretary, Julien Limes, right down to the leaders and activists of its local branches. My understanding of these matters is the result of these conferences and this course, that is to say, of the presence and participation of the audience and the students. There exists around Égalité et Réconciliation a whole network of supporters that is extremely dynamic and conducive to research (the hostile environment is no less stimulating). In this regard, I must also

mention my lecture in Vichy on 20 September 2018, hosted by my friends at Civitas.

The author would like to extend special thanks to Béatrice and Christophe. It is to them that we owe the conditions which made possible, at the start of this winter, the decisive writing of the manuscript for **The Ravenna Controversy**. As for the proofreading, I benefited from a veritable scientific committee comprising Jean le Hussard, Alexandre, Gérard Gain and Bruno. I owe a large part of my bibliography to the latter. And I must not forget that if this book has seen the light of day, it is thanks to the team at Kontre Kulture, in particular its editorial advisor, Anne Lucken, with a special mention for the graphic designer, for this volume which contains more than seventy-five diagrams.

The visualisation of family relationships in the form of diagrams (or *stemmata*) to represent individuals and the relationships between them is a practice dating back to antiquity¹¹ ; it was widely employed by medieval jurists¹² and remains common practice, whether in law¹³ , anthropology or the social sciences in general. This exercise should not be regarded as insignificant¹⁴ . Not

¹¹ THOMAS, in *Le dossier occidental*, op. cit., p. 32.

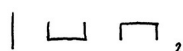
¹² Christiane KLAPISCH-ZUBER, *L'ombre des ancêtres. Essai sur l'imaginaire médiéval de la parenté*, Paris, Fayard, 2000 (50 illustrations).

¹³ See Jacques BERRIAT SAINT-PRIX, *Cours de législation*, vol. I, year XI (1803), pp. 3–4.

¹⁴ Jack GOODY, *La raison graphique*, op. cit., pp. 186 and 188–189, and CORBIN, op. cit., pp. 25–26, note 3 on p. 71 and note 27 on p. 73.

only is it essential to understanding the subject matter, but it is in fact integral to it and constitutes an indispensable stage in the initiation into the discipline.

The diagrams I present to the reader follow the most commonly adopted code¹⁵. People are represented by symbols, which vary according to gender – a square for either male or female, a triangle for the male and a circle for the female (Figure 1) – and the relationship between these people is depicted by a line connecting them – a vertical line for *parentage*, a horizontal line passing above for *siblinghood*, or a horizontal line situated below the people for *marital relationships* (Figure 2).



There is another method which, conversely, represents people by lines and their relationships by dots, but this has so far remained indecipherable to us¹⁶.

We find the figurative method preferable to other grids that are too abstract. Thus, one often encounters a code made up of letters and numbers, arrows and symbols. Used in an algebraic manner, this seems to us to be more a matter of cryptography than

¹⁵ In detail, it is precisely the one adopted by THOMAS, in *Le dossier occidental*, op. cit., p. 32, and Norbert ROULAND, *Anthropologie juridique*, Paris, PUF, 1988, p. 183, which is more readable than that given by LEGENDRE, *L'ineestimable objet de la transmission. Leçons IV*, Paris, Fayard, 1985, p. 381.

¹⁶ Code used by Marcel GRANET and developed by François HÉRAN, *Figures de la parenté*, Paris, PUF, 2009. It is found in Émile BENVENISTE, *Le vocabulaire des institutions indo-européennes. I. Économie, parenté, société*, Paris, Minuit, 1969, p. 229, who is said to have borrowed it from Jacques BERTIN, *Sémiologie graphique*, Paris, Mouton-Gauthier-Villars, 1967, pp. 269 ff.

pedagogy¹⁷. On the other hand, it can be illuminating to use numbers and letters in diagrams to locate the individuals. Each letter of the alphabet then represents a clan; in a patrilineal system, a capital letter represents a man and a lower-case letter a woman (the reverse in a matrilineal system), and the numbers represent the generations. But in specific cases, whether real or imaginary, it is surnames and first names that may be used. Finally, I believe I have taken care to ensure my reader's comfort by resolutely avoiding any use of abbreviations for basic kinship terms (F for father, S for son, etc.).

D. V.

ANNECY.

18 August 2020

¹⁷ Used by GRANET, **La civilisation chinoise**, Paris, La renaissance du livre, 1929, note 1, p. 247, and extensively in **Catégories matrimoniales et relations de proximité**, Paris, Alcan, 1939, 254 pp.; the same code is found in LÉVI-STRAUSS, BENVENISTE and their respective followers.

PART ONE

INTRODUCTION

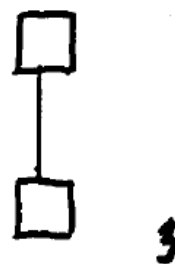
CHAPTER ONE

BASIC FAMILY RELATIONSHIPS

KINSHIP

The most fundamental element of our study, the cornerstone upon which the entire family structure is built, is the case of two people directly linked by a genealogical relationship, which we shall refer to, in the broadest sense, *as parentage*. There can be no simpler relationship, and from this basic relationship alone it is already possible to speak of a family, a *nuclear* family – and, of course, a single-parent family. In any legal context, it is always necessary to specify clearly which person is being referred to in order to define another. In relation to the one who has begotten, the other is their child. And in relation to the latter, the former is their parent *in the strict sense*. Although one might speak of a reciprocal identification between parent and child, this relationship, which we refer to as filiation, is distinguished by its unequal and hierarchical nature. In legal terms, we speak of *a line*, of *an ascendant* for the parent and *a descendant* for the child. Through

language alone, we therefore conceive of this line as vertical, and



place the parent above the child (Figure 3).

As a relationship between two people, filiation is an indivisible whole. I would say it is a relationship of the highest order. This is a tribute I pay to the great Roman jurist Paul (160–230). In his *Treatise on Degrees and Affinity and Their Respective Names*, translated by one of my teachers, he progressed in complexity simply by following the order of the Roman degrees. In a direct line, parent and child are related to one another by one *Roman* degree, and one *canonical* generation is also counted.¹⁸ . He began with the first-degree relationship, which unites two people, then, with the second degree, three people, and so on¹⁹ . The anthropologist Radcliffe-Brown was not far from this logic when he classified kinship

¹⁸ Hereafter we shall always specify it in this way to clearly distinguish between the two modes of computation. On the various modes of kinship computation, the historical competition between which is the best-known aspect of our Controversy, see *below* Chapter XXII ‘The Conflict of Computation’.

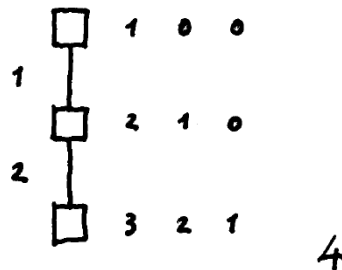
¹⁹ The **Libro singulari de gradibus et adfinibus et nominibus eorum** appears in the **Digeste** 38.10.10; THOMAS provided a translation and commentary on it in **Le dossier occidental de la parenté**, op. cit., pp. 35 ff. – note 14, pp. 99–101, where he notes several orders of presentation. Another book by PAUL is found in the *Lex romana Visigothorum* (Alaric’s Breviary) and contains a short treatise *on gradibus*: PAUL, *Sentences*, 4.11 (in Paul-Frédéric GIRARD and Félix SENN, *Textes de droit romain*, Vol. I, Paris, Dalloz, 1967, pp. 335–337; in *Le trésor de l’ancienne jurisprudence romaine*, Metz, 1811 (reprinted by Scientia Verlag, Aalen, 1979), pp. 232–234; ISIDORE OF SEVILLE included this short treatise in his *Etymologies* 9.5, and from there it was elevated to canonical status, appearing first in the *Panormia* OF YVES OF CHARTRES 7.90 before concluding its journey through the centuries in the Decree of Gratian, Cause 35, Question 5, Canon 6.

relationships according to a progressive counting of ranks²⁰. Let us bear this idea in mind, as it is useful for identifying cases, even if, to organise our subsequent progression, I believe it is more faithful to the casuistic tradition inaugurated by the *veteres* to seek a somewhat more dogmatic approach. Let us continue. Immediate and direct between two people, the kinship relationship *in the broad sense* can only be one of filiation. It is therefore the only one of its rank. There are no others; it is its own kind. It is therefore a *sui generis* relationship. It is also a *primary* relationship, in that all other kinship relationships are merely derivatives of it.

Second-order kinship relationships therefore involve an additional person. They consist of three people and two filiation relationships. There are three types: the direct line, siblinghood and conjugality. As regards the direct line, this is quite simply a multiplication of filiation relationships that link together vertically, one after the other, from person to person. We thus move beyond the nuclear family to the extended family. Yet the nature of the relationship does not fundamentally change. Occupying the middle position, the third person will be both descendant and ascendant, child of one and parent of the other. And at the lower end of the line, the child will, through the mediation of this third person, be related to their grandparent, and conversely, the latter will be related to

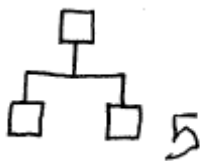
²⁰ Alfred Reginald RADCLIFFE-BROWN, 'The Study of Kinship Systems', *Journal of the Royal Anthropol. Inst.* 17 (1941), p. 2 (quoted by Claude LÉVI-STRAUSS, *Structural Anthropology*, Paris, Plon, 1st ed. 1958, p. 61, 2nd ed. 1974, Agora series, 2003, p. 67).

them as to their grandchild. They are two Roman degrees apart, and the grandchild forms the second canonical generation (Figure 4)²¹.



Thus – at the third rank with four people, and so on – the generations follow one another²².

One can also consider the case of filiation, still at the second rank with three people, but branching off from the intermediate person. And first from the ascendant. Two children share the same parent. We speak of two lineages. Through their common parent, these children are in a collateral relationship, hence the term ‘collateral branch’ or ‘collateral line’. Here too, the language dictates a visualisation – if not the reverse (Figure 5).



Such is the fraternal relationship (sometimes incorrectly referred to as ‘germanity’), which constitutes the second

²¹ We shall go into further detail at the very end of this work, but let us note that there are four modes of calculation and that, with the direct line, they are already out of step.

²² The grandparent is the aïeul, *avus* in Latin; then a suffix is added: in French *bi*, *tri*, *quadri*, *quinti* etc., in Latin *pro*, *ab*, *at*, *trit*; the same applies to the grandchild, *nepos* in Latin (no equivalent in French).

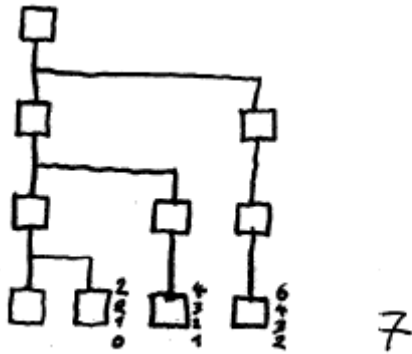
major fundamental relationship of kinship. The specific nature and status of this relationship is ambiguous. For here, of the two filiation lines that converge, one tends – perhaps through the substitution of one of the children for the common parent – to dominate the relationship. Within a group of siblings, one can distinguish, in order of birth, the eldest and the second-eldest, the younger or the youngest. Cases of twins are, moreover, noteworthy (Esau and Jacob, who would become Israel; Remus and Romulus); nevertheless, whether in the biblical narrative or in Roman jurisprudence, the order of birth is always taken into account.

Here again, it suffices to add a third generation to move beyond the nuclear family and into the extended family, and, if the relationship is collateral, to consider the relationships between uncle or aunt and nephew or niece, cousins, etc. (Figure 6).



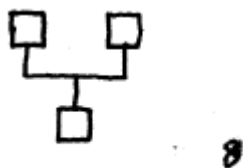
In a second-degree relationship, involving three people, the collateral relatives are *two* Roman degrees apart from one another, since from either child one must count one degree to go back to the parent, and a second to go down to the other child. By contrast, in canonical computation, the collateral relatives belong to the same generation, the first in our example. Let us bear in mind from the outset this divergence in the calculation of collateral

kinship. And note that between collateral relatives of the same generational cohort, the figures diverge considerably across the four modes of computation then in use in the 11th century (Figure 7)²³.



THE ALLIANCE

Finally, the third and last major fundamental relationship in kinship is where two relatives may have the same child in common. Here, the intermediary third party around whom the relationship branches is the descendant. Thus, we have two ascendants for a single descendant. The intermediate third party, the child, therefore has two parents who form, as it were, two parental branches (Figure 8). Such is conjugal relationship or alliance.



A variation on the case of filiation, conjugal relationship is in truth distinct from lineage kinship (filial and fraternal ties). For here there is a change in nature. Not that the two

²³ See *below*, Chapter XXII, 'The Conflict of Computs'.

allies are in a relationship constituted by anything other than filiation; quite the contrary, the allies are precisely joined through the mediation of the child, but it is the particular structure of the relationship that creates a relationship of a new kind which is not, strictly speaking, kinship.

It is true that I am developing a particular perspective on the law of parentage here, in which a marital relationship—a relationship between two people—can only be conceived in relation to a third party. It is the establishment of dual parentage which, in my view, legally creates the marital relationship. I should point out that this third party, the child, does not need to actually exist. It is sufficient that, in a legal or de facto relationship, the child is involved, even if only potentially, for us to be able to speak of a union or a marital relationship. In Rome, the purpose of marriage was to establish a filiation, and a *legitimate* filiation, with the father. As for marriage, it is certainly true that its *raison d'être* still lies in shared parentage, or in other words, in the co-parenting of the child to come. And one might consider that what applies to marriage applies *mutatis mutandis* to sexuality, even if this is less obvious. But it seems to me that sexuality, whether outside or within marriage – where it has its legitimate place – also implies, at least potentially, the conception of a child. This is easily understood when it presents, at the very least, the chance – or, depending on one's perspective, the risk – of being procreative. The connection with parenthood is then clear. It is somewhat more difficult to conceive of when sexuality could not reasonably be, or would specifically not wish to be,

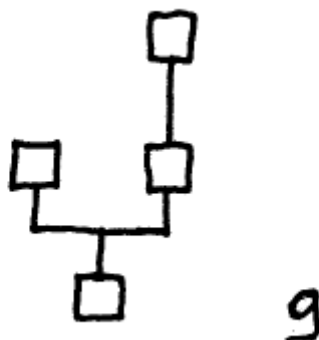
directed towards procreation. The old tendency to separate sexuality – the pursuit of pleasure – from procreation would, moreover, point in this direction. Once defended in the name of the Christian ascetic ideal²⁴, this distinction has become more pronounced in our times, with, on the one hand, the expansion of reproduction without sexuality – medically assisted reproduction – and, on the other, – in a context of widespread promotion of immorality²⁵, – sexuality without reproduction. Nevertheless, fundamentally, all sexual relations, whether within or outside marriage, whether infertility is chosen or imposed, nonetheless retain the instinct for reproduction as their fundamental driving force. As such, it evokes, at the very least, parentage. This is the meaning of same-sex marriage. In short, in our view, whether or not it simulates procreation, any union that comes close, however remotely, to a conjugal relationship presupposes, by definition, the at least potential presence of a child, whether in the form of a risk, a desire or an unattainable fantasy. In any case, the relationship between spouses is therefore not direct and immediate; it always involves the mediation of the child. And it is indeed a unique relationship that is formed. For, and I emphasise this point, the alliance is not, strictly speaking, a kinship relationship.

²⁴ Asceticism introduced even into marriage, condemning fruitless carnal intercourse, cultivating fidelity and modesty in relations directed exclusively towards reproduction.

²⁵ Coitus *interruptus*, anal, oral, intercrural or other forms, or practised in cases of the partner's constitutional or situational infertility (male or female prepuberty, and, for women, the time of the ovulatory cycle or the menopause), the use of contraception, sterilisation, or even abortion.

Although each is, *strictly speaking*, the parent of the same child, the two direct allies are not, for that reason, parents to one another²⁶.

Whilst the spouses are not, strictly speaking, parents to one another, it is precisely by virtue of their alliance that they themselves are related to the other's parents, and, conversely, that any person is related to the spouse of their own parent (Figure 10). However, there is a tendency to equate this type of relationship with kinship, referring to it as marriage *in the broad sense*, or more specifically as affinity (*adfinitas*). This is merely an extension of the marital structure, not a new fundamental relationship. Affinity arises from the third degree onwards, since the relationship must at least combine a new filiation with the alliance, and in this case involve four people: the child – who always acts as the link – their two parents and another parent of one or the other, for example the



child's grandparent.

Regarding the calculation, it should be noted that there is no genealogical distance between the two parents of the same child.

²⁶ Maurice GODELIER discusses, in relation to filiation and alliance, two components of kinship: **Métamorphose de la parenté**, Paris, Fayard, 2004, pp. 101–196.

The biblical conception explains this by the fact that the spouses become one flesh²⁷ . But according to the perspective I subscribe to, there is another explanation. This is that each spouse can perfectly well act as a substitute for the other and take their place within their family tree. The relationship of affinity can always be viewed from the perspective of either end of the relationship. Thus, to measure the distance separating me from my spouse's relative, I need only incorporate the latter's position within their family tree and adopt the degree of kinship separating them from their parent. Conversely, for my relative's spouse, I need only place that spouse in my own family tree in the place of my parent. By expanding the spouse's kinship, we explore the various cases of affinity. This casuistry quickly becomes complicated by relationships between the different relatives of each spouse (relatives of relatives' relatives), with the spouse of the spouse's parent, and with the spouse of the spouse's previous spouse. Whilst allowing ourselves the occasional brief digression, we shall not systematically delve into these intricacies. We shall confine ourselves to the two basic cases of the spouse's relative and the relative of the spouse.

²⁷ Genesis, 2:24.

CHAPTER II

THE DISTINCTION BETWEEN THE SEXES

All human societies up to our own have always and everywhere distinguished, a priori on the basis of the male or female sex of the parent, between the father and the mother. The distinction between the sexes is a universal fact that Morgan was the first to highlight²⁸. The category of conjugality has long been recognised by anthropologists as the union of man and woman. Radcliffe-Brown makes it one of his three fundamental relationships, and Murdock the first of his eight typical relationships²⁹. Nevertheless, in recent times some in the West have sought a genealogy that is not only gender-neutral with regard to the parent's sex, but better still, indifferent to any genetic reference. In other words, there is a

²⁸ Lewis Henry MORGAN, *Primitive Society* (1877), Paris, Anthropos, 1971, p. 51.

²⁹ RADCLIFFE-BROWN, *ibid.*; George Peter MURDOCK, **Social Structure** (1949), Paris, Payot, 1972, p. 23.

tendency to remove the words ‘father’ and ‘mother’, ‘paternity’ and ‘maternity’ from the vocabulary, replacing them with the term ‘kinship’, or, better still, ‘parenthood’. Under this umbrella term, procreation is conceived as purely symbolic, and the parent-child relationship is reduced to mere intention—a project capable of taking various forms of expression, open to innovation and indifferently monistic, dualistic or pluralistic³⁰.

However, it is still widely taught that, according to current and established scientific data, the embryo arises from the fertilisation of a female gamete – the oocyte – by a male gamete – the spermatozoon, – and that genetically the new individual derives from both, even though we do, of course, hear talk of cloning and various genetic manipulations that could give rise to new configurations. Let us make it clear, incidentally, that the legal scholar is not called upon to give an opinion on the possibility, biological feasibility or sociological probability of a case. The lawyer’s sense of propriety has never held back scientific progress. Lawyers, moreover, would be wrong not to engage in anticipation (in the sense of prediction and in the sense of science fiction³¹),

³⁰ Single-parent families, two-parent families designated as Parent 1 and Parent 2, or multi-parent families.

³¹ See our very first mentor, Laurent HOCINE, *Consultation and Legal Logic in Private Law through Method and Example*, Grenoble, 1983, p. 3, note 1; I quote in full the extract from this now out-of-print work, based purely on a theoretical hypothesis: ‘*This method is strongly criticised by some, in the name of realism. It is sometimes pure conformism. American lawyers do not hesitate to play this game: thus, based on experiences with in vitro fertilisation – (test-tube babies) – they have already constructed all manner of academic hypotheses regarding potential conflicts of paternity or maternity. The day a dispute arises, their arguments will be ready. Moreover, scientific and technological progress means that reality very often overtakes fiction.*’ It is clear that we did not wait for Jürgen HABERMAS, *Law and Democracy: Between Facts and Norms* (1992), Paris, Gallimard, 1997, and on this point I had drawn on one of his translators, Christian

especially since it is not uncommon for their ingenuity to have anticipated scientific achievements³². In the meantime, it is of course understood that every child has two parents, that for the time being they have only two and at least two, and that they are of different sexes. But what people tend to demand today in the West is, more precisely, in the name of parentage conceived as a cultural relationship constructed by society, the freedom to conceive of it *in law* independently of the natural biological fact.

The originality of this ultra- or postmodernist attitude does not, in my view, fundamentally lie in this freedom taken by culture over nature. For in itself, this is nothing particularly new. There is no human society, whether civilised or primitive, that is satisfied with natural reality alone. But here, in my opinion, if we wish to make progress in our critical analysis, we must distinguish between two questions. There is the general question of the artificiality of law and its relationship with natural reality, and there is the specific question of the artificial nature of the distinction between the sexes.

Regarding the first point, the union of male and female, with a view to procreation and subsequently the protection of the newborn, is a fact of nature that can be observed in most species of the animal kingdom. But in human society, it is also a cultural

BOUCHINDHOMME, whose seminar I attended for a time at the École Alsacienne.

³² Legal technology is capable of anticipating and imagining scenarios that may well prove realistic one day; experience confirms this. See Damien VIGUIER, *From the Clan Family to the Homosexual Parental Couple*, Saint-Denis, Kontre Kulture, 2015, pp. 70–71.

phenomenon manifested through ceremonies and rites—diverse and varied across societies—of betrothal and marriage, through which father, mother and child take their place within the kinship framework thus established. The rites of union are further extended and complemented by the recognition and integration of the newborn into the family. In our societies, this is reduced to a declaration, made within five days of the birth, recorded in a register kept by the registrar of the place where the event occurred. Even in cases of non-marital births, the parent-child relationship—referred to as ‘natural’—must be established, either through an act of recognition or, for the mother, by registration at the time of birth; yet this relationship is no less legally binding than the legitimate parent-child relationship with a child born in wedlock. This superimposition of the legal realm upon the factual realm is always liable to result in a discrepancy between the two. In the case of marriage, by virtue of the presumption of paternity, the husband of the child’s mother is the legitimate father, even if he is not in fact the biological father. The same applies outside marriage when the person who acknowledges the child is not the biological parent. Moreover, there are also children born to an unknown father or whose mother – due to abandonment or ‘anonymous birth’ – is not declared.

These are all instances that may already reveal the gap between fact and law, and where the latter may appear to be a mere *construct*. Yet, however real this discrepancy may be, it must be acknowledged; and for that to happen, we must have a conception of the dual nature of truth, and an independent approach to natural

truth that serves as a standard of reference and enables us to judge it. It is in this respect, however, that civilised societies have distinguished themselves from primitive societies. The latter seem to be unaware of any duality, wishing to recognise only a single reality: that of ritual. Whilst in primitive societies, as in our own, nature is always perceived through the prism of culture, in the former there is no awareness of the autonomy of law. In its non-scientific state, thought perceives only the uniform fabric of culture and law that it has erected before nature. This is why one has spoken of an enchanted world. Ritual is as much legal as it is magical. It establishes all truth, including the truth of nature. Societies become civilised by, on the contrary, recognising the fundamental reality of the duality of nature and culture, and, far from pretending to ignore it, by openly embracing it. The recognition of the distinction between fact and law results in a form of cultural crisis that sees the separation of law and the science of nature. In other words, there is a movement of double separation. On the one hand, the world splits into nature and culture; on the other, the scientific gaze begins to assert its independence from that of society, which, for its part, is gradually becoming aware of its own autonomy. This alone is capable of establishing and even instituting error, fraud and legal fiction—concepts that primitive beliefs could not tolerate.

It is no coincidence that this laborious realisation was first forcefully expressed by a Greek tragedian of the 5th century BCE. *Oedipus Rex*, the play by Sophocles (496–404), presents us with a clear and distinct case of a duality of truth between raw fact and

pure law. A child is born in Thebes to King Laius and his wife Jocasta. His parents do not perform the rite of recognition³³. On the contrary, they have the child exposed at birth. But this is merely an attempt at infanticide, for he is ultimately taken in by another couple, Polybius, King of Corinth, and his wife Merope. Oedipus is not an adopted child. His Corinthian parents acknowledge him as their own according to the rites. We therefore have here a radical divide between two truths. Jocasta is the mother by virtue of the unknown genetic fact. Merope is secretly the mother solely by virtue of the law. This, in my view, constitutes the whole ‘complexity’ of Oedipus’s situation. Fleeing the risk of legal incest with Merope, in his ignorance he commits it de facto with Jocasta. It is worth noting that, between culture and nature, it seems clear that in Sophocles’ play the decisive reference point is still nature—in the eyes of the gods, at any rate—since it is solely on this that the incest is based.

The discrepancy between legal truth and natural truth may be ignored or known, by everyone or by only a few. When known, it may still be buried, as if disguised under the guise of the law, but once uncovered, it may be either accepted as such or fought against in favour of natural truth. Within a legal system that bases the law on certain factual elements, legal actions are available, on the one hand to annul the erroneous parent-child relationship – disavowal of paternity which overturns the *pater is est* presumption,

³³ Even in the case of marriage, there are rites of recognition: Georges BARRAUD, ‘Childcare and eugenics among the Greeks’, *Bulletin de l’association Guillaume Budé* 1 (1954), pp. 70–76; Florence GHERCHANOC, ‘The filial bond in classical Athens: Practices and actors in its recognition’, *Métis* 13 (1998), pp. 313–344.

contestation of paternity or maternity – and on the other hand to establish the true biological link – determination of paternity or maternity. However, as the law reasserts itself over the facts, the discrepancy between natural truth and legal truth may also be recognised, intended and asserted, not – as in the previous scenarios – in the form of more or less acknowledged fraud, but within the framework of the institutions.

In French law, since a reform in 1966, this is the peculiar case of full adoption. The adoptive parent-child relationship created between the adopter and the adoptee abolishes and replaces any pre-existing parent-child relationship between the child and their legitimate or natural parent. This is the difference from simple adoption, which juxtaposes the two parent-child relationships. With adoption in general, the relationship between natural truth and legal truth is ambiguous. Whilst in the case of legitimate or natural parentage it is presumed that reality conforms to the legal status, in adoptive parentage the thrust of the presumption tends to be reversed, since one starts from the idea that reality does not conform to it – which, incidentally, may very well not be the case (it is not uncommon for the genetic parent to adopt their child³⁴). Nevertheless, one should not overemphasise this reversed presumption, as adoption remains an imitation of legitimate or natural parentage, and a form of official deception.

³⁴ A classic issue; see Jean CARBONNIER, *Droit civil*, Thémis series, under the heading '*État des questions*' in the section 'La jurisprudence' and then under 'La filiation adoptive' (multiple editions and variations in volume numbering).

These situations of disharmony between law and fact have therefore been on the rise for several decades and are set for a bright future, thanks to (or because of) advances in medicine and biology, with the practice of ‘donating’ sperm, oocytes or even embryos. These practices are becoming more widespread and are struggling to find their place within the institutional framework. Moreover, in the case of surrogate mothers, it is the very status of the biological truth of reference that is being challenged. As long as the production of the egg, gestation and childbirth were inseparable, it was still obvious that the child’s biological mother was the one who gave birth to it. Whilst biological paternity depended on sexual intercourse, the mother, it was said, was certain. The advent of genetic testing has, on the contrary, reinforced the certainty of the link between the child and its father, whilst on the question of biological motherhood—which clings, in a sophisticated manner, to the act of giving birth—doubt has been sown in people’s minds due to embryo transfer. It should, however, be obvious that, in cases where the egg comes from a third party, medically assisted reproduction allows a woman to carry and then give birth – the two things are not yet separable – to a child who is not genetically hers. The surrogate mother is, in a sense, an antenatal foster mother, and it should be recognised that only the producer of the egg is the mother according to natural reality³⁵.

³⁵ A problem similar to that of breastfeeding by a wet nurse. The comparison holds true only insofar as breastfeeding by a wet nurse has always raised questions, from antiquity onwards when mercenary labour was already discussed, and in Islam because the prohibition on incest extends to milk relatives. The Qur’an, Sura 4 (*Women*), verse 23, prohibits marriage to the wet nurse as well as to the mother. Souad HAMDANI, ‘Filiation through Breastfeeding’, *La revue lacanienne* 8 (2003), pp. 103–112; Abdelhafid OSSOUKINE, ‘The matrimonial prohibition arising from co-breastfeeding in Islamic law’, *Revue internationale de droit comparé* 61 (2009), pp. 359–382.

CHAPTER III

DESCENT

All questions of parentage have become extremely confused in our legal system due to the enshrinement of equality between legitimate and natural children. We had borrowed this distinction from the Romans, who thereby incorporated into the legal system and institutionalised the superimposition of two planes of reality. They had resolved the question of the concordance between law and fact through a division. This artificial construct, excluded in natural filiation, was, on the contrary, accepted in legitimate filiation. Not that, in a coincidence with the separation of culture and nature, pure law corresponded to legitimate filiation and raw fact to natural filiation. It would be a mistake to think so, because both forms of filiation fall within the realm of law, and to go down this wrong path would mean failing to understand the persistence of the duality of the legal and natural planes in both forms of filiation. The work of the Romans, worthy heirs of the

Greeks, consisted, within the legal sphere of culture, in effecting a final division.

Only natural filiation, comparable to the animal bond between a male and female pair and their offspring³⁶, was based on conformity to biological reality. Natural filiation was *cognatic*, forming the basis of eponymous kinship. From this perspective, the child had a father and a mother. A child was first and foremost legitimate if recognised by his mother's husband, a free man – necessarily so, not a foreigner or a slave – and originally only a patrician. The natural bond between father and child was then overlaid by the *agnatic* bond of legitimate filiation, constituting both – perhaps somewhat confusingly³⁷ – the *familia* and the *gens*, in other words the domestic family, under the authority of a *pater familias*, and the clan. A child with no declared father or born out of wedlock was therefore a natural child; he had kinship ties but was not a *filius familiae*. Through emancipation, the legitimate child could leave the *familia* (without leaving his clan). His bond of legitimate filiation was then severed, but the bond of natural filiation with his father remained. Finally, adoption consisted of integrating a new member into the *familia* by establishing a legitimate filiation link—but not a natural one—between the adoptive parent (who could also be the grandfather) and the child. This adopted child remained the natural

³⁶ Cognation is a bond of natural law (GAIUS, *Institutes*, I, 156), yet natural law is that which even animals follow (JUSTINIAN, *Institutes* 1.2.princip. – explicit mention of marriage and procreation).

³⁷ On this difficult distinction between agnation and cognation, see THOMAS in *Le dossier occidental de la parenté*, op. cit., pp. 86, 90 and 91; see also GAIUS, *Institutes*, I, 156.

child of his father, if he had one. As for the parent-child relationship with the mother, whatever the case, it was always solely natural and remained unchanged. Legitimate parentage could only be passed down through males, so it was inconceivable for a Roman that a woman should adopt.

In short, artificial means were excluded from the realm of natural parentage, where the motto 'a father, a mother' is appropriate; yet when such means were promoted in the context of legitimate parentage, this was, *firstly*, to the detriment of the couple and, *secondly*, for the sole benefit of the male. As we can see, this social order was still based on the distinction between the male and female genders, mirroring what is observable in every human society. It is therefore not a question of denying that the distinction between the sexes is perhaps less grounded in nature by anatomical differences than by social necessities. It is indeed always the necessities of social life that take precedence over natural truth. But if the distinction between the sexes is fundamental, it is because it seems that there can be no social organisation in the absence of differentiation. Such things have become incomprehensible to our contemporaries. And, if they were, they would at least be regarded as barbarism, if not savagery. Kinship systems, in any case, are based on the distinction between the sexes, and it is these that concern us.

For us, who conceive of marriage as the union of two lineages, the social distinction between husband and wife is based on

the distinction between father and mother and, within kinship, between the paternal and maternal branches. Society has always and everywhere established a different status for the father and the mother, distinguishing between blood and milk – going so far as to believe, in certain patriarchal societies, that the womb of the woman carrying the child was nothing more than a sack. One could not conceive of a more ‘constructed’ or more ‘*artificial*’ concept. The relationship between father and child is not *legally* of the same nature as that between mother and child. It is the idea of descent, through the father, in a patrilineal society, that certain anthropologists distinguish from filiation. Each bond retains its autonomy and can be conceived of in isolation. With descent, of which the Romans provide a perfect illustration in agnation, things unfold as if mortals were like the phoenix, capable of self-

³⁸ Cf. Ernst KANTOROWICZ, *Les deux corps du roi* (1957), Paris, Gallimard, 1989, p. 282 and notes 250 ff., pp. 526–527 (quotation from LACTANTIUS and CLAUDIAN). LACTANTIUS, *De ave phoenice*, 163 ff.:

He is his own offspring, his own father and his own heir

He is his own son, his heir, his father.

nutrix ipsa sui semper alumna sibi

He is both the one who nourishes and the one who is nourished;

the same yet not the same, for it is itself yet not itself

He is himself and yet not himself, the same and yet not the same,

having attained eternal life through death

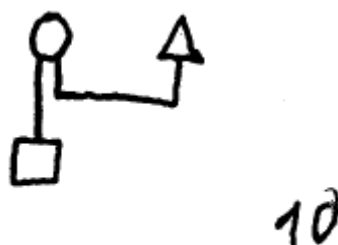
Conquering eternal life through death.

³⁹ GODELIER, *op. cit.*, pp. 76 (text and note 1) and 485 note 3.

⁴⁰ This would be a way of bringing the study of filiation closer to that of legal personality.

merely an amalgam. This distinction between filiation through the father and filiation through the mother consequently structures the alliance relationship and, more broadly, the whole set of fundamental kinship relationships.

The case of siblinghood varies according to the gender of the common ancestor. Siblings will be *uterine* if they share a common mother, and *consanguineous* if they share a common father. Similarly, collateral relatives are simply uterine if they share only a mother and consanguineous if they share a father. When siblings share both the same mother and the same father, they are referred to as *full siblings*⁴¹. The case of siblings who are solely uterine or solely consanguineous is by no means unusual. It is worth noting that this gives rise to a particular phenomenon involving step-



parents (Figure 9). The explosion of 'parenthood' among single people, cohabiting couples and divorcees, 'single-parent families' and 'same-sex parent families' – which are increasing the number of 'blended families' – far from rendering the old legal dogma obsolete, make it all the more urgent,

⁴¹ See THOMAS, in *Le dossier occidental de la parenté, op. cit.*, note 19, p. 108.

lest new generations lose their bearings⁴². And we see that it takes very little to restore order.

The distinction between the sexes does not stop at the parents; it also applies to the child. Whilst for parents the distinction is normally evident from the facts, in certain exceptional cases this may not be the case for a child whose anatomy is ambiguous (hermaphroditism⁴³). But in a world where the status of the daughter differs from that of the son, a decision must be made, which biological analysis now allows us to do with virtually no dispute (if we choose the chromosomal criterion). Depending on the sex of the parent and that of the child, the distinction between the sexes results in four basic genealogical relationships: father-son, father-daughter, mother-son and mother-daughter. Murdock sees these as four fundamental relationships. Each of these relationships is governed by a distinct system, particularly in inheritance law. Thus, in the Roman patrilineal system, inheritance does not pass through the maternal line. Children do not inherit from their mother, nor does she inherit from them. They inherit only from their father.

Within sibling groups, depending on the children's sex, we speak of a 'parallel' relationship between two brothers or two sisters, and a 'crossed' relationship between a brother and a sister.

⁴² GODELIER, *op. cit.*, p. 16; LEGENDRE, *Leçons* (I to VIII), Paris, Fayard.

⁴³ Eva CANTARELLA, 'L'hermaphrodite et la bisexualité à l'épreuve du droit dans l'antiquité', *Diogenes* 208 (2004/4), 3–15; THOMAS, 'La division des sexes', in *Histoire des femmes en Occident*, vol. I, Paris, Perrin, 1991, p. 131 ff.; Gabrielle HOUBRE, 'An "Undetermined Sex"? The Civil Identity of Hermaphrodites in Law and Medicine in the 19th Century', *Revue d'histoire du XIXe siècle* 48 (2014/1), 63–75; Sandrine VALLAR, 'Hermaphrodites: the approach in ancient Rome', *Revue des droits de l'Antiquité* (2013), 201–217.

According to Godelier, this difference, together with the difference in sex, lies ‘at the root of all kinship systems⁴⁴’. It is certain that with this simple case of sibling groups, and its variations, we are touching on something fundamental. It is on this criterion that not only patrilineal and matrilineal modes of descent are distinguished, but also questions of residence, matrimonial regimes and even the transmission of inheritance. Incidentally, I would say that anthropology is torn between analysis based on residence and that which relies on the mode of descent⁴⁵. The entire tradition of classifying family systems, of which Emmanuel Todd is a part, is based, for example, on sibling groups, if only in terms of equality—first between the sexes, and then in the birth order between the eldest and the youngest. I would point out that in Roman law, whilst the division of property is per capita and equal between daughters and sons, in the case of collateral succession the inheritance passes through the common deceased father from brother to brother or from sister to brother, but not from brother to sister or from sister to sister, and we have seen that the daughter passes nothing on to her children. Husband and wife, father and son, mother and son, father and daughter, mother and daughter, brothers, sisters, brother and sister: we have thus reviewed the eight typical relationships identified by Murdock in the case of ‘the nuclear family’⁴⁶.

⁴⁴ GODELIER, *op. cit.*, p. 215 (on Françoise HÉRITIER, *L'exercice de la parenté*, Paris, Seuil/Gallimard, 1981, pp. 13–15).

⁴⁵ Pierre CLASTRES, *Society Against the State*, Paris, Les éditions de minuit, 1974/2011, p. 49.

⁴⁶ MURDOCK, *op. cit.*, pp. 21–40, esp. p. 23.

CHAPTER IV

INCEST

DEFINITION OF THE CASE

The main thrust of my contribution will be to refocus the subject of kinship on the case of incest and the controversies it generates. Now that we have clarified its components, we can propose a definition. Incest is the case where two people share two familial relationships. A relationship of filiation or affinity either pre-exists or is added to their relationship as spouses⁴⁷. Like any such combination, this raises a question of compatibility. Due to the preponderance of the primary kinship relationship *in the broad sense*, the marital relationship is subject to a norm, sometimes a prohibition, sometimes tolerance, permission, or even a recommendation, an encouragement, and sometimes even an obligation. It should be noted that in this way we clearly distinguish – and will do so systematically – between the *concept* of incest and the

⁴⁷ In the case of affinity, the marital relationship comes into play at least twice: first indirectly to establish this very link between the parties concerned, and then directly between them.

legal regime governing incest. This means that with the concept there is the case, the situation that raises the question, and that with the regime we have its resolution and the rule that applies to it. This is a highly legal mode of analysis, inherited by Roman jurists from Aristotelian logic. It is this distinction that enables us to understand the term ‘incest’ in the broadest sense. I believe this is how we must begin to approach the matter, even if we subsequently introduce some nuance. We are compelled to do so by our comparative legal approach. If we were to take the term only in the narrowest sense of a more or less prohibited relationship – for there are always nuances – in French law today, this would considerably and very arbitrarily restrict the scope of the relationships under consideration in our study. We would fail to meet any requirement for precision and accuracy, and we would be forced to find a word to designate exactly the same cases where, in other legal systems, the relationship is not transgressive, and conversely to designate cases that our law does not consider incestuous, whereas they are regarded as such in other parts of the world or in other times. The entire definition of the concept would depend on its legal regime, which would constitute a fundamental methodological error. We therefore prefer to retain the term ‘incest’ to denote a concept that is sufficiently broad in terms of its legal regime and precise in terms of its definition.

Roman jurists approached incest from the perspective of marriage⁴⁸. Today, as in the past, where there is a strict prohibition,

⁴⁸ GAIUS, *Institutes*, I, 58–64; *Epitome of Gaius* 1.4.1–8; JUSTINIAN, *Institutes*, 1.1.10.1–12. The French Civil Code addresses the issue under the heading of marriage (Articles 161 to 164), then

marriage cannot be solemnised without a dispensation (Civil Code, Article 164). If, through error, fraud or ignorance, a marriage had been solemnised despite the prohibition, the unlawful marriage was declared null and void. And with it, any link to the father, where a child had already been born of this transgressive union. Reduced from legitimate status to that of a natural child, who has no family, the child of incest, as Gaius states (perhaps in this case alone), had only a mother⁴⁹. Consequently, in cases of incest through marriage, it is the common parentage with the child that is at issue. Even today, when two people, who are related *in the broad sense*, are in a prohibited incestuous relationship outside marriage, a child's parentage can only be recognised with one of the two. In the past, any filiation with the father was prohibited. In this era of equality between men and women, the French Civil Code now gives precedence to the first filiation established⁵⁰. Recognition will no longer be permitted for the second parent. The law even prohibits the child from establishing the incestuous link through an action to establish maternity or paternity, even if this were based on biological reality⁵¹. Moreover, the prohibition does not depend on whether or

under that of filiation (Article 310-2).

⁴⁹ GAIUS, *Institutes*, I, 58–64; *Epitome of Gaius* 1.4.1–8; JUSTINIAN, *Institutes*, 1.1.10.1–12. French Civil Code, Article 310-2; nevertheless, see THOMAS, *Le dossier occidental de la parenté*, *op. cit.*, p. 30.

⁵⁰ Not necessarily the mother; the father may be the first to make a prenatal acknowledgement of paternity; see Caen, 8 June 2017, Annick BATTEUR, 'The child born of incest between brother and sister: a new example of an insoluble conflict of filiation', *Recueil Dalloz* (2017), p. 2107.

⁵¹ It is true that there is debate as to whether this might constitute a deplorable situation in which the child has no 'access to their origins'. There is even speculation as to whether, in the case of an annulled marriage, dual parentage might not be maintained on the basis of putative marriage (a theory of canonical origin). This is an interpretation of Article 202 resulting from the 1972 Act,

not the child is the product of the parents' sexual union. There may not even be a genetic link, since the adoption of a child by a parent or relative is also prohibited⁵². Moreover, genetics is not at issue in the primary relationship between in-laws or in cases of parentage involving adoption. In short, the prohibition concerns the establishment of dual parentage with the incestuous child, which would legally result in the problematic accumulation of parentage with the pre-existing kinship.

But the prohibition on incest is legal; it operates within the law and obviously does no more to prevent the act of transgressive sexual relations than it does to prevent the reality of conception – and the penalty does not go as far as the physical elimination of the child... Furthermore, it should be noted that, when it comes to sexuality, the issue today is purely one of morality, as our law no longer prohibits it. Indeed, civil law says nothing on the matter, and in our Criminal Code, incestuous sexual intercourse is merely an aggravating circumstance for the penalties of rape, sexual assault or sexual abuse, and even then only when the offender is the victim's ascendant⁵³. Nevertheless, it is sexuality that most often comes to mind when discussing incest. It is true that the Roman formulation

which appears to date back to André BRETON, 'L'enfant incestueux', *Mélanges Ancel*, vol. I, p. 313 (an article we have been unable to consult, cited by Danièle MAYER, 'La pudeur du droit face à l'inceste', *Dalloz* (1988), Chronique p. 213 and subsequently by BATTEUR, 'L'Interdit de l'inceste. Principe fondateur du droit de la famille', *Rtd civ.* (2000) 4, no. 13 p. 769. Moreover, I do not see what the 1972 Act has changed in the situation.

⁵² The case of adoption has recently been the subject of notable case law (*see* the references under Articles 162 or 310-2 in the *Dalloz* or *LexiNexis* editions of the Civil Code).

⁵³ Criminal Code, Articles 222-24(4), 222-28(2) and 227-6.

found in Gaius and later in Justinian may suggest that sexual intercourse is also prohibited within marriage⁵⁴. But it is particularly in Leviticus that incest is addressed solely from the perspective of sexuality⁵⁵. At the very least, Leviticus in Chapter XVII juxtaposes, and even more so in Chapter XX, the series of incest cases with male homosexuality (20:13), bestiality (20:15) and sexual intercourse during menstruation (20:18). Perhaps there is a completely different logic at work here, one capable of completely reversing our perspective. It would seem that sexual intercourse itself, whether procreative or not, forms the heart of the matter; that if marriage is implicated, it is because it provides a framework for this act; and that the child born of incest is only at issue insofar as it is the fruit of sin. Even if this would make it harder to understand the desire for same-sex parenthood envisaged – whether one welcomes it or not – in our law⁵⁶, I nevertheless mention this possibility for the record.

ORGANISATION OF THE CASUISTRY

These basic considerations finally enable us to identify the criteria and categories upon which the classification depends, under which we shall analyse the casuistry⁵⁷. The question of classification

⁵⁴ *If such persons have sexual relations with one another, they are said to have entered into nefarious and incestuous marriages.* GAIUS, *Institutes*, I 59; cf. JUSTINIAN, *Institutes*, 1. 1. 10. 12.

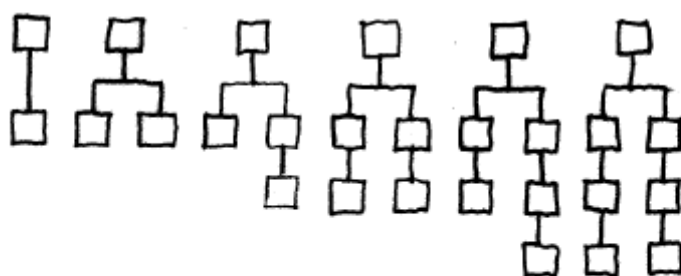
⁵⁵ Leviticus, 18 and 20.

⁵⁶ Since the Taubira Act, our civil law has prohibited incest between father and son: this does not concern reproduction or sexuality (which has long been prohibited, primarily due to its homosexual nature) but rather marriage and filiation.

⁵⁷ There are several possible orders. All legislation follows one of them, whether it sets out the rules of succession, marriage or filiation.

is important, for the number of cases is obviously infinite, and it would make no sense to attempt to catalogue as many as possible scrupulously, or to claim that none of the known cases should be excluded from the study. But it is sufficient to emphasise the framework that guides the processes of selection and classification. The clearer this framework is in our minds, the less difficulty complex cases will pose.

The case of incest always varies according to the pre-existing relationships of filiation and affinity between the two parties concerned, and not in terms of their relationship by marriage, which is variously implicated from one case of concurrence to another, depending on the legal regime adopted. I began my social case study with six cases, the first concerning the direct line and the other five the collateral line (Figure 11).



11

But as I progressed through the labyrinthine twists and turns of this casuistry, the coordination of certain ideas became apparent to me, and I eventually reorganised everything according to three criteria: sex, generation, and the combination of filiation and affinity.

1. *Gender*. – On this first criterion, there is a significant divergence between modern codes and the tradition followed since Roman law, to which I subscribe. In Roman law, the following were considered, in order: the daughter, the mother, the sister, the niece and the aunt⁵⁸. Similarly, in the Qur'an, the order is the mother, the daughter, the sister, the aunt and the niece⁵⁹. Whereas in modern codes, a distinction is made between ascendants, descendants and collateral relatives⁶⁰. The reason for this is that Western European legal traditions, in the name of equality, tend to deny the distinction between the sexes. The traditional presentation of incestuous relationships was not gender-neutral; it was based on the distinction between the sexes in three respects. *Firstly*, by characterising the relationships, for example by distinguishing the father-daughter relationship from the mother-son relationship, since, if one does not take the sex of the individuals into account, the cases of the mother and the daughter are the same; these are first-degree direct line relationships in Roman law. It should be noted that even during the preparatory work for the French Civil Code of 1804, some still insisted on the distinction between the case of the aunt and that of the niece⁶¹. *Secondly*, by

⁵⁸ GAIUS, *Institutes*, I, 59–60; cf. *Epitome of Gaius* 1.4.1–2 and JUSTINIAN, *Institutes*, 1.1.10.1–2. The Code of Hammurabi (1750 BC), arts. 154–158, adopts the order daughter, mother; Leviticus 18:6–18, the order mother, sister, granddaughter, aunt.

⁵⁹ Quran, 4:23.

⁶⁰ French Civil Code (1804–2020), Articles 161 and 162; cf. also the First Draft Civil Code (1793), Title II, Article 15; also the Civil Code for the German Empire (1896), § 1310, paragraph 1; the Swiss Civil Code (2020), Article 95, paragraph 1; and even the Code of Canon Law, Canon 1091 §§ 1 and 2.

⁶¹ Debate in the Council of State on the title 'On Marriage', session of 26 Fructidor Year IX; EMERY spoke during the debate; see Pierre-Antoine FENET, *Complete Collection of the Preparatory Works of the Civil Code*, vol. 9, Paris, 1827, pp. 22–23.

choosing a sex for the reference person in the relationship – ‘ego’ as anthropologists say, or ‘*de cujus*’ as lawyers say – and *thirdly*, by making that choice the man. In this way, it was sufficient to consider the case of the daughter to refer to that of the father, or that of the mother to refer to that of the son. Whereas in our modern laws, the reference person is regarded as being of either male or female sex, and the father-daughter and mother-son relationships are grouped together in the class of descendants, and the same relationships in that of ascendants.

Classification according to the criterion of sex seems to me indispensable for the general organisation of casuistry. It allows us to avoid superfluous sub-distinctions. Moreover, to simplify our exposition, we shall not enter into the field of homosexual relationships⁶².

2. *Generation*. – Daughter, mother, sister, or mother, daughter, sister: we see that Roman law and the Qur’an group women of a different generation together, as opposed to women of the same generation as the man. All ancient and modern codes, all societies, distinguish relationships between people according to whether they are of the same generation or of a different generation⁶³. This is what we shall do. But we also see that Roman law and the Qur’an distinguished between relatives in the direct line

⁶² The French Civil Code now covers cases of incest between father and son or mother and daughter, uncle and nephew, etc. (Articles 161 to 163).

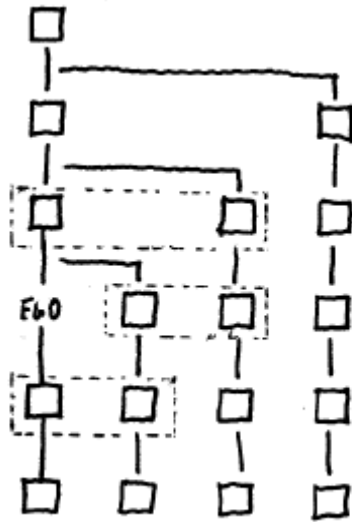
⁶³ Combined with the distinction between the sexes, the distinction between generations immediately creates a connection with anthropology, and even with biology, which classifies women as post-menopausal, fertile and prepubescent.

and those in the collateral line, considering, following the series of mother, daughter and sister, the series of aunt, niece and cousin. Similarly, all modern codes treat the case of collateral relatives separately⁶⁴. There are good reasons for this, relating to the law on incest⁶⁵, but we shall not do so. We shall give precedence to the criterion of the chronological order of the succession of generations over that which distinguishes the lines. We shall therefore group together in the same generational class the direct-line relative and the collateral-line relative, considering the case of the aunt immediately after that of the mother and that of the niece after that of the daughter (and consequently that of the cousin will come immediately after that of the sister).

This arrangement by generational groups has the advantage of clarity and facilitates the analysis of certain complex

⁶⁴ There is yet another order, which considers cases of kinship one after another, that is to say, beginning with the person's descendants, moving on to their first-degree Roman ascendants and all their collateral relatives descending from them, and so on.

⁶⁵ In the collateral line, the prohibitions are fewer. '*Similis observatio*,' write Gaius and, following him, Justinian, '*sed non tanta*': GAIUS, *Institutes*, I 60; JUSTINIAN, *Institutes*, 1.1.10.2.



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cases.

As we have said, in our discussion we will mainly present only the basic structure, vertically across three generations and horizontally across two. However, one could easily expand the ramifications of *the stemma* vertically in a direct line, in ascending or descending order, and horizontally in a collateral line (Figure 12).

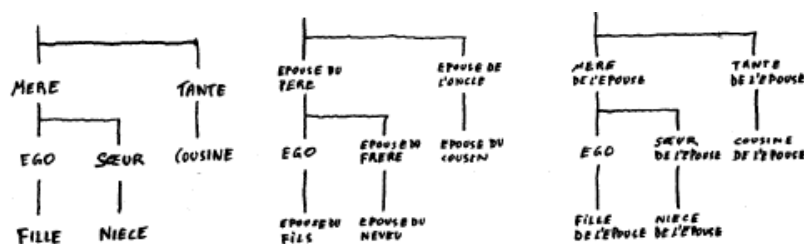
3. *Combining filiation and affinity.* – Whilst cases of affinity are often dealt with en bloc and after those directly pertaining to kinship⁶⁶, we believe it preferable to link to each case of filiation those cases where marriage creates a relationship of affinity⁶⁷. We shall therefore simply consider, in the following order, after the case of each *parent* of the reference person, that of *that parent's spouse*,

⁶⁶ This was the order followed at least since Gaius and for several centuries thereafter in JUSTINIAN'S *Institutes*, 1.1.10.6–7, and in the Qur'an. It is still found in certain modern codes (the Civil Code for the German Empire and the 1983 Code of Canon Law). When a modern code no longer sets out the case of relatives by marriage separately but directly under that of ascendants, it is because the prohibition now applies only to this case (French Civil Code).

⁶⁷ In accordance with the Code of Hammurabi, Articles 154–158 (daughter, daughter-in-law, mother, stepmother) and Leviticus 18 (mother, stepmother, sister, granddaughter, aunt, uncle's wife, daughter-in-law, sister-in-law who is the wife of a brother, mother-in-law and sister-in-law who is the sister of the wife).

then that *of their spouse's parent*. This will result in a set of three people for each case⁶⁸.

We thus obtain a relatively clear tree of the field we are going to explore in the following four chapters (Figure 13). In eighteen cases.



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⁶⁸ With regard to relatives by marriage, Gaius envisaged the following sequence: the wife's mother (son-in-law and mother-in-law, *socrus*), the son's wife (father-in-law and daughter-in-law, *nurus*), the wife's daughter (daughter-in-law, *privigna*) and the father's wife (stepmother, *noverca*). A few centuries later, Gaius Justinianus, in his *Institutes*, adopted the sequence: the son's wife (daughter-in-law), the wife's daughter (daughter-in-law), the father's wife (stepmother) and the wife's mother (mother-in-law): JUSTINIANUS, *Institutes*, 1.1.10.6–7.

PART TWO

CASE STUDIES

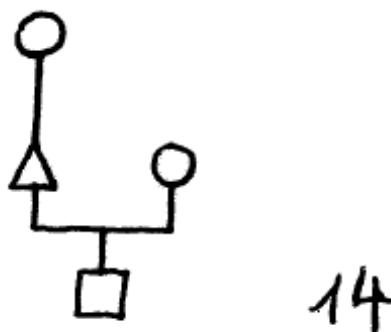
CHAPTER V

MOTHERS

FIRST CASE: THE MOTHER

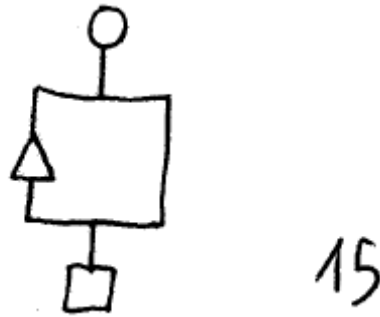
Concept

The first case concerns relations between a mother and her own son. Let us consider the consequences from the perspective of the child who would be born of this incest. In this initial situation, there is a need for critical analysis, which we shall, moreover, have to carry out systematically for all other cases. Let us therefore make it clear once and for all that there are two ways of conceiving situations of incest. This depends on whether we attribute a rigid or flexible character to the genealogical structure. If the structure is conceived as rigid, it unfolds in our case with the child, the child's mother, the child's father and the mother of the child's father (Figure 14).



In this framework, the child and the father obviously have a fixed place, but on the other hand, as a result of the incest, the incestuous mother can occupy two places: both her original position, as the mother of the incestuous father, and thus the paternal grandmother of the incestuous child; and the subsequent position which she usurps, as it were, as the partner of the incestuous father and thereby the mother of the incestuous child. With this premise of a rigid genealogical structure, a single individual is required to occupy two positions. Yet they cannot split themselves in two nor occupy both at the same time. And if, consequently, they can only occupy them alternately, this means in our case that one of the two positions is constantly left vacant. This is precisely what occurs in our laws regarding the punishment of incest, since one of the two relationships will not be recognised and the child will have no known father. In the same way, primitive societies always choose between the mother and the father, depending on which they regard the parents in the broad sense as either parents by blood or as in-laws. We shall return to this central concept.

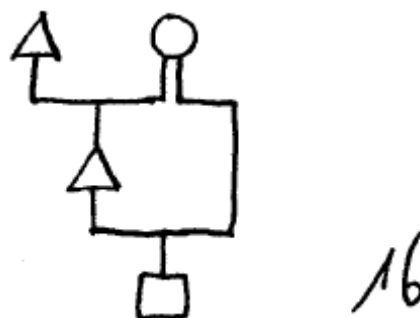
But if, in another mode of analysis, the structure is instead conceived as flexible, malleable and adaptable, it is the positions that become confused, such that a single individual may very well fulfil two genealogical functions at the same time (Figure 15).



This rearticulation of the family tree creates a sort of short-circuit. Starting from the same reference person, for the same structure, depending on the direction taken, the roles bear different names. The analysis splits into two. If we consider the situation from the perspective of the child born of incest, we must then follow the line of reasoning by tracing alternately one parental branch and then the other. This child does indeed have a mother, and through the maternal branch he has a brother, a child born of the same mother as himself. Here there are only two generations. If parentage were also established with his father, we would have a first instance of dual roles, since this person would be not only a father but, as we have just seen, also a brother. Father and half-brother. And this father, for the child born of incest, has a mother of his own. From this perspective, she is therefore the paternal grandmother of the child born of incest. On the paternal side, the case spans three

generations. But this woman is also, as we have seen, the mother of the child born of incest. As both paternal grandmother and mother, she holds two parental roles.

Taking the reasoning one step further, to extend the cycle to the genealogical position of the incestuous child itself, we would see it occupying the same position, on the maternal side, as a nephew or niece, and, on the paternal side, as an uncle or aunt. And if we now consider the matter not from the perspective of the incestuous child, but from that of his father: in the line of descent, through this child, the other parent—the mother—is his ally, his wife if married; and in the line of ascent, this same wife happens to be his mother, and thus his child is his brother or sister. We could thus expand on this by examining the full range of possible relatives from the perspective of one group or the other. We shall not do so, but let us nevertheless note that the first spouse of the incestuous mother—that is, the father of the incestuous father—is, for the incestuous child, a stepfather on the maternal side and a grandfather on the paternal side (Figure 16).



Finally, let us also note that the incestuous mother has become the daughter-in-law of her first husband.

It is thus, as the accumulation of two roles in a single person, that cases of incest can be analysed. This is a tradition for which traces can be found in Sophocles⁶⁹. Saint Augustine engages in this exercise in *The City of God*. He, who saw in filiation and in the covenant a source of charity, could thus analyse incest as a superfluous accumulation of several sources of charity⁷⁰. For one loves one's father, and one loves one's brother; to love both in the same person is a redundancy⁷¹.

Rules

Incest with one's mother is strictly forbidden⁷². This means that marriage cannot be solemnised without a dispensation (Civil Code, Article 164); if it has been solemnised, it will be declared null and void; and a child born of such a union can only have their parentage recognised in relation to one of their two parents (Civil

⁶⁹ SOPHOCLES, *Oedipus Rex*, 456–458:

skiptro prodeiknus gaian emporeusei.
... he will reveal himself to those he has begotten
Φανήσεται δὲ πασι τοῖς αὐτοῦ ζυνὼν
both father and brother, and to her who bore him
both brother and father, and to her from whom he was
born
both son and husband...

Free translation based on Pignarre (Flammarion 1964), Loaza (Flammarion 2015) and Mazon (Les Belles Lettres 2017); see also lines 1405–1407. Cf. Philippe MOREAU, *Incestus et prohibitae nuptiae*, Paris, Les Belles Lettres, 2002, p. 117.

⁷⁰ AUGUSTINE OF HIPPO (SAINT), *The City of God*, XV–XVI.

⁷¹ And of course one loves one's mother and one loves one's wife.

⁷² French Civil Code, Article 161.

Code, Article 310-2) – formerly the mother. In other words, either the child will see their mother only as a mother and their father only as a brother, or they will see their father only as a father and their mother only as a grandmother. Under our law, this does not mean that sexual relations are prohibited as such. The penalties for rape, sexual assault and sexual abuse are simply increased when the offender is the victim's ascendant. Nevertheless, the Roman formulation found in Gaius and later in Justinian clearly suggests that sexual relations are also prohibited. *Si tales personae inter se coierint, nefarias et incestas nuptias contraxisse dicuntur*⁷³. Nowadays, with contraception on the one hand and medically assisted reproduction on the other, in a context of widespread promotion of immorality, as we have said, sexuality and reproduction are becoming increasingly distinct. And we must emphasise the essence of filiation.

But the universal nature of this taboo is perhaps best illustrated by mentioning its exceptions. These do not refer to instances where the forbidden sexual act is committed out of ignorance or with full knowledge of the facts, nor to cases where, whether there is a genetic link or not, parentage is legally established without the legal authorities having recognised the incestuous nature of the relationship. Rather, these are cases where the marriage of a son and his mother is recognised, and where parentage

⁷³ GAIUS, *Institutes*, I, 59 (trans. Reinach: 'if such persons have had sexual relations, they are deemed to have entered into a forbidden and incestuous marriage'); JUSTINIAN, *Institutes* 1.2.10.1, virtually identical word for word.

of their child is acknowledged. In the ancient world, within the Fertile Crescent—particularly in ancient Egypt and ancient Persia—there are instances of marriage between mother and son in a religious context, involving the highest ruling classes. The ‘sacred marriage’ is often mentioned in Mithraism and among the Yazidi peoples, in Mazdeism and among the Kyrgyz peoples (Iraq), in Zoroastrianism, in societies of Zoroastrian origin and in Persian circles that were Zoroastrian, and in Vedic religion⁷⁴. In this regard, one must always consider the gods and kings. Ultimately, it is monotheism that is at issue, and in particular Judaism, whose links with Egyptian and Persian religions no one can deny. It is in this context that we must pay tribute to the courage of Hervé Ryssen⁷⁵. As for primitive peoples, the same cases always recur, such as among the Dobu, the marriage of the widow of the deceased father⁷⁶.

It is worth noting a somewhat over-adventurous analysis by Sigmund Freud in the first chapter of his work *Totem and Taboo*: ‘In the paternal transmission of the totem (...) the father could not have incestuous relations with his daughters, but the son could have them with the mother’ (trans. Jankélévitch)⁷⁷. The date of publication

⁷⁴ Germaine TILLION, *The Harem and the Cousins*, Paris, Seuil, 1966, p. 121; Jean VARENNE, *Zoroaster: The Prophet of Iran*, Paris, Dervy, 2012, pp. 67–68.

⁷⁵ Hervé RYSEN, *Anti-Semitism Without Complexes or Taboos*, Levallois, Baskerville, 2018, p. 206 ff. See also by the same author *Psychoanalysis of Judaism*, 2006, *Jewish Fanaticism*, 2007, and *Mirror of Judaism*, 2009 and 2019.

⁷⁶ MURDOCK, *op. cit.*, p. 32; but it is not certain that this refers to the son – check whether it might in fact be a stepson.

⁷⁷ Sigmund FREUD, *Totem and Taboo* (1913), Chapter 1 ‘The Fear of Incest’ (previously published in the journal *Imago*), footnote under the 14th paragraph; trans. JANKÉLÉVITCH, Paris, Payot, 1977, p. 14, trans. TASSEL, Paris, Point, 2010, p. 46.

of the work (1913) places the author's thinking within a certain anthropological framework; nevertheless, his argument merits analysis. Starting from the fact—still indisputable today—that, apart from endogamous curiosity, belonging to the same clan prohibits its members from marrying one another, he proceeds from the observation, itself still well established, that in a patrilineal system the mother and her son do not belong to the same clan, and from this he deduces the possibility of incestuous relations. What interests him is to compare this incest with, in a matrilineal system, the supposed incest between father and daughter, in order to definitively settle the still-relevant question of the precedence of matriarchy⁷⁸. Indeed, he continues: 'for we have more than one reason to admit that these prohibitions are aimed above all at the son's incestuous impulses' (trans. Jankélévitch)⁷⁹. For Freud, the prohibition of incest between mother and son can only be conceived within a matrilineal system, and as older than the prohibition between father and daughter. In reality, incest in the direct line does indeed seem to follow its own logic, distinct from that which applies in the collateral line. Whatever its underlying reason may be, it is in any case overtly transgenerational in nature.

Between two people, the relationship of direct (mother) or indirect (grandmother) descent prohibits incest. But within the kinship structure, there operates a profound logic of differentiation

⁷⁸ Question posed by Johann J. BACHOFEN, *Maternal Law: A Study of the Gynecocracy of Antiquity in its Religious and Legal Nature* (1861), Lausanne, L'Age d'Homme, 1996.

⁷⁹ *Ibid.*

between clan members—affiliated in the strict sense—and in-laws who are outsiders to that clan. The distinction is made, on the one hand, in the separation between father and mother, who normally, barring incest, belong to distinct clans prior to marriage, the wife not changing her affiliation through marriage⁸⁰ ; and, on the other hand, in the choice of the child’s affiliation to the paternal or maternal line. This differentiation structures the entire kinship system. Godelier rightly emphasises the ‘beliefs’ that link the child sometimes to its mother—matrilineal beliefs—and sometimes to its father—patrilineal beliefs⁸¹ . “For the Baruya,” he writes, for example, “the woman’s womb is a ‘bag’ in which the foetus develops, nourished during the first few months by the husband’s semen, which is produced through frequent sexual intercourse with his wife”⁸² . Sperm forms the child’s bones, blood and skin in the mother’s womb⁸³ . In a patrilineal system, Freud therefore allows himself to be carried away by this logic and takes it to the point of absurdity where, on its own, it no longer holds water. This is a mode of reasoning that is perfectly effective in heuristics. However, it cannot be ruled out that Freud’s perspective offers a possible explanation for the mystery of what we otherwise perceive as violations of the incest taboo and as endogamy.

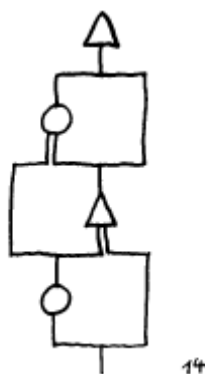
⁸⁰ In a patrilineal system, the wife is not absorbed into her husband’s lineage; he has authority over her only in this respect (GODELIER, *op. cit.*, p. 71). Roman law regarding marriage *cum manu* is an exception, as the bride becomes part of her husband’s *familia* (whilst, of course, retaining her natural ties to her father of origin).

⁸¹ *Op. cit.*, pp. 118–120.

⁸² *Op. cit.*, p. 74.

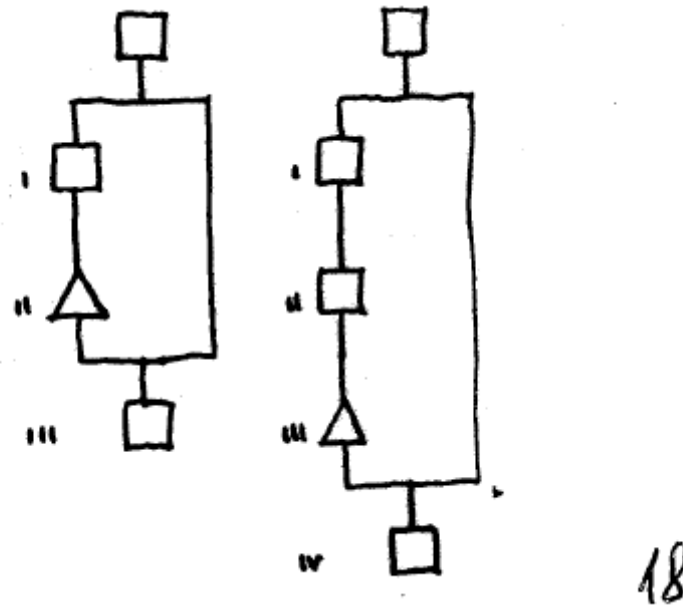
⁸³ *Op. cit.*, p. 82.

The case of Oedipus is unique because from birth the child had been abandoned by his parents, Laius and Jocasta. Not having been recognised by them, this child was theirs only biologically. Oedipus had been recognised by Polybus and Merope, another couple. In Jocasta, therefore, he was not marrying his legal mother, but his biological mother, a fact known only to the gods and the oracles. It was indeed to escape the risk of an incestuous union with Merope, his legal mother, that he fled Corinth. Furthermore, he commits this incest with Jocasta in complete ignorance. As for Genesis, a narrative that is certainly not to be understood as historical⁸⁴, it might suggest that since Adam, Eve, Cain, Abel and then Seth were alone in the world, our first parents were compelled by necessity. But in the Christian context, as in the Jewish context we have examined, it is assumed that Adam and Eve also had daughters. This is not stated in the text. It should also be noted, for the sake of clarity, that a single genealogy is conceivable starting from a single man and a single woman (Figure 17).



⁸⁴ See MONTESQUIEU, *Defence of the Spirit of the Laws*, Part Two, section on Marriage.

The laws deem it appropriate to specify that in the direct line, the prohibition is unlimited. This certainly means that incest is prohibited in the second generation with the grandmother, in the third with the great-grandmother (Figure 18), and so on.



Finally, it should be noted that from the second-generation incest onwards—that is, from incest with the grandmother—it would undoubtedly be useful to distinguish between the case where she is the mother of the mother, that is to say the maternal grandmother of the incestuous grandson, and the case where she is the mother of the father, the paternal grandmother of the incestuous grandson.

SECOND CASE: THE STEPMOTHER

The wife of the child's father is known as the stepmother or, more specifically, the stepmother. Naturally, she is not the child's

mother; she is not related to the child by blood, but as the father's spouse she is a relative by marriage (Figure 19)⁸⁵.



By virtue of marriage, the status of *the parent's* spouse is equated with that of *the parent*. They are treated as a parent. The child's relationship with their stepmother is analogous to their genealogical relationship with their father, and for a son, the relationship with the female parent constitutes incest. We read in Justinian's *Institutes* that the stepmother *takes the place of* the mother: *matris loco est*⁸⁶. This means that, like the mother, she is one with the father, but it may also mean, if the father is the primary parent for a child, that the stepmother has taken the mother's place. We are faced with the case of a woman's relationship with a man whose father she had previously married⁸⁷. It may, moreover, also concern a woman from the father's first marriage. It is worth noting that a student of Lévi-Strauss (who succeeded him at the Collège de France) had developed the opposite line of reasoning. I am hardly exaggerating: ultimately, it would no longer be the mother who serves as the reference point

⁸⁵ This case is addressed last in both GAIUS' *Institutes* and those of JUSTINIAN.

⁸⁶ JUSTINIAN, *Institutes*, 1.1.10.7.

⁸⁷ In the reverse order, we discuss the daughter-in-law; see *below*, case no. 8, which is treated second by both GAIUS and JUSTINIAN.

in the case of the stepmother; rather, it would be the mother herself who would have to be understood, in a sense, as a stepmother. Incest with the mother would be nothing more than one instance of incest with the father's wife⁸⁸. The child's relationship with their mother can be established both immediately and through the father's mediation: the child's mother is always necessarily the father's ally. In this sense, every natural mother is, moreover, a stepmother. It is true that in the analysis of cases one can always play at constantly breaking down the positions. Nevertheless, it is interesting to incorporate the other parent into the incestuous relationship between a parent and their child (Figure 16 *above*). And to Sigmund Freud, who went so far as to imagine a permission for mother-son incest in a patrilineal context, one might point out that even if the mother is not a member of the clan, she is nonetheless already bound to it by the father.

A child born of this incestuous relationship between the stepson and the stepmother would have a *paternal* grandfather who, through his mother (the stepmother), would also be his stepfather – his own *parâtre*. Conversely, in relation to this *paternal* grandfather, his mother (the stepmother) would take the place of a step-grandmother. And if a child were born from the stepmother's first marriage, for the child born of incest, this child would be, through the stepmother, a second-degree collateral relative—a half-brother

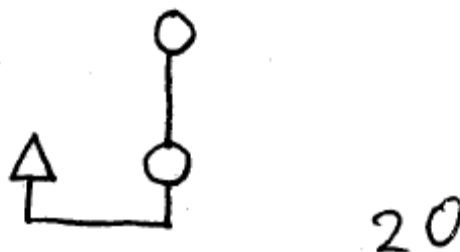
⁸⁸ HÉRITIER, *Les deux sœurs de leur mère. Anthropologie de l'inceste*, Paris, Odile Jacob, 1994, pp. 307–308; BATTEUR, 'L'Interdit de l'inceste', *op. cit.*, 762.

or half-sister—and, through his father (the stepson committing the incest), a third-degree collateral relative—a paternal uncle or aunt.

This form of incest is prohibited, but not strictly so. Article 164 of the French Civil Code provides that, for serious reasons, the prohibition on incest laid down in Article 161 may be lifted. Nevertheless, outside marriage, it remains prohibited to establish the filiation of the incestuous child with both its father and mother. The prohibition applies without limitation to the spouse of the grandfather, great-grandfather, etc.

THIRD CASE: THE MOTHER-IN-LAW, MOTHER OF THE WIFE⁸⁹

If a man is faced with a daughter and her mother, by marrying the former first he can no longer marry the latter. Indeed, his wife's mother, his mother-in-law to whom he is a son-in-law, will take the place of his own mother (Figure 20).



⁸⁹ This case comes first in GAIUS and third in JUSTINIAN.

Regarding this prohibition, Sigmund Freud reported the explanation given by a Zulu woman: 'he must not see the breasts that nursed his wife'⁹⁰.

⁹⁰ FREUD, *Totem and Taboo*, ed. Payot, op. cit., p. 24 (quotation taken from David LESLIE, *Among the Zulus and Amatongas*, 1875). See also the question of affections (op. cit., p. 26) and transference, whether negative or positive (FREUD, *Psychoanalytic Technique*, Paris, PUF, 1970, pp. 50 ff., pp. 115 ff.).

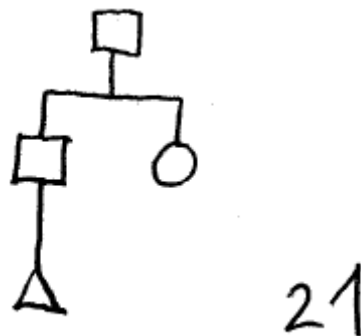
CHAPTER VI

AUNTS

FOURTH CASE: THE AUNT

Concept

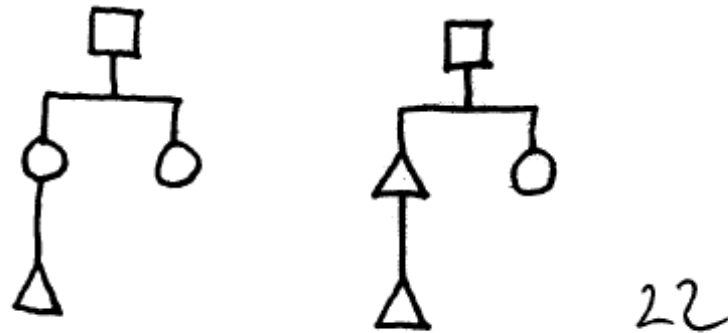
The aunt is three Roman degrees removed from her nephew, as two degrees must be counted to ascend in the direct line from the nephew to the common ancestor—the nephew's grandfather or grandmother—and then one further degree to descend from the common ancestor in the collateral line, that is, via another branch, to the aunt (Figure 21).



But in canonical computation, only two generations are counted. Indeed, from the grandfather or grandmother, the aunt is only in the first generation, and the nephew is still only in the second. This is the discrepancy we consistently encounter in the collateral line between Roman computation and canonical (also known as Germanic) computation.

During the discussion of the draft Civil Code before the Council of State mentioned above, Emery put forward the view of the majority of the section that *‘the aunt (...) in a sense takes the place of the mother⁹¹’*. The idea had already been set out in Justinian’s *Institutes*. *Amita*, the paternal aunt (the father’s sister) and *matertera*, the maternal aunt (the mother’s sister), *are regarded as parentum loco*. Moreover, the distinction between aunt and mother is not even universal. If we take a look at the handful of major categories of kinship systems identified by anthropologists, we observe that, whilst it is certainly not always and everywhere the case that *all* aunts are indiscriminately equated with mothers – which, incidentally, would then make all cousins into sisters – at least the *maternal* aunt is generally equated with the mother, and the *paternal* aunt alone is distinguished from her, albeit differently in the Iroquois, Omaha and Crow – let us not go into detail *here and now* – where only the parallel cousin is a sister and the cross-cousin a cousin (Figure 22).

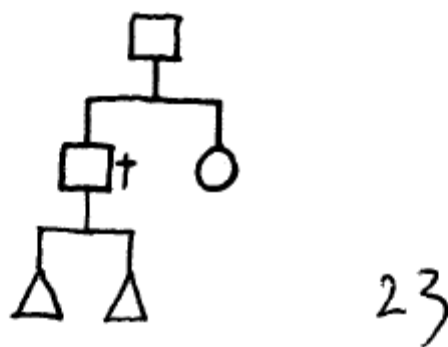
⁹¹ FENET, *op. cit.*, *loc. cit.*



It is the trace of a system of this type that the Latin language has preserved in the distinction between the terms *matertera*, the mother's sister – and the root *mater* clearly indicates her assimilation to the mother – and *amita*, the father's sister. This distinction between aunts is easily understood within the framework of the institution of sororate, which we shall examine, where two sisters are the wives of the same man. In Sudanese systems, the aunts are already all opposed to the mother, but they remain distinct from one another. At a certain stage in its development, the European family was able to overlap with this latter system. Ultimately, it is largely only Eskimo societies that still treat paternal and maternal aunts indistinctly in their shared opposition to the mother – and thus, as we shall see, simply distinguish between sisters and cousins, as our law does.

In other words, incest with the aunt would amount, if the aunt is indeed in the place of the mother, to incest with the mother. But one might just as well choose to see things differently. If, within the genealogical structure, one gives precedence to the collateral

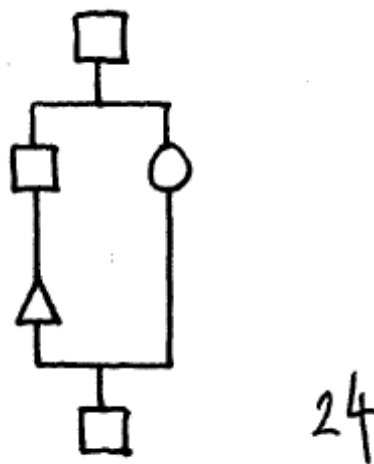
aspect of the relationship rather than its direct aspect, and if, instead of regarding the aunt as a substitute for the mother, we instead hold that in the relationship with his aunt, it is the nephew who is the substitute for his own direct parent—that is, standing in for his father in the case of his paternal aunt, or for his mother in the case of his maternal aunt—then from this perspective, incest between the nephew and his aunt would be akin to incest between brother and sister. There is an argument drawn from French inheritance law that would support such an assimilation. Indeed, in the case of the estate of a deceased person who leaves, for example, a daughter and, from a second child who predeceased them, two grandsons (Figure 23), the estate is not allocated solely to the aunt (who is, however, the closest relative), nor is it divided into three equal shares; rather, it is in fact divided into four shares: two for the aunt and one for each of her nephews, who share the share of their direct relative, the aunt's predeceased brother or sister⁹².



⁹² In other words, the inheritance is first divided in two, between the aunt and her nephews, then again in two between the latter.

For the nephews inherit from their grandparent *by representation* of their predeceased relative. At the time of devolution, for a given period, the nephew is effectively in the position of being his aunt's brother.

If a child were to be born of incest between the aunt and her nephew, he would be, through the maternal line, a fourth-degree Roman cousin of his incestuous father (Figure 24).



Let us note immediately that if this incestuous child is a girl, and her filiation link with the incestuous father is completely unknown, within a system that permits marriage between such cousins, a repetition of the incest is possible, this time between father and daughter⁹³. This is the consequence of the failure to establish the dual filiation link of the incestuous child. This creates situations that I would call 'Oedipal', in the sense that all or some of the participants in the family drama may be unaware of what is unfolding in terms of

⁹³ Father and daughter in biological terms, not in legal terms.

biological reality behind the façade of acknowledgements and presumptions, if the family secret is not properly ‘maintained’. Through the other parental line, via his father, the incestuous child would have his own mother as his great-aunt. And if we now take the incestuous father, the nephew, as a reference point, from his perspective in the line of descent through his incestuous child, he forms an alliance with his aunt, and her father—his stepfather, consequently—turns out to be, in the line of ascent, his grandfather. One step further and it is his own mother or father who, as the brother or sister of his aunt by marriage, also happens to be his sister-in-law or brother-in-law. Let us briefly mention, without elaborating, the hypothesis of third-generation incest with the great-aunt, a fourth-degree collateral relative. One could thus extend the analysis degree by degree indefinitely.

Regime

Marriage between an aunt and her nephew is considered a sacred union in Zoroastrianism and is still practised today in societies of Zoroastrian origin, as well as in Persian communities that were formerly Zoroastrian⁹⁴. However, we have not verified whether this applies equally to both paternal and maternal aunts. Roman law, as we have seen, distinguishes between the two prohibitions, listing them one after the other (*amita* then *matertera*). The Qur’an also prohibits them, but in the reverse order (‘your maternal and paternal aunts’ – Qur’an, 4:23). Whereas the French

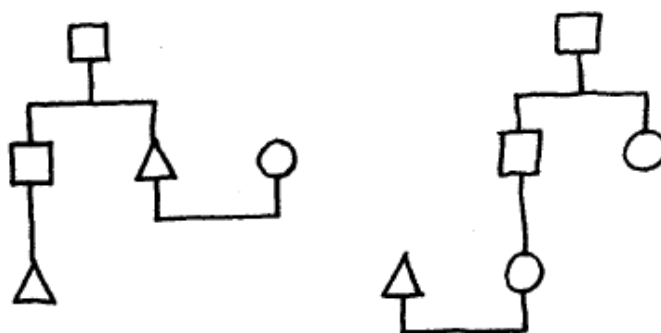
⁹⁴ TILLION, *op. cit.*, *loc. cit.*; VARENNE, *op. cit.*, *loc. cit.*, does not mention this case.

Civil Code indiscriminately ‘prohibits’ marriage between an aunt and her nephew (Civil Code, Article 163). It is first of all noteworthy that this prohibition is among those that may be lifted for serious cause by the President of the Republic, without any further condition; but secondly, and more importantly, that even in the absence of marriage in the case of an incestuous birth, there is no obstacle to the establishment of the dual filiation link (Civil Code, Article 310-2).

FIFTH CASE: THE UNCLE’S WIFE
& SIXTH CASE: THE WIFE’S AUNT

Concept

With the parent’s spouse, that is to say, for the nephew, his uncle’s wife, and with the spouse’s parent, that is to say, his wife’s aunt, man and woman are only three degrees apart; but let us make it clear that this is through marriage, in other words because they take the place of their respective spouses—either the uncle or the niece—(Figure 25).



25

The man, by taking the place of his wife, is related by marriage to her aunt; the woman, by taking the place of her husband, is similarly related to his nephew.

Legal regime

Under our laws, there is no longer any prohibition on these cases of affinity, whether in terms of marriage or the establishment of a common parentage with a child. Nevertheless, the Criminal Code, whilst not prohibiting the relationship as such, regards it as incestuous in cases of sexual minority and lack of consent (rape or sexual assault), and where there is authority over the victim (Criminal Code, Article 222-31-1).

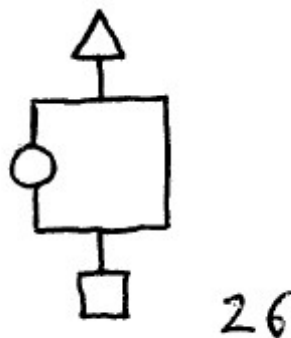
CHAPTER VII

DAUGHTERS AND NIECES

SEVENTH CASE: THE DAUGHTER

Concept

The daughter is her father's direct descendant in the first degree of the Roman system and belongs to the first canonical generation. The analysis we developed for the case of the mother and son can be applied *mutatis mutandis* to the case of incest between father and daughter (Figure 26).



Thus, the father of the child born of this union will also be her maternal grandfather, and her mother will be her full sister, and so on.⁹⁵

⁹⁵ See Chapter V *above*.

Legal regime

This prohibition presents, in Roman law, a case concerning adoption and emancipation that highlights its significance. It is therefore a distinctive feature of incest between father and daughter since, as is well known, in Roman law a woman cannot adopt. Indeed, adoption consists of placing another person under one's *patria potestas*. Yet only a man can exercise this *potestas* (provided, as we have seen, that he himself, through succession upon death or through emancipation, has been released from the *potestas* of another). The *pater familias*, thus defined, holds under his authority all male and female descendants, excluding those who have been emancipated or daughters married *cum manu*, but including foreign daughters married *cum manu*, and therefore including adopted sons and daughters. It is through adoption that one can speak of a purely agnatic and legitimate filiation link of belonging to the *familia*, disregarding the cognatic and natural filiation link. Between the adopted child and their adoptive parent, the filiation link is agnatic; it is not cognatic. The child remains blood-related to their natural parents, where they have any. Conversely, when a member of the *familia* by blood leaves it through emancipation, they remain a natural child of their parent. The difficulty in expressing this idea gives rise to a discussion regarding the term 'agnation'. Some jurists consider that the emancipated person is no longer bound by agnation, because they understand this to refer solely to affiliation with the *familia*. But if agnation is understood as descent through the male line, it is clear that the emancipated person remains an agnate; and as proof of this, in the

inheritance of heirs outside the *familia*, a distinction is made between agnates (who inherit) and cognates (who do not inherit). Let us leave this dispute aside for now, having raised it merely to clarify our terminology, and consider the case of the adopted daughter.

As soon as the daughter is adopted, and as long as she remains under *potestas*, the prohibition on incest is not in question. Marriage to her adoptive parent is prohibited, as is the establishment of a common filiation with a natural child. The question arises only in the case of the emancipation of a daughter who had previously come under *potestas* through adoption⁹⁶. This means that the person who entered the *familia* leaves it. Do marriage or common parentage then become possible? Can one, thanks to emancipation, marry the woman who was, for a time, merely one's adopted daughter? The Romans answer no⁹⁷. Let us bear this case in mind because the dispute will continue with that of adoptive brothers and sisters.

In anthropology⁹⁸, in history and in ancient religions⁹⁹, there are a few exceptions to the prohibition of incest between father and daughter. In Egypt during the 18th Dynasty, Pharaoh Amenhotep III (c. 1403–1353/52) had a daughter, Satamon, whom he married as his seventh wife and who bore him his successor, Amenhotep IV–Akhenaten. The latter married Nefertiti, who bore him

⁹⁶ This could also be the case with the emancipation of the adoptive father by the grandfather.

⁹⁷ GAIUS, *Institutes*, I.59; *Epitome of Gaius*, 1.4.1; JUSTINIAN, *Institutes*, 1.1.10.1.

⁹⁸ MURDOCK, *op. cit.*, the Azande, p. 31, the Thonga, p. 32.

⁹⁹ The sacred Zoroastrian or Mazdean marriage already cited, TILLION, *op. cit.*, p. 121, VARENNE, *op. cit.*, pp. 67–68.

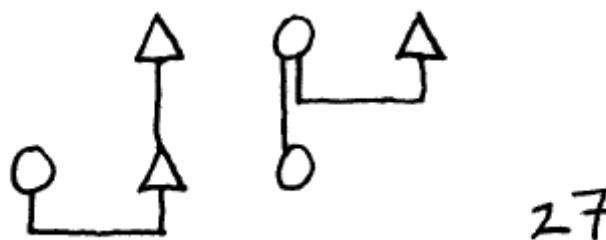
Ankhesenpaaton, whom he in turn married as his fifth wife¹⁰⁰. The Book of Leviticus, with its meticulous prohibitions, makes no mention of incest with one's daughter. It is not impossible that Eve, the flesh of Adam's flesh, was conceived as his daughter, and that consequently, sexual relations with a daughter have something primal about them (see Figure 17 *above*).

EIGHTH CASE: THE DAUGHTER-IN-LAW

& NINTH CASE: THE STEPDAUGHTER, DAUGHTER OF THE BRIDE

Concept

As the spouse of the parent, the son's wife is called a daughter-in-law, *nurus* in Latin, whose husband is the father-in-law. As a relative of the spouse, the wife's daughter is properly called a stepdaughter, *privigna* in Latin, whose husband is the stepfather. Justinian states that they take the place of a daughter (Figure 27).



As for the daughter-in-law, one might even say that she sometimes takes the place of a granddaughter: in inheritance law, a daughter married *cum manu* is treated as her husband's daughter. Regarding the order of relatives by marriage, Justinian places the stepdaughter

¹⁰⁰ TILLION, *op. cit.*, p. 72.

first and the daughter-in-law second; Gaius places the daughter-in-law second and the stepdaughter third. The logic behind Justinian's classification is based on analogy either with the daughter (stepdaughter and daughter-in-law) or with the mother (stepmother and mother-in-law), whereas Gaius distinguishes between the descending generations (stepmother and daughter-in-law) and the ascending generations (stepdaughter and mother-in-law).

Rules

In Roman law, the prohibition that applies to the daughter also applies to the daughter-in-law and the stepdaughter; but there was debate over whether a man could marry the daughter born of his divorced wife's second marriage, since she is not his stepdaughter; Julian was opposed to this, arguing that the son's fiancée is not a daughter-in-law either, and yet she is prohibited¹⁰¹. In French law, these are relative prohibitions (Civil Code, Article 161). The marriage may take place by dispensation (Civil Code, Article 163) and there is no obstacle to the establishment of the natural parent-child relationship (Civil Code, Article 310-2).

TENTH CASE: THE NIECE

Concept

As the daughter of a brother or sister, the niece is related at a collateral distance of three Roman degrees and two canonical

¹⁰¹ JUSTINIAN, *Institutes*, 1.1.10.9.

generations. She is of the same generation as the daughter. We have seen that Roman law specifies that the aunt takes the place of the mother. It does not do so for the niece, who may nevertheless be regarded as taking the place of the daughter. Here, guardianship could support this idea, as this role—which consists of replacing the father—naturally falls to the uncle, the father’s brother. Furthermore, levirate marriage, which we shall discuss later, could already be invoked here¹⁰².

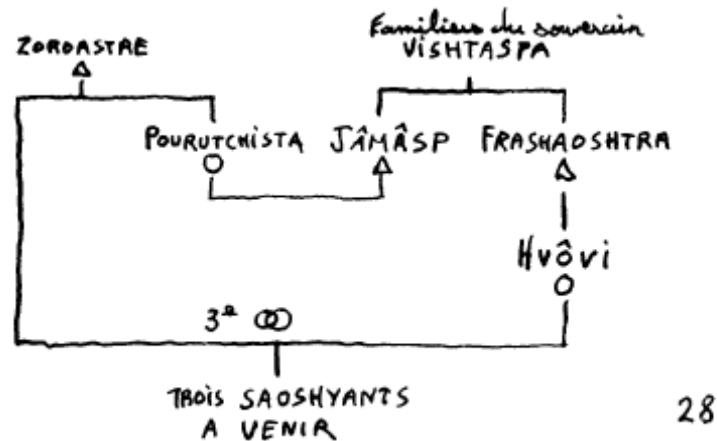
Regime

A distinction must be made between the niece who is the daughter of a brother and the niece who is the daughter of a sister. It is with the niece who is the daughter of a brother that the Zoroastrian sacred marriage is concerned¹⁰³. It is worth noting that Zoroaster married Hvôvi, the niece (daughter of a brother) of his son-in-law, in his third marriage (Figure 28)¹⁰⁴.

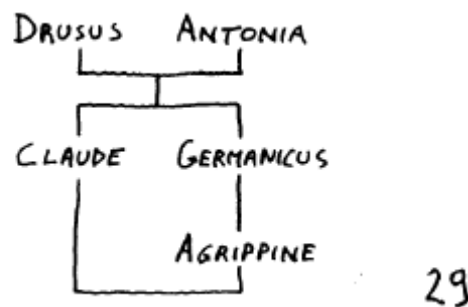
¹⁰² See below Chapter VIII, 14^e case, *regime*.

¹⁰³ TILLION does not elaborate on the distinction, whereas VARENNE, *op. cit.*, pp. 67–68, appears to do so when referring to an uncle and niece ‘of the same blood’.

¹⁰⁴ Henry CORBIN, *In Iranian Islam: Spiritual and Philosophical Aspects. 2. Sohravardî and the Platonists of Persia*, Paris, Gallimard, 1971, p. 51 note 60.



Under Roman law, this marriage would have been permitted to allow Emperor Claudius to marry Agrippina, the daughter of his brother Germanicus (Figure 29).

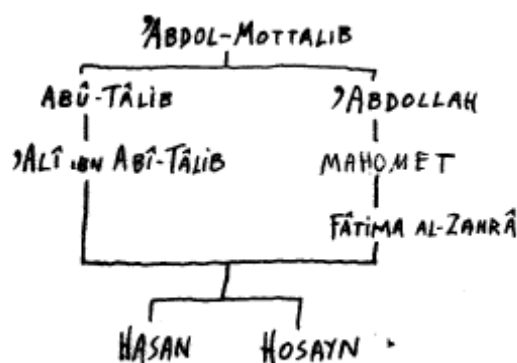


The rule is mentioned in the year 178 AD by Gaius. But by 320, in *the Epitome*, there is no longer any mention of it; the definitive repeal of this provision is thought to date from 342¹⁰⁵ and Justinian's *Institutes* make no mention of it whatsoever. Yet the practice is still widespread today in the East. Not uniformly, but amongst certain Semites, Jews, Christians or Muslims¹⁰⁶. Eastern Christians,

¹⁰⁵ GIRARD, *Manuel élémentaire de droit romain*, 8th edition, Paris, Rousseau, 1929 (reprinted Paris, Dalloz, 2003), p. 173.

¹⁰⁶ TILLION, *op. cit.*, p. 71.

particularly in Lebanon, easily obtain dispensations from their clergy¹⁰⁷. The Roman prohibition on marriage to one's niece (the daughter of one's sister) is said to have been established by imperial constitutions (a Constitution of Diocletian, dated 295, is cited). In 314, the second canon of the Council of Neocaesarea prohibited marriage between an uncle and his niece, apparently without distinguishing between a paternal or maternal uncle. Justinian saw fit to specify that it is even forbidden to marry the granddaughter of a brother or sister *quamvis quarto gradu sint* (even if they are fourth cousins): let us note this phrase, which was to have a famous destiny. The Qur'an expressly prohibits both marriages (to a brother's daughter or a sister's daughter). It is worth noting that Ali, the son-in-law of the Prophet Muhammad, was his cousin (Figure 30).



During the preparatory work on the French Civil Code, it was argued that the reason prohibiting marriage to an aunt—namely, the conflict between the respect due to the aunt and the respect due to the wife—did not apply to marriage to a niece, since in

¹⁰⁷ *Op. cit.*, text and note pp. 121–123.

the latter case there is a harmony between the respect due to the uncle and the respect due to the husband. The Code prohibits such a marriage, but this prohibition may be lifted for serious reasons by the President of the Republic (Civil Code, Article 163); however, the establishment of dual filiation is not prohibited.

ELEVENTH CASE: THE WIFE OF THE NEPHEW

& TWELFTH CASE: THE WIFE'S NIECE

As regards affinity, the uncle appears to be able to marry his nephew's spouse, his niece by marriage, without hindrance, and no prohibition seems to prevent a man from marrying his wife's niece. It should be noted, however, that at the end of ^{the 4th} century, in the East, a council prohibited the marriage of a widower to the daughter of his predeceased wife's brother.

CHAPTER VIII

SISTERS

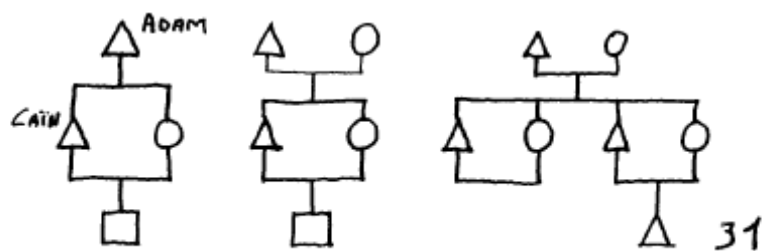
THIRTEENTH CASE: THE SISTER

Definition

The sister is a collateral relative of the second Roman degree and of the first canonical generation. The common parent, father or mother, is the immediate ascendant of a brother and a sister. If we consider the case from the perspective of the child born of this incest, following first one parental line and then the other, we can superimpose two loops. This child has a father, and this father himself has a father who is consequently the child's paternal grandfather. This grandfather has a daughter; this daughter is therefore the child's paternal aunt. The children this woman has had elsewhere are, still following the same line of thought, this child's cousins. First loop. Let us start again from the child. He has a mother, this same woman, who is both paternal aunt and mother. The child's cousins are therefore also his maternal siblings. His mother has a

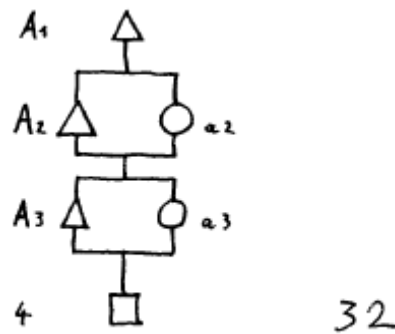
father, who is thus the child's grandfather on both the paternal and maternal sides. And this grandfather had a son, the child's father and maternal uncle, whose other descendants are both full siblings and cousins of the same child. In other words, the child born of incest between a brother and sister would have only two grandparents who married their son and daughter to one another.

Canon law is based on a passage from *The City of God* in which Saint Augustine of Hippo explores the consequences of incestuous marriage between a brother and a sister, drawing on the example from Genesis. In the first generation descended from Adam and Eve, their sons and daughters (as assumed by interpreters) had no choice but to marry one another. Augustine then develops his analysis. Direct parents are also step-parents. Indeed, for Cain, Adam is first and foremost a father, but, through Adam's daughter who married Cain, Adam is also Cain's stepfather. The same reasoning applies to the married sister, and again with Eve (Figure 31).



Augustine then explores the consequences of successive incestuous unions over two generations. 'A single man,' he writes, 'would have been, to his children—brothers and sisters married to one another—father, father-in-law and uncle'. Here he considers the links between

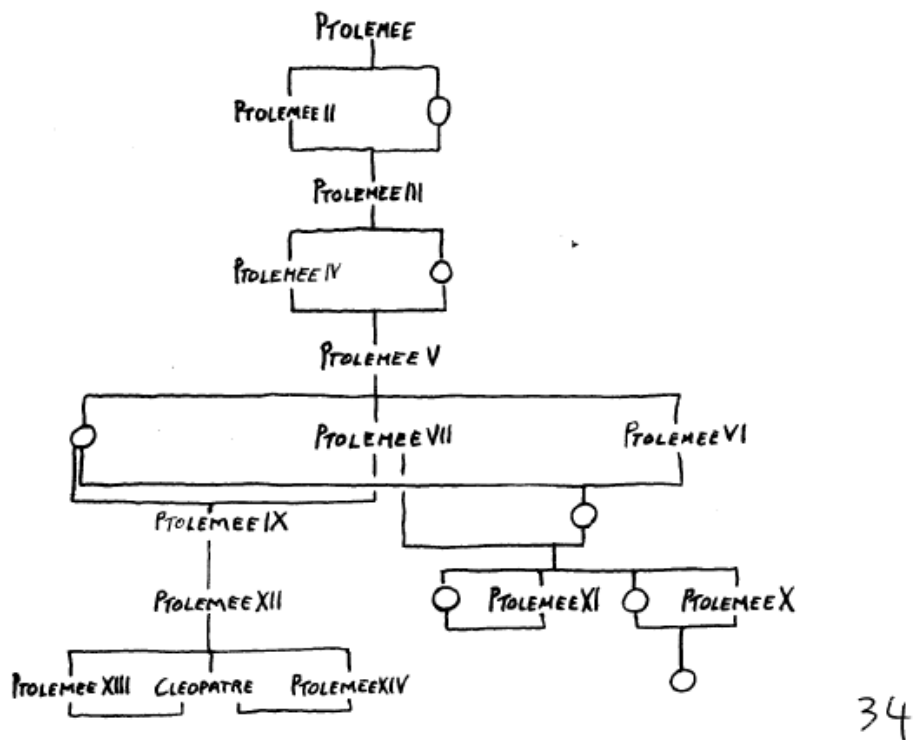
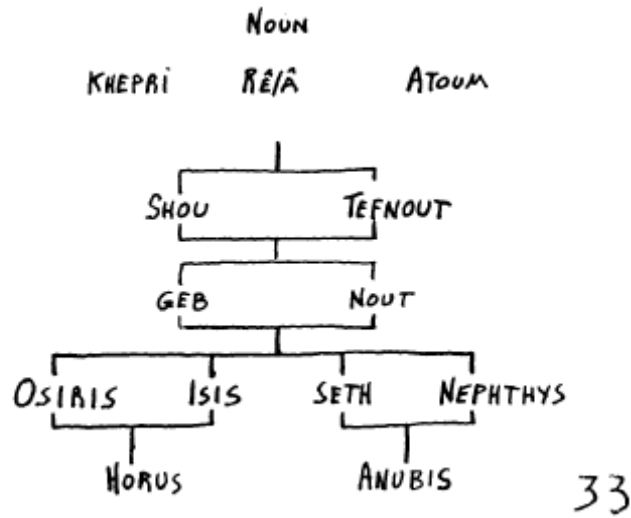
Cain, the man of the first incestuous generation (that is, placed in the second generation counting from the common ancestor), and his own son (whom we count as belonging to the third generation, see Figure 32).



Firstly, this man of the second generation is *a father*, in that the man of the third generation is his own son in the direct line. Secondly, this same man of the second generation is also *a father-in-law*, a relative by marriage to the same man of the third generation, since the latter has married his daughter. Finally, this man of the second generation is also *an uncle*, a third-degree collateral relative of the man of the third generation, who is his sister's son. Augustine then examines the case involving the relationships between the man of the third generation and his sister and wife, who is also his cousin.

Regime

The Egyptian case is well known. The Pantheon records a succession of marriages between brothers and sisters spanning three generations (Figure 33), and this is observed *in practice* with the Ptolemies (Figure 34).



Roman law prohibits such marriages, whether the brother and sister are full siblings or merely half-siblings ⁽¹⁰⁸⁾. If one considers only the

¹⁰⁸ Zoroastrianism advocates marriage between half-siblings (VARENNE, *op. cit.*, p. 68).

criterion of clan membership, the prohibition is easily explained for full siblings, but the case of half-siblings is more difficult to understand, since under Roman law they do not belong to the same clan. Yet it is membership of the same clan that appears to be decisive, as demonstrated by the case of adoptive brothers and sisters.

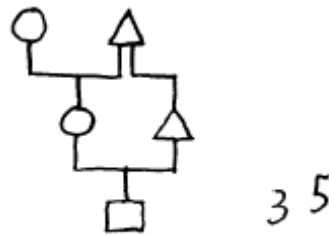
In Roman law, marriage between adoptive brothers and sisters is prohibited, just as it is between adoptive parents and children. Although they are not of the same blood, they belong to the same family. However, unlike in the case of parents, when one of the two leaves the family through emancipation, marriage becomes permitted¹⁰⁹. The Law then specifies that all obstacles are removed when both are emancipated, which, it should be noted in passing, seems to reflect the persistence of a hint of an obstacle in the case where one of the two is still in the family. To our knowledge, no distinction is made depending on whether the emancipation concerns a natural child or an adopted child. Justinian then considers the case of someone wishing to adopt their son-in-law¹¹⁰. This is a significant scenario when a man has no son – in ancient Greek law, this concerns the daughter's epiclesis¹¹¹. His daughter is married *sine manu* (presumably, because *cum manu* she would be

¹⁰⁹ For the specific case of the marriage of Octavia and Nero, children of Emperor Claudius, see MOREAU, *op. cit.*, p. 277, note 24.

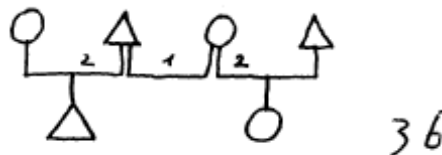
¹¹⁰ Cf. Augustus, who adopted Tiberius, who had divorced his daughter Julia.

¹¹¹ BENVENISTE, *op. cit.*, p. 272; cf. the Law of Gortyna, Articles 36–49. The case is well known in anthropology as that of 'marriage by affinity' (see Emmanuel TODD, *The Origin of Family Systems*, Vol. I, Paris, Gallimard, 2011, pp. 486–487).

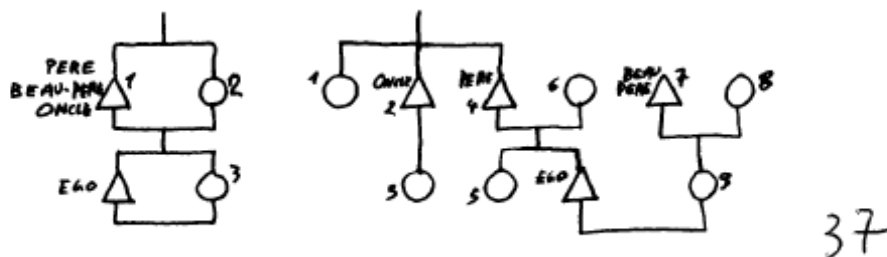
released from her father's authority and, in our view, the son-in-law could be adopted). The adoption of the son-in-law is prohibited because the daughter and her husband would thereby become adoptive brother and sister, which would create a situation of incest (figure 35).



The solution consists of a two-stage process. First, the married daughter must be emancipated, thereby leaving the *familia*; only then can the son-in-law be adopted, entering the *familia* from which his wife has departed. It should be noted that whilst in a *cum manu* marriage the wife does indeed enter her husband's *familia*, she does so as his daughter and the sister of his own children. But in Roman law, according to Justinian's *Institutes*, in the case of a double remarriage following divorce, the son from the second marriage of a divorced man may marry the daughter from the second marriage of the woman divorced from his father (Figure 36).



In Augustine's view, men must seek peace, and kinship is a source of charity. To combine two or more kinship ties in a single person is to unnecessarily confine charity to just two individuals, whereas it could have extended further, and with it, harmony amongst humanity. Following the example he gave earlier, the prohibition against incest allows the same man to form bonds with three other men, whereas otherwise he would have been bound to just one: father, stepfather and uncle (Figure 37). And, Augustine concludes, instead of connecting a person with only three others, this prohibition connects them with nine – he does not count the grandparents (same Figure 37).



Augustine deduces from this that such marriages are forbidden. Only a state of necessity could have justified and authorised the violation of this prohibition by our first parents. In this instance, it was necessary for the survival of the human species that, in the first generation, brothers should marry their sisters. But now that reason no longer applies, and the prohibition is fully in force. The Qur'an forbids marriage to a sister, even if she is only a foster sister. Article 162 of the French Civil Code prohibits such a marriage without a dispensation (Civil Code, Article 164), and from a child's perspective,

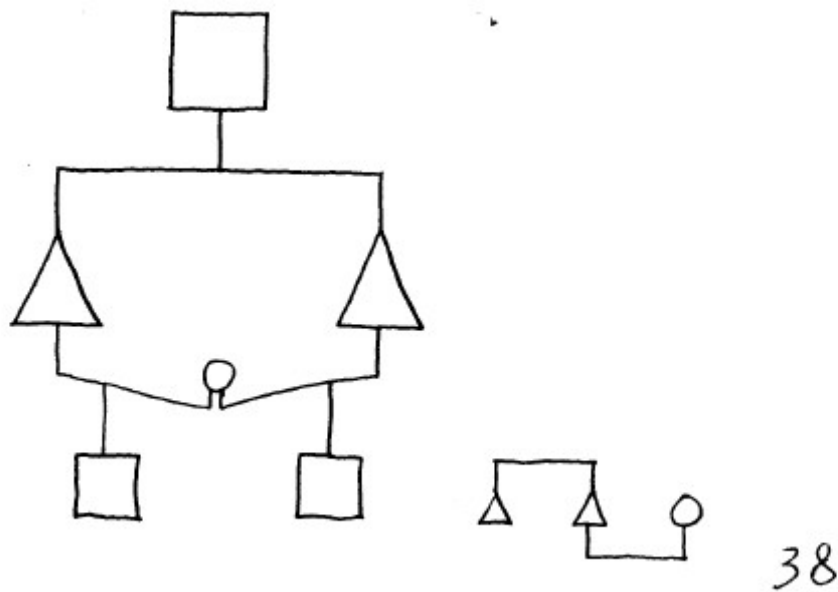
Article 310-2 prohibits the establishment of filiation with both parents at the same time.

FOURTEENTH CASE: THE SISTER-IN-LAW, WIFE OF THE BROTHER

Concept

The brother's wife, the sister-in-law, *fratrissa* in the language of canon law¹¹², presents the case of a man, *levir* in the same language, faced with his brother's wife. In a monogamous context, this can only refer to a woman who, whether divorced or widowed, was first married to one of the two brothers. The question arises as to the lawfulness of the second marriage and, in the event of the birth of a child, the establishment of the child's dual filiation. For this child born of the second marriage, his paternal uncle, his father's brother, would also be his step-uncle through his mother, having been her first husband. Moreover, as the wife of this same paternal uncle, the child's mother would also be his aunt by marriage. The children of the first and second marriages would be brothers, sisters, or brother and sister through their mother, and cousins through their respective fathers (Figure 38).

¹¹² Decree of Gratian, Case 35, Question 5, Canon 5.



Legal regime

To our knowledge, such cases are not provided for in Roman law any more than they are in the French Civil Code. During the preparatory work, it was decided that it was in the best interests of the child (from the first marriage) not to prohibit such unions, as the child finds a substitute for his late father in his uncle, the latter's brother¹¹³. On the other hand, canon law devotes considerable attention to them; this may be due in particular to the place held by levirate marriage in the Old Testament.

Levirate marriage must not be confused with the case at hand, namely marriage to a sister-in-law or the establishment of a filiation link with a child born of a union with her. Here again, it is important to distinguish clearly between marriage and filiation, on the one hand, and the fact of biological procreation, on the other.

¹¹³ FENET, *ibid.*

Levirate marriage is found in several civilisations, and anthropologists have noted the existence of the institution in many primitive societies. For example, a man may – or more often must – marry his sister-in-law’s widow, but solely for the purpose of producing offspring for his late brother. He does not marry his sister-in-law in his own name. The child born of this exclusively carnal union is not considered to be the offspring of the man who fathered him, but rather of the latter’s brother, the late husband of his mother. This is a case of posthumous birth¹¹⁴. In other words, the child’s biological father, as the brother of the legitimate father, is merely his paternal uncle. The institution is a classic in anthropology¹¹⁵. This is the well-known case of Onan, who was required to produce an heir for his deceased brother¹¹⁶. Jules Michelet, of the generation of pioneers in anthropology and mythological studies, noted this practice in the Laws of Manu, which at the time advocated intercourse without excessive passion and with physical contact reduced to the bare minimum¹¹⁷. In the Egyptian pantheon, this is the case of Nephthys, wife of Seth, who, faced with his infertility, fraudulently shares the bed of Osiris (see Figure 27 above). From levirate marriage to polyandrous group marriage, there is a nuance that depends solely on the status

¹¹⁴ VIGUIER, *op. cit.*, p. 70.

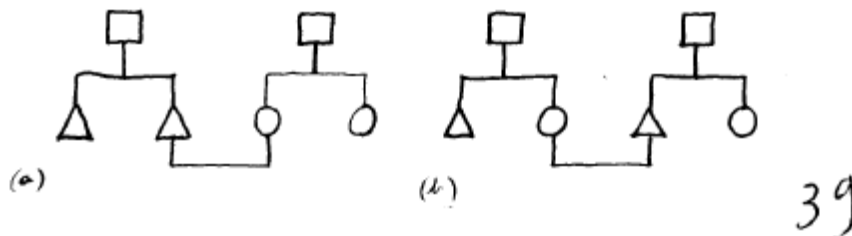
¹¹⁵ Lucien LÉVY-BRUHL, **The Primitive Soul** (Alcan, 1927), Paris, PUF, 1996, ‘The Quasi-Identity of Brothers’, pp. 102–103.

¹¹⁶ Genesis 38:8; cf. Deuteronomy 25:5 and Zohar I 91^b–92^a.

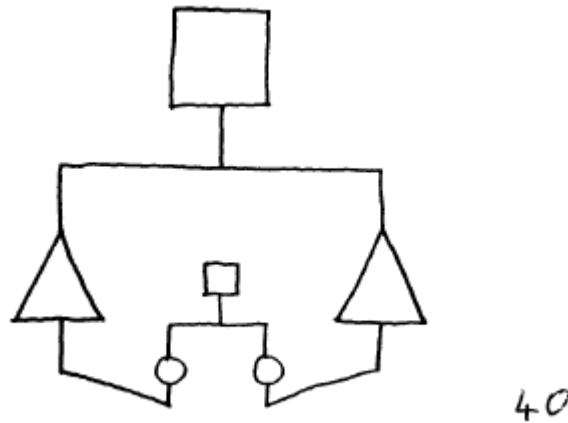
¹¹⁷ Jules MICHELET, *Origines du droit français*, Paris, Hachette, 1837, p. 51 (quoting *A digest of hindu law* [Cambridge, 1801], II, 468).

conferred upon the eldest son. But if the man marries his sister-in-law, we have indeed moved beyond the framework of procreation for another and return to our case of marriage and filiation.

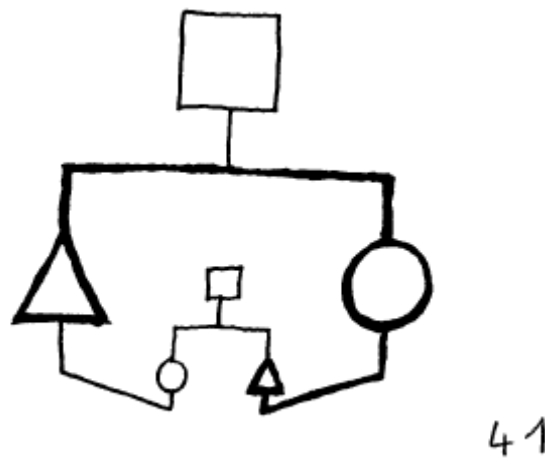
It adds a further layer of complexity to raise the question of union with the relative of the parent's spouse, whether it be the sister of the brother's wife (a), or the sister of the sister's husband (b) (Figure 39).



a) The case of the brother's wife, involving what we might call parallel sibling groups, directly evokes the institution of group marriage when two brothers marry two sisters. But in a monogamous context, this is the case of two brothers, one of whom—for example, the elder—has married one of two sisters, say the elder sister, and the question arises as to whether the younger brothers may in turn marry, with the consequence that the elder brother will have his own brother as a brother-in-law by marriage (Figure 40).



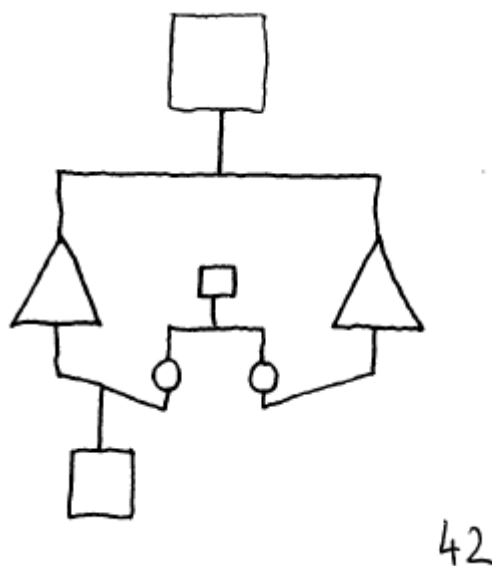
b) As for the case of cross-sibling marriages, a brother and his sister marry a sister and her brother respectively. This latter situation involves a man, his sister and his brother-in-law, which Lévi-Strauss regarded as ‘the kinship element’, the simplest kinship structure¹¹⁸ (Figure 41 – the famous structure is shown in bold).



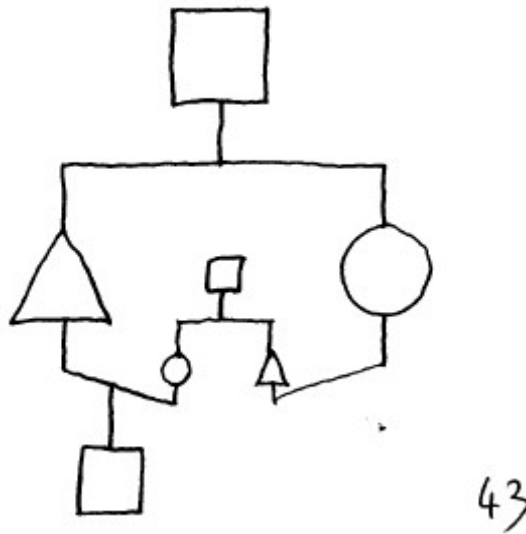
When reasoned within the framework of Christian logic—that is, if one considers that, once married, a man and a woman become one flesh—such multiple unions are naturally forbidden.

¹¹⁸ LÉVI-STRAUSS, *op. cit.*, 1958, pp. 56–60, 2nd edition 1974, pp. 62–67.

Indeed, the brother's wife (the sister-in-law) is already like a sister; consequently, the same applies to the sister of this sister-in-law. Similarly, the husband of a sister is, by marriage, almost a brother, and his sister is therefore indeed a sister. This fourth-degree kinship is thus historically subject to prohibitions¹¹⁹. However, certain primitive kinship systems prohibit marriage between parallel siblings (two brothers and two sisters), but on the contrary encourage it between cross-siblings. For a child born of these forms of incest, in the case of two brothers the paternal uncle will be related to the maternal aunt (Figure 42a), and in the case of a brother and sister the paternal aunt will be related to the maternal uncle (Figure 43).



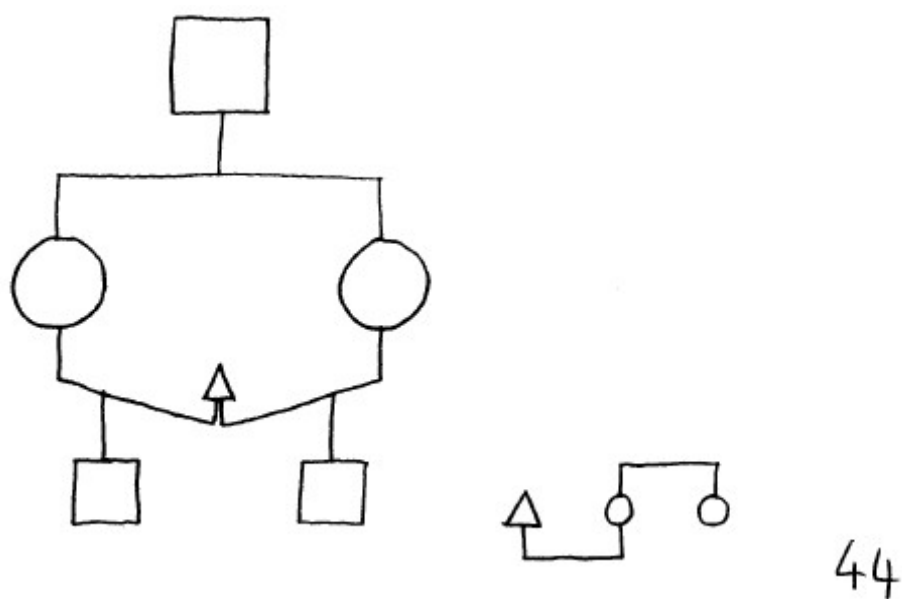
¹¹⁹ TILLION, *op. cit.*, p. 123 for Greece, with reference to the Semitic era.



To consider the relationships between the descendants of these unions on both sides would be to address the case of cousins. However, this case is the subject of the next chapter and will, in a sense, occupy us until the end of this book. Nevertheless, it was important to note that it primarily involves brothers and sisters.

FIFTEENTH CASE: THE SISTER-IN-LAW, SISTER OF THE WIFE

For the record, regarding the case of the sister-in-law who is a relative of the spouse, that is to say, the wife's sister (Figure 44), by the end of the 4th century AD, in the East, the Church prohibited a widower from remarrying his deceased wife's sister; and in a polygamous context, the Qur'an prohibits such a union when it is concurrent (Qur'an 4:23).



We also mention, for the record, the case of the wife of the wife's brother, the spouse of the spouse's parent (Figure 45).



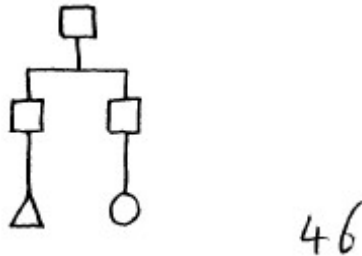
CHAPTER IX

COUSINS

SIXTEENTH CASE: THE COUSIN

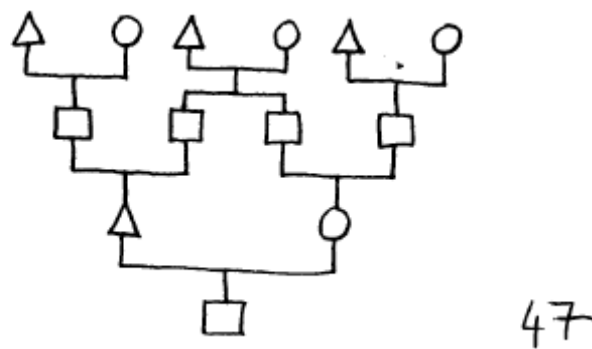
Concept

Cousins share a grandparent, a second-degree ascendant of whom they form the second generation (Figure 46).

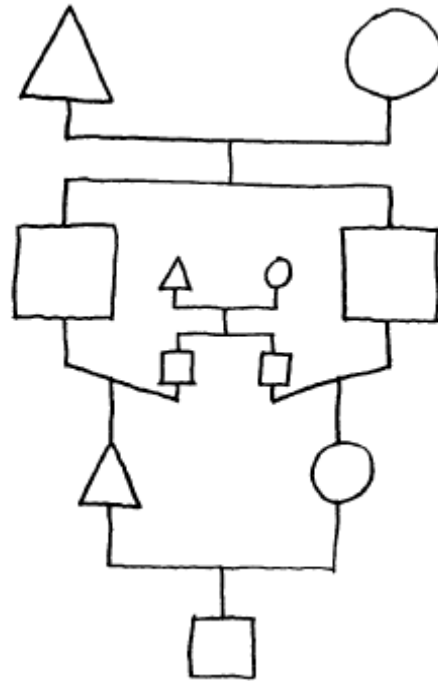


A cousin is a relative in the fourth Roman degree and in the second canonical generation. A cousin is therefore a collateral relative who, like a sister, is of the same generation as the reference person. The parent of one cousin and the parent of the other are brothers, sisters or a brother and sister (hence four cases), so that by likening the child to their parent, cousins can be regarded as analogous to

brothers and sisters. In the event of marriage to a cousin, one of the wife's parents – the step-parent – will also be the uncle or aunt of her husband. And the child born of this union will indeed have four grandparents, but as at least two of these will be brothers, sisters or a brother and sister, he will not have eight great-grandparents, but six (see Figure 47).



One of the child's paternal great-grandparents will also be their maternal great-grandparent. Consequently, their paternal great-uncle or great-aunt will also be their maternal grandparents, and their own mother will, through the paternal line, be their aunt, a fifth-degree collateral relative. When the child's grandparents are merely uterine or consanguineous siblings, there are only seven great-great-grandparents, but if they are full siblings there are six. And if all four grandparents were, as in the case just described, the product of unions between siblings, the child would then have only four great-great-grandparents (Figure 48).

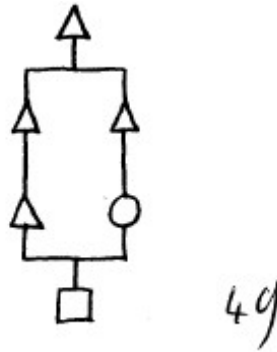


This is how the case of incest with a cousin must be determined, as it raises the question for the incestuous child of this great-grandparent common to both of his parental lines.

Depending on whether the children of this great-grandparent of the child born of incest were brothers, sisters, or a brother and a sister, the situation will be very different. We could further refine this, as we would need to distinguish between uterine, consanguineous, or full siblings. But to simply present the four classic cases, it will suffice to break it down as follows.

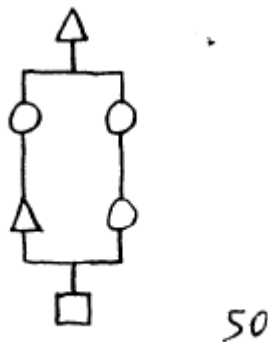
It may involve *two brothers*, who consequently marry their children. Anthropology identifies this case as that of the *patrilateral parallel cousin*. Two collateral relatives born to parents of the same sex are said to be parallel, whilst those born to parents of

different sexes are said to be crossed. The wife's father is also the brother of the husband's father (Figure 49).



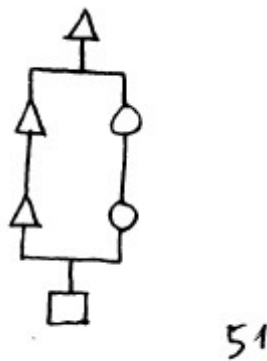
Here, for the cousin, the paternal uncle (*patruus*), brother of his own father, is also the father-in-law, father of his wife, and for the incestuous child he will be both paternal great-uncle and maternal grandfather.

This may involve *two sisters*, who consequently marry off their children. Anthropology identifies this case as that of the *matrilateral parallel cousin* (Figure 50).



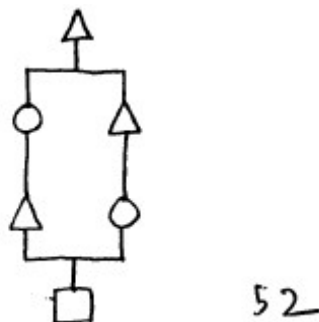
For the cousin, the maternal aunt (*matertera*) is also the stepmother. And for the incestuous child, she will be both paternal great-aunt and maternal grandmother.

Finally, it may involve a brother and a sister, in which case anthropology refers to their children as *cross-cousins*, according to two distinct scenarios. If it is the man, the reference person, who is descended from the brother, and his cousin is therefore descended from the sister, she is referred to as his *patrilateral cross-cousin* – patrilateral in relation to the cousin's father (Figure 51).



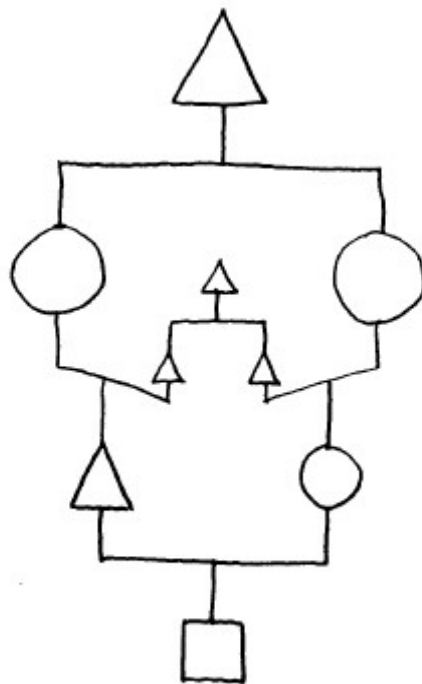
For this cousin, his maternal aunt will also be his stepmother, and she will furthermore, for the incestuous child, be both paternal great-aunt and maternal grandmother.

Finally, if, on the contrary, the man is descended from the sister, and consequently it is his cousin who is descended from the brother, we then speak, with reference to the mother of this cousin, of a *matrilateral cross-cousin* (Figure 52).



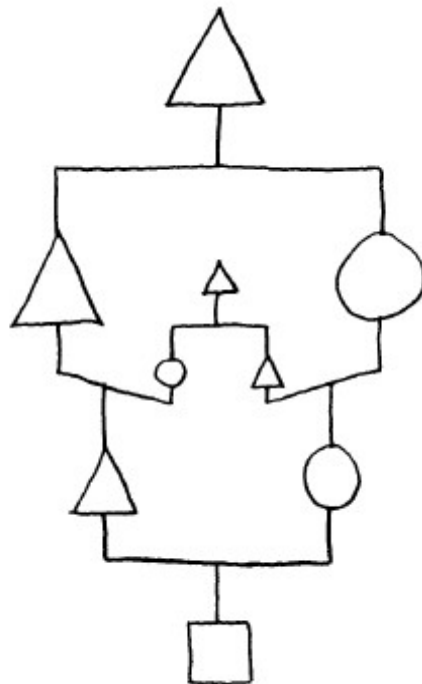
It is in this case that the cousin's maternal uncle is also his stepfather, and that the incestuous child's great-uncle is his maternal grandfather.

In the scenario we mentioned where the incestuous child would have only four great-grandparents—that is, when two sets of siblings have married and the parents are double cousins, both through their father and through their mother—let us note clearly that there can only be two possible scenarios. First, two brothers and two sisters have married. In this case, the daughter of one of the two couples and the son of the other are double cousins. The cousin is a parallel relative on both the maternal and paternal sides (Figure 53).



53

Or, in the second case, a brother and his sister marry a sister and her brother respectively, and their children are double cross-cousins (Figure 54).



Regime

In Roman law, cousins are not mentioned by Gaius. They are mentioned subsequently, in the West in *the *Epitome** and in the East by Justinian¹²⁰. On both sides, all cases are grouped together to be governed by the same rule, but this is in order to lead in opposite directions. In the West, *the Epitome* sets out a prohibition: *‘for indeed, it is by no means permitted for brothers-in-law or cousins¹²¹ to be*

¹²⁰ For a brief overview of the works mentioned here, see VIGUIER, *Pédophilie, viol et séduction*, Saint Denis, Kontre Kulture, 2009, pp. 35–37.

¹²¹ *Consobrinos*, that is to say, in the ancient sense, cross-cousins, meaning both the daughter of the paternal aunt and that of the maternal uncle. But at the time of *the Epitome*, the term likely

*joined in marriage*¹²² . These are unions that Western Europe has always abhorred, and although the Civil Code no longer prohibits them, they remain forbidden under canon law¹²³ and are condemned by our customs. For the East, however, Justinian's *Institutes* set out a permission: *duorum autem fratrum vel sororum liberi vel fratris et sororis conjungi possunt*¹²⁴ . And the so-called 'Arab' marriage, whether Jewish, Christian or Muslim, refers, as is well known, to the union with the paternal parallel cousin (daughter of the father's brother)¹²⁵ . This is a striking contrast, which needs to be elucidated. It might be clarified by a second, even more powerful contrast with what history and anthropology teach us about primitive kinship systems.

referred more generally to the daughter of the aunt and the daughter of the uncle.

¹²² *Epitome Gaia*, 1.4.6 ("they [marriages] are still forbidden between paternal and maternal first cousins").

¹²³ Code of Canon Law (1983), canon 1091, § 2.

¹²⁴ *Institutes* of Justinian, 1.1.10.4 ("however, the children of two brothers or two sisters, or of a brother and a sister, may marry one another").

¹²⁵ A marriage that neither Leviticus nor the Qur'an prohibits, and which is regarded as ideal. Cf. for Zoroastrianism: VARENNE, *op. cit.*, p. 68.

PART THREE

ANTHROPOLOGY

CHAPTER X

INTRODUCTION TO ANTHROPOLOGY

In stateless societies, the rules regarding incest with a cousin – namely, whether cousins are forbidden and, if so, which ones are not – depend entirely on the kinship system. I use the term ‘stateless society’ to refer to societies that are not without politics, but where the clan, that is to say the family group, is still the sovereign entity. We also speak of primitive, archaic or savage societies to contrast them with civilised society. Morgan worked on a scale and identified a stage of barbarism lying between savagery and civilisation¹²⁶. He saw technical progress advancing hand in hand with rules relating to the family, property and government. Curiosity, and later scientific interest, in societies different from our own dates back to Antiquity. In the West, it developed in the late Middle Ages

¹²⁶ MORGAN, *op. cit.*, pp. 1–18, Chapter 1: Ethnic Periods.

but exploded during the Renaissance with three concurrent movements: 1) self-criticism, as European family, religious and political institutions were the subject of harsh scrutiny; 2) the rediscovery of Greek, Roman and Jewish antiquity, and, beyond that, of ancient civilisations; 3. the discovery of the Americas and of unknown ‘savage’ or ‘barbarian’ societies¹²⁷, which was accompanied by a renewed perspective on Africa, Asia (India and China) and Oceania¹²⁸. The reader must understand that we are situated within the context of a *disputatio* that continues to the present day and that there is a natural continuity between, for example, Alciat, Cujas and Bodin in the 16th century, Hobbes in the 17th century, Montesquieu and Rousseau in the 18th century, and our authors of the 19th and 20th centuries.

Things progress in history from one generation to the next. Montesquieu highlights the importance of the clan among the Romans¹²⁹. All jurists were familiar with the *gens* (the Roman clan), but saw it as a moribund institution in Antiquity – although the French nobility claimed to be direct descendants of the Latin patriciate¹³⁰. Progress in research accelerated first in response to the onslaught of the French Revolution, which sought to dismantle the

¹²⁷ At the time of the discovery of the New World, the rediscovery of Antiquity was very recent and still largely ongoing; the description of the Indians corresponds to the description of barbarians by the Ancients.

¹²⁸ LÉVI-STRAUSS, *Race and History*, Gonthier, 1968; CORBIN, *The Paradox of Monotheism*, L’Herne, 1981 (Biblio essais series, Le Livre de Poche, 1992, p. 178).

¹²⁹ MONTESQUIEU, *The Spirit of the Laws*, Book XXVII, single chapter.

¹³⁰ Karl Ferdinand WERNER, *The Birth of the Nobility*, Paris, Fayard, 1998 (cf. Roberto SAVIANO, *Gomorra*, Paris, Gallimard, 2007, pp. 394–395).

aristocracy through the reform of family law (this dynamic is still at work today), and subsequently to anarchy, for which the family, along with property and power, constituted the prime target. At the beginning of the 19th century, there were the works of the Historical School of Law, in France with Berriat, in Germany with Savigny and then with the Grimm brothers, whose ideas were echoed in France by Michelet¹³¹. The decisive breakthrough came around the turn of the year 1860. In 1859, Charles Darwin's *On the Origin of Species* was published; in 1861, Bachofen's *Mutterrecht* and Maine's *Ancient Law* appeared. Fustel de Coulanges's work *La Cité antique*, which remains fundamental to this day, was published in 1864. But it was the American jurist Morgan who delivered the decisive blow in 1871 with *Systems of Consanguinity and Affinity of the Human Family*. Morgan was a lawyer specialising in Native American affairs and, as a jurist, devoted himself to the study of the tribes into which he eventually became fully integrated.

Having observed a highly organised kinship system among the Iroquois Indians, Morgan launched a global study with the help of correspondents spread across research institutions worldwide. This field of study remains at that stage today. There is no major author (think of Karl Marx and Friedrich Engels, Sigmund Freud, Max Weber) who has not taken account of his discoveries and advances. It took a leap forward with the sinologist Marcel Granet, whom we shall discuss, as well as the ethno-anthropologists Alfred

¹³¹ MICHELET, *op. cit.*, 453 pp.

Reginald Radcliffe-Brown and Claude Lévi-Strauss. The current generation comprises Louis Dumont, Charles-Henry Pradelles de Latour and Maurice Godelier¹³². These are our most recent sources. But above all, this is the body of literature to which I hope this book will introduce my readers. Whether ethnographic, ethnological, sociological, anthropological, economic, legal, geographical or historical, the literature on the subject is already an ocean, and I do not wish to add a single drop of water to it. According to the image provided by Saint Thomas Aquinas, research consists of identifying a spring, from which one can, by gradually expanding, move on to a stream, then a river, and finally a great river, before flowing into the sea. It is simply a matter of familiarising oneself with the topic at hand.

¹³² Update: Laurent BARRY, **La parenté**, Paris, Gallimard, 2008; HÉRAN, *op. cit.*

CHAPTER XI

THE 'HALFWAY' EXCHANGE SYSTEM

Anthropology and history have brought to the fore two concepts that had ultimately disappeared from modern Western society, having been suppressed since the Gregorian Reform by the efforts of the Church first and the State subsequently: the clan and the tribe. It is to the credit of Morgan and Fustel de Coulanges that they immediately drew a parallel between the clan and the tribe described by ethnographers and the *gens* and the tribe in Rome, Greece and the Semitic world of the Bible¹³³. The clan, in the Schmittian sense, is the political unit of the primitive world¹³⁴. It is the group that conceives of itself as indivisible and within which the

¹³³ Numa Denis FUSTEL DE COULANGES, *La Cité antique* (1864), Paris, Flammarion, 1984, Champs series 2009, 24–663 pp.; MORGAN, *op. cit.*

¹³⁴ Carl SCHMITT, *The Concept of the Political: A Theory of the Partisan*, Paris, Calmann-Lévy, 1972, 'Corollary III', pp. 177–181.

distinction between friend and foe is determined¹³⁵. This group is entirely based on descent¹³⁶. Its members are all collateral relatives. What unites them is that they all descend from a common ancestor. And each individual is a member of only one and the same unit. The phenomenon is universal. It can even be observed in the animals closest to us¹³⁷. Chimpanzees live in groups consisting of males and females. At puberty, the female leaves her original group to join neighbouring groups, and new females come from these to become breeders within the group. From male to male, the members of the group are all descendants of the same ancestors.

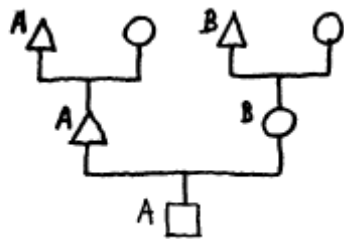
A tribe is a temporary grouping of clans. Trade and marriage bind one clan to another, thereby forming a tribe. If a woman from Clan A marries a man from Clan B, this means that she will be related by marriage to the members of Clan B; and her own parents, who are members of Clan A, will be related by marriage to her spouse. There is affinity. For the child born of this union, there will be two kinship lines: one through the father's lineage and one through the mother's lineage; but it will be necessary to distinguish, starting at this level and working backwards through the kinship, which rule governs clan membership. If the rule is purely and simply patrilineal, the child of the woman from clan A and the man from clan B will be a member of his father's clan, clan B; and if the same rule applies to every generation, whilst his undifferentiated or

¹³⁵ SCHMITT, *op. cit.*

¹³⁶ See *above*, Chapter III.

¹³⁷ ROULAND, *op. cit.*, no. 132, pp. 212–213; GODELIER, *op. cit.*, p. 463.

cognatic kinship includes both his paternal grandfather and grandmother, then their great-grandparents on both sides; by contrast, their *agnatic* kinship comprises only their paternal grandfather, not their paternal grandmother nor her ascendants, and then, in the preceding generation, their paternal great-grandfather, and so on (Figure 55).

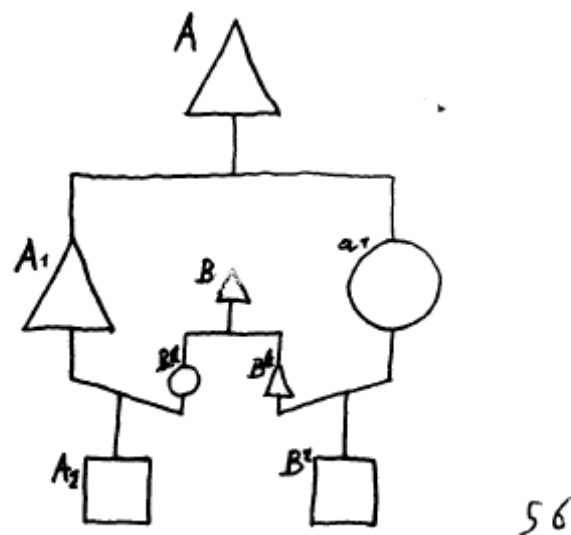


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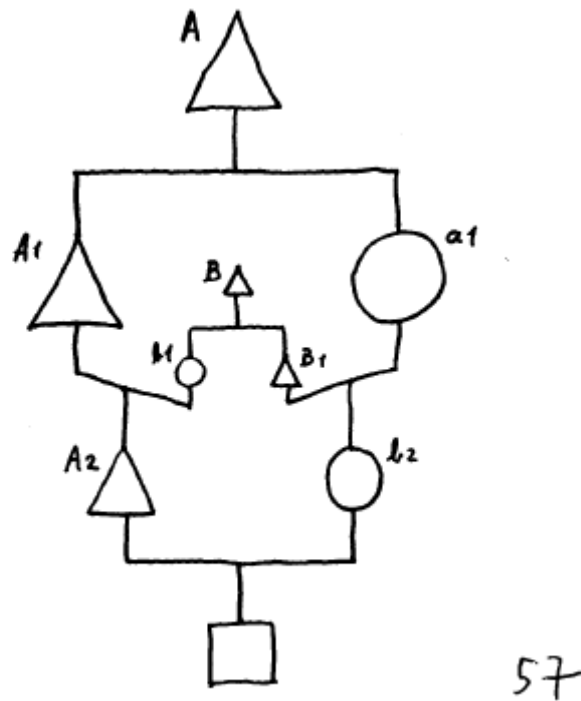
Things would be too simple if they were limited to that. Such a system corresponds to our ideal of the Western family since the Middle Ages. It does not correspond to what has been practised everywhere and throughout human history. The friendly clans, the clans that make up the tribe, are obviously not limited to a single alliance. Even in the case of just two alliances, there is inevitably an incestuous phenomenon, in the broad sense of the word, as we defined it at the start of this study: for a child, their paternal and maternal branches are not merely allied with one another; they are also, at least from the perspective of cognatic kinship, related or related by marriage to one another. We have consistently considered such cases in the first part of this study.

When clans A and B enter into an initial reciprocal alliance, when a daughter of B marries a son of A and a son of B marries a daughter of A—that is, in the case we have seen of the

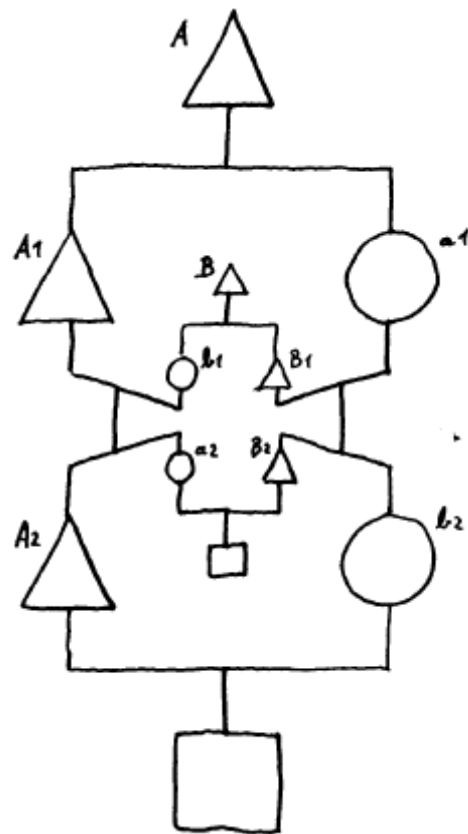
double marriage of a brother and his sister to a sister and her brother—each spouse becomes, through their partner, the in-law of their own brother or sister. In a patrilineal system, the child of son A is a member of clan A, and the child of son B is a member of clan B. They are fourth-degree collateral relatives to one another through both their father and their mother, and second-generation relatives to one another through both their grandfather from clan A and their grandfather from clan B (Figure 56).



This already creates an intertwining between the two clans, as we noted. For the child of clan A, the paternal aunt who is the cousin's mother is also the spouse of the maternal uncle who is the cousin's father. But it is the case of a new alliance in the second generation that takes us further into the system (Figure 57).



The man marries his cousin, and his sister marries her cousin. The child born of this union between cousins sees the paternal and maternal lineages come together, on both sides, through their great-grandparents. The system becomes perfectly clear when the two clans, A and B, renew the exchange with each generation. That is to say, when two couples from the first generation, formed on either side, each have a daughter and a son again (second generation), and each marry their daughter to the son of the other clan (Figure 58).



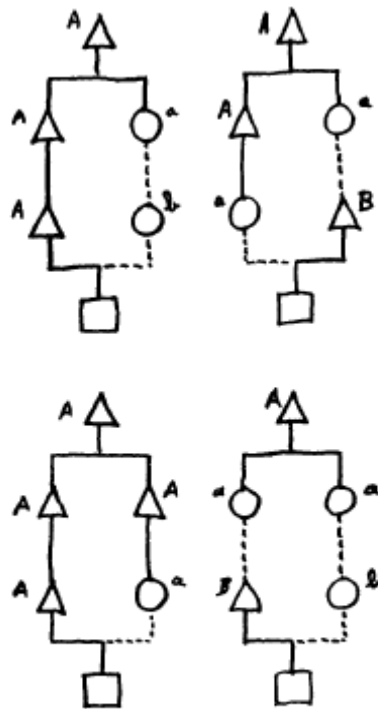
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It is this system, reader! that Granet was the first to understand, not so long ago¹³⁸, and this is what Lévi-Strauss discusses in *The Elementary Structures of Kinship* (1947). The case is found in many societies and these are not forbidden marriages, but rather permitted and even sometimes obligatory. Sons marry in the second generation to a woman who is their cousin both through their father – as the daughter of their paternal aunt – and through their mother – as the daughter of their maternal uncle – that is, as is sometimes said, their ‘bilateral’ cross-cousin. The maternal uncle is also the stepfather and the paternal aunt the stepmother. I must emphasise

¹³⁸ Marcel GRANET, *Chinese Civilisation*, op. cit., pp. 242–253 and *Matrimonial Categories and Kinship Relations in Ancient China*, op. cit.

that this marriage to a cousin who is both the daughter of the paternal aunt and the maternal uncle is not forbidden. And if this marriage is possible, it is because clan membership determines incest, because filiation is not undifferentiated, and because the child can belong to only one clan. When reasoned in terms of agnatic lineages, this cousin is regarded more as a descendant of her father, a member of another clan, than as a member of her mother's clan, which is the same as that to which her husband belongs.

Here we touch upon the heart of our subject, at the point where the rules of marriage and the rules of inheritance intersect. Roman jurists spoke of an *agnatic* bond through the father, and a *cognatic* bond through the mother. The father passes on property, the name and clan membership to both his son and his daughter. The mother, allied with the father, maintains a relationship of a completely different nature with her children. If, in the first generation, a brother and sister cannot marry, it is because both are members of the same clan. But in the second generation, a cousin may marry his cousin provided she is linked to his clan only through the maternal line (Figure 59, assuming a renewal of the marriage between two clans). In both cases where the marriage is permitted, the common ancestor of the two married cousins is not both a blood relative and a relative by marriage; he is one or the other—a blood relative to one and a relative by marriage to the other.



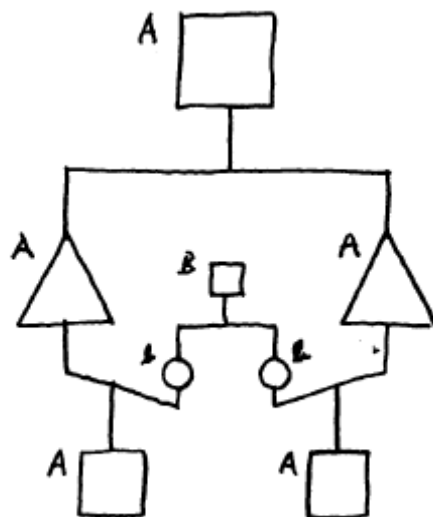
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The children born of this marriage between cousins form the fourth generation, starting from and including the grandparents common to the cousins (Figure 58). In other words, the children resulting from this incest *in the broad sense* between cousins form the third canonical generation from their great-grandparents. For either of these children, *the same person is*, on the maternal side, *both* the brother of their mother—that is, *their maternal uncle*, a third-degree collateral relative—and *their future stepfather* (since the relationship will be repeated in their generation). And – again on the maternal side – the brother of his mother’s mother, that is to say his maternal great-uncle, a fourth-degree collateral relative, is also, for this child of the third canonical generation, his father’s father, that is to say his paternal grandfather, a second-degree ascendant: *here the same*

person is both paternal grandfather and maternal great-uncle. In patrilineal descent, going back from son to father to the third degree brings us to the great-grandfather, and one can also trace the line back to him via the mother and the mother's mother.

Ideally, two clans can thus perpetuate themselves from generation to generation, without there being any endogamy within a single clan, and without resorting to absolute exogamy either, since marriages may only take place within the tribe.

If, in generation 1, two brothers from clan A were to marry two sisters from clan B, all their children would belong to only one clan: in a patrilineal system, the clan of the two brothers; in a matrilineal system, the clan of the two sisters. One of the two clans would die out for lack of descendants, and in generation 2 the marriage between cousins would be incestuous as it takes place within the same clan (Figure 60).

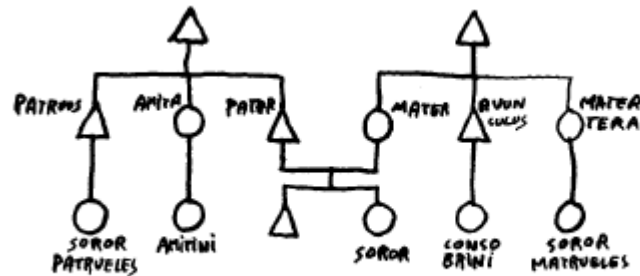


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The incestuous couple are, in this case, bilateral parallel cousins. The cousin is both the daughter of the paternal uncle and the daughter of the maternal aunt. In a patrilineal context, marriage to the daughter of the father's brother is obviously endogamous and incestuous, as the two cousins are members of the same clan; but the incestuous nature of marriage to the cousin who is the daughter of the mother's sister can only be understood within the framework of the system we are studying here. Because in the event of a renewed exchange between two clans, the matrilineal cousin is necessarily also patrilineal. It cannot be ruled out that this latter prohibition serves to perpetuate the closed system. But when society functions differently, when consequently a woman may be only the daughter-cousin of her mother's sister, when mother and aunt have married men from distinct clans, the prohibition can only be explained as an archaism, a survival that has become unnecessary, the trace of an ancient system.

This results in a system of clear prohibitions. *The bilateral parallel cousin is prohibited, the bilateral cross-cousin is permitted.* The system can be reflected in the terminology used. Given the prohibition against incest with one's sister, the parallel cousin may bear the same name or a similar one. In Latin, the daughter of the mother's sister is called *soror matruales*, and *soror patruales* the daughter of the father's brother. This applies to the parallel cousin. The cross-cousin is called *consobrini* when she is descended from the maternal uncle, and *amitini* when she is descended from the paternal

aunt (Figure 61). It was Benveniste, following Granet, who recognised that there was a story here.

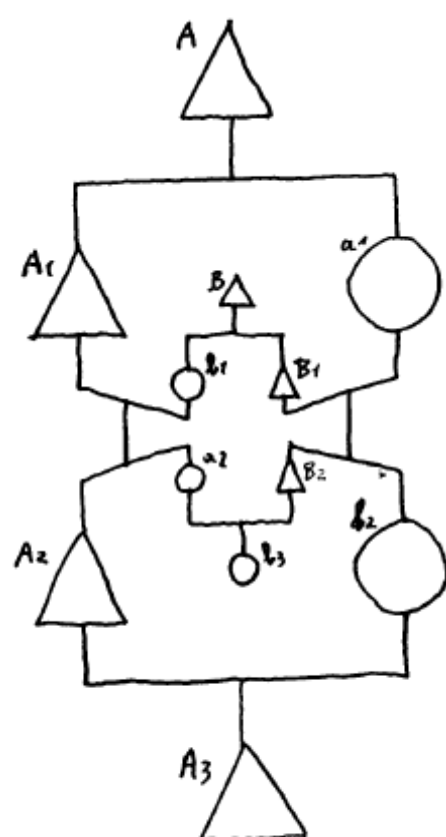


As early as 1840, Morgan had begun by observing this fact: that the Iroquois referred to the daughters of their paternal uncle and maternal aunt as ‘sisters’, and to the daughters of their maternal uncle and paternal aunt as ‘cousins’¹³⁹. Drawing on Granet’s reasoning regarding the Chinese context¹⁴⁰, Benveniste succeeded in explaining the connection between the Latin word *avunculus*, meaning ‘uncle’, and the word *avus*, meaning ‘grandfather’, which literally translates as ‘little-grandfather’; by the fact that, as we have just seen, in the primitive system the paternal grandfather is always also the maternal great-uncle, so that originally *avus* would not have meant grandfather, but great-uncle¹⁴¹ (figure 62).

¹³⁹ MORGAN, *op. cit.*; Friedrich ENGELS, *The Origin of the Family, Private Property and the State. On the History of the Ancient Germans. The Frankish Period. The March* (1884), Paris, Éditions Sociales, 1954, p. 33.

¹⁴⁰ GRANET, *Chinese Civilisation, op. cit.*, pp. 246–253, esp. 247.

¹⁴¹ BENVENISTE, *op. cit.*, vol. II, pp. 223–231, esp. 226–227.



$A_3 = E40$. $B_2 = AVUNCULUS$. $A_1 = AVUS$

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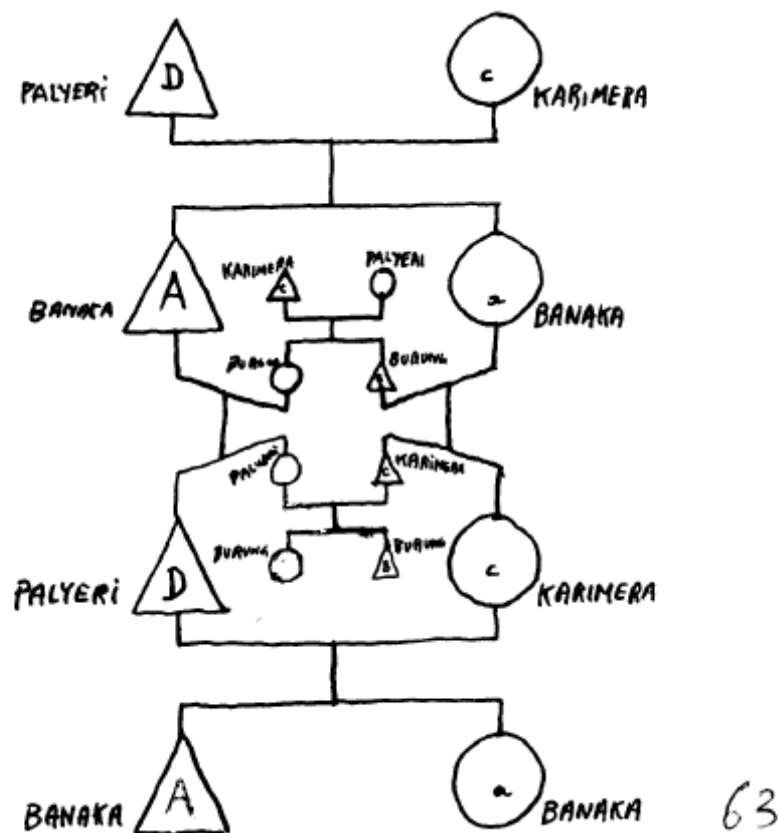
CHAPTER XII

OTHER PRIMITIVE KINSHIP SYSTEMS

The kinship system we have just examined is known as a ‘half-system’, because ideally it requires only two clans to constitute the two halves of a single tribe. However, it has been observed (by Radcliffe-Brown) that each of these halves can also, for the proper functioning of the same system, be divided into two sections known as phratries, because they are merely divisions of the same clan. Let us now revisit, among many others, the case first observed by Radcliffe-Brown in Australia¹⁴². In the Karia tribe there are two clans, each comprising two sections. One consists of the Banaka and Palyeri phratries, the other of the Burung and Karimera phratries. Within each clan, the phratries alternate from generation to generation. The children of Banaka are Palyeri and those of Palyeri

¹⁴² GODELIER, *op. cit.*, pp. 176–178; LÉVI-STRAUSS, *The Elementary Structures of Kinship* (1947), 2nd ed. Berlin – New York, Mouton de Gruyter, 1967 (*reprint* 2002), pp. 170–193.

are Banaka. The system is patrilineal. A Banaka will certainly not marry a Banaka, nor a Palyeri, and between a Burung and a Karimera, he may only marry a Burung. Indeed, a Palyeri belongs to the other phratry of the same clan as him; a Karimera would be his relative, his aunt or his niece, whilst a Burung, in the system we are considering, is his bilateral cross-cousin (Figure 63).



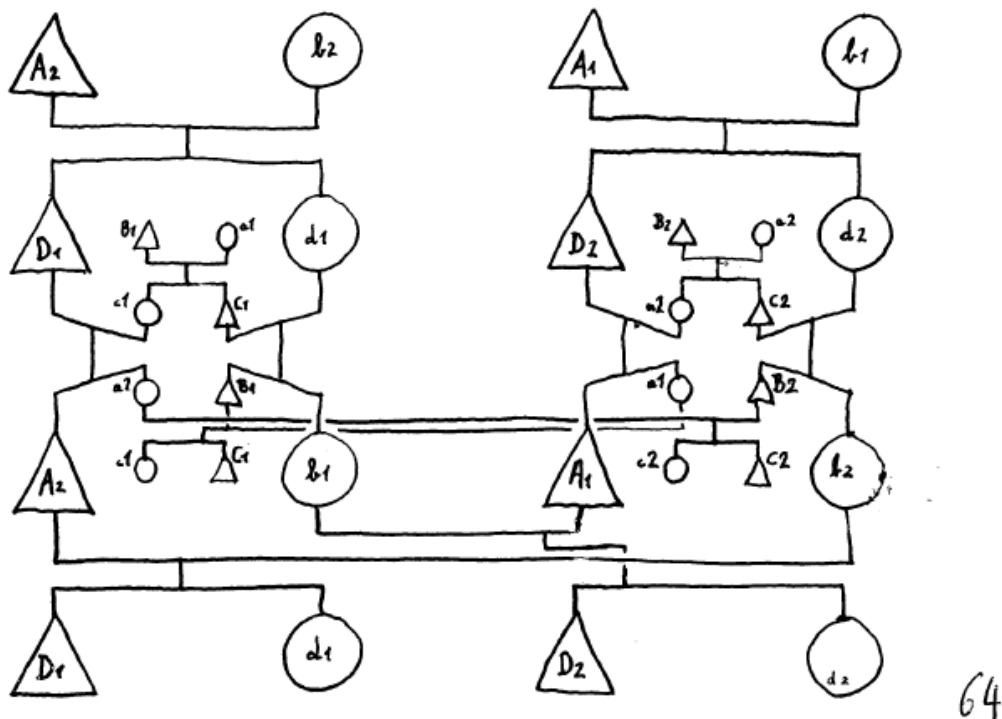
The Kariera system can be schematised as follows, with capital letters representing men and lowercase letters representing women:

A	wife	b	the children are	D or d
B		a		C or c
C		d		B or b

D c A or a

A = Banaka. B = Burung. C = Karimera. D = Palyeri

Anthropology has identified systems that appear more complex, where each section splits again into two, so that there are eight sub-sections within a single tribe. This is the Aranda system¹⁴³. At this stage, it becomes difficult to represent the entire system on a two-dimensional diagram (Figure 64).

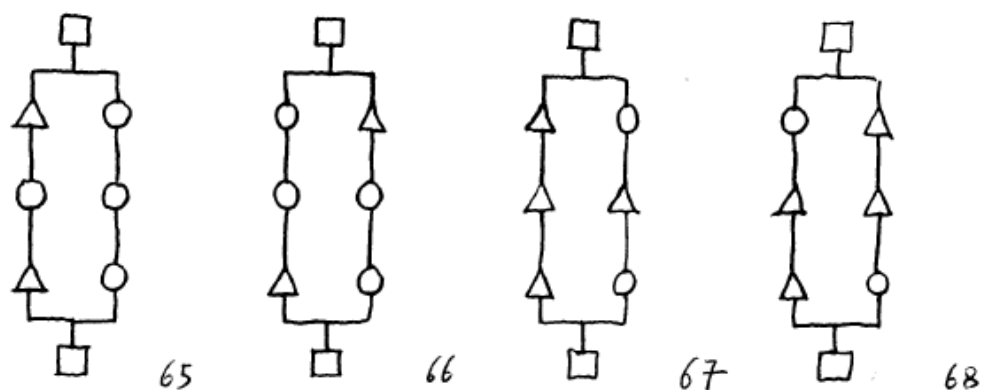


If, in the code envisaged for the Banaka system, the sections are divided into A1 and A2, this gives the following:

¹⁴³ Louis DUMONT, *Groups of Kinship and Marriage Alliances: An Introduction to Two Theories of Social Anthropology*, Paris, Gallimard, 1997, p. 127.

A1	wife	b1	the children are	D2 or d2
A2		b2		D1 or d1
B1		a1		C1 or c1
B2		a2		C2 or C2
C1		D1		B1 or b1
C2		d2		B2 or b2
D1		C1		A1 or a1
D2		c2		A2 or a2

What is important for our study is to note that, in the Aranda system, incest has advanced by two Roman degrees and one canonical generation. Aranda marries only his sixth-degree Roman collateral cousin. On the maternal side, his cousin is descended on one side from his paternal great-aunt, the sister of his maternal grandfather (Figure 65), and on the other from his maternal great-uncle, the brother of his maternal grandmother (Figure 66). And on the paternal side, she descends on one side from her paternal great-aunt, the sister of her paternal grandfather (Figure 67), and on the other from her maternal great-uncle, the brother of her maternal grandmother (Figure 68).



Systems of generalised exchange

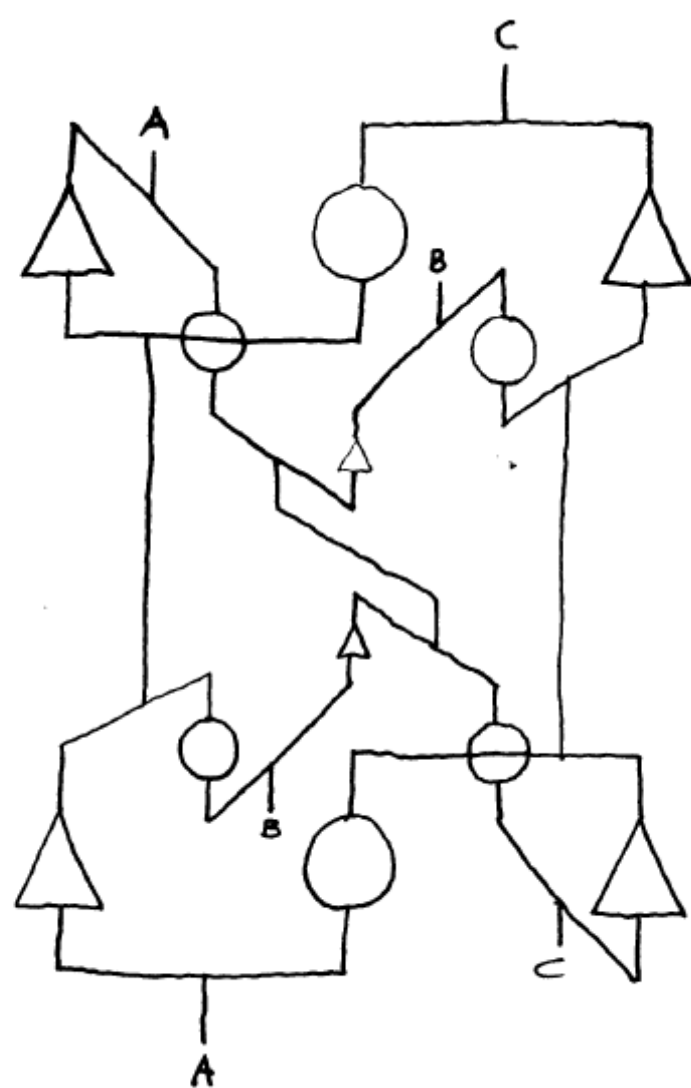
This tribal kinship system, which in theory could function even with only two clans, is thought to be the original system. Other systems exist, some of which, on the contrary, can no longer function with just two clans, but require at least three and up to five or more, all involved in an exchange system within the same tribe. Lévi-Strauss referred to this as generalised exchange. This results in a different treatment of the case of cousins. Parallel cousins remain forbidden. The intertwining of the cross-cousin, who is both patrilineal and matrilineal, disappears. Like a nutshell opening, there is no longer a bilateral cross-cousin; the cross-cousin is either patrilineal or matrilineal. And marriage is permitted or forbidden with one or the other, depending on the system adopted.

Where the patrilineal cross-cousin—the daughter of the father's sister—is the only one permitted, and the daughter of the mother's brother is forbidden, this would be consistent with an exchange system that still operates between two clans, but where

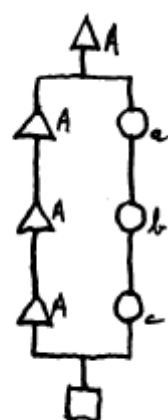
exchanges alternate in one direction and then the other, generation after generation. This is a discontinuous exchange system.

In the *circulating connubium*, by contrast, a man may only marry his matrilateral cross-cousin, that is, the daughter of his mother's brother, in other words his maternal uncle's daughter. Here too, it is not straightforward to visualise the relationships in a diagram (Figures 69 and 70). But note that this cousin cannot be descended from the father's sister, because there are at least three clans and a single clan takes wives only from one of the two clans, whilst giving its own women only to the other. The clans are regarded as *donor clans* and *recipient clans*. Thus the circulation of women can form a loop¹⁴⁴.

¹⁴⁴ For those wishing to explore the subject further, we refer to an initial selection of readings, the references for which are listed in the bibliography: MORGAN, ENGELS, GRANET, MURDOCK, LÉVI-STRAUSS, RADCLIFFE-BROWN, DUMONT, PRADELLE DE LATOUR and GODELIER.



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INTERLUDE

In summary, *stateless societies distinguish between parallel cousins, who are always taboo, and cross-cousins, for whom the rules vary*. But in any case, whether the cross-cousins are bilateral, patrilineal or matrilineal, to one degree or another there is always at least one close cousin whom it is appropriate to marry. Because of this trait, these societies appear strange both to Westerners and to Easterners, and for reasons that are obviously diametrically opposed. The Westerner is strictly exogamous. To him, every cousin is a relative, and every relative is forbidden; consequently, archaic societies seem to him to practise incest. On the contrary, the Eastern man is strictly endogamous, in that any cousin is permissible and, moreover, the patrilineal parallel cousin is the most suitable wife; thus, in his eyes, archaic societies practise a most curious form of exogamy. Inevitably incompatible, both of these family forms seem today to be locked in a battle for global hegemony. Fighting against one another, they both threaten the survival of archaic forms. But in the light of ancestral tribal-clan logics, it is rather the Western and Eastern cases that may appear as aberrations.

These Western and Eastern families cannot be analysed using the frameworks developed by anthropologists, nor do they even constitute *sui generis* systems. Lévi-Strauss spoke of ‘complex kinship structures’ in the West, as opposed to ‘elementary

structures'. This seems reductive to us. And it is well known that he was completely stumped by the enigma of 'Arab' marriage. In truth, the modern Western family belongs rather alongside the Inca, Egyptian or Mazdean aberrations, along with Semitic endogamy, in the class of societies whose original structures have completely dissolved under the blows of economic and legal upheavals¹⁴⁵.

One can no longer reasonably speak of a kinship system in relation to what currently governs marriage and filiation in the West. For our part, we do not agree with Maurice Godelier when he states that a kinship system can only transform into another kinship system, and not simply into a caste or class relationship¹⁴⁶. Nor can we agree with Emmanuel Todd's quite simply incredible hypothesis of a conservative periphery, of a Western society that has remained one of the few fossilised witnesses to the dawn of time. In light of what anthropology teaches us, the Western system must be understood for what it is: an aberration and an unstable, constantly evolving anomaly, much like the Semitic system, its inverted double, which is, for its part, rigidly insular¹⁴⁷.

As there is no such thing as spontaneous generation in the history of peoples, Westerners and Easterners alike—or, if you will,

¹⁴⁵ See ENGELS, Preface to the first edition of **The Origin of the Family, Private Property and the State**, *op. cit.*, pp. 15–16 (the whole of paragraph 2) and his letter to Joseph BLOCH dated 21–22 September 1890 (in **Sozialistische Akademiker**, 1895, Berlin, pp. 351–353). Compare GODELIER, *op. cit.*, p. 29. Félix NIESCHE once told us that the primary mode of production is the reproduction of life. This statement takes on greater significance in the context of the exploitation of others' labour, whether wage-earning or not.

¹⁴⁶ Contrary to GODELIER, *op. cit.*, p. 531.

¹⁴⁷ My recent reading of BARRY, *Kinship*, has not changed my mind.

Aryans and Semites—have a history. It is a progression and evolution spanning several millennia, marked by catastrophes, which has led them from the archaic stage they too experienced towards, for some, absolute exogamy, and, for others, absolute endogamy. These societies can only be explained by their history, and indeed, I would venture to say, by the workings of reason within history. Their evolution in opposite directions is specific to a particular era of civilisation. Nothing of the sort is found in the evolution of Asian societies, in China (Granet) or in India (Dumont). It matters little whether one sees this as superiority or degeneration. The aim is simply to observe and, eventually, to understand the phenomenon. But this is where anthropology ends, and history must take over. The study is demanding, drawing on the resources of law and economics, but less difficult, it seems to me, than labouring to classify the Western family within the Eskimo system.

PART FOUR

HISTORY

CHAPTER XIII

INCEST IN ANCIENT ROMAN LAW

If we consider only our positive law, the civilisational divide between East and West does not appear. Indeed, under current French law, neither marriage to a cousin nor the establishment of a child's filiation between two cousins is prohibited (Civil Code, Articles 162, 163 and 310-2). This mirrors the provisions of Justinian's *Institutes* (528 AD) for the Eastern Roman Empire. This therefore theoretically permits marriage to the daughter of one's father's brother, a union considered ideal in the Semitic world—a region that even encompasses the Arab part of the Christian world, but which ends where Orthodox Greece begins, and, south of the Sahara, the Tuaregs of the Tamesna¹⁴⁸. Admittedly, it remains the case that under canon law any marriage to a fourth-degree Roman

¹⁴⁸ TILLION, *op. cit.*, pp. 71–72.

cousin is prohibited (Code of the Latin Church, canon 1091, § 2), as it was in the West under *the Epitome* (320 AD). Nevertheless, in cases of doubt regarding parentage, marriage is permitted, whereas it would not be permitted between a brother and his sister (same code, canon 1091, § 4). Positive law therefore tells us nothing about deep anthropology, or if you will, the sociology of Westerners. For between archaic Roman law and our own law lie more than two millennia of upheavals, and in particular a medieval period that has left a lasting mark on Western societies.

As early as in ancient Roman law, we had moved beyond the framework of a primitive family system. The Indo-European peoples—Greeks, Latins, Celts, Germans and Slavs—obviously had a kinship system characteristic of the primitive way of life. This is evidenced by the Latin words used to designate cousins, their father and their mother, which are distinct from *matertera* for the maternal aunt, *patruus* for the paternal uncle and *soror* for their daughters, but rather *amita* for the paternal aunt, *amitina* for her daughter, *avunculus* for the maternal uncle and *consobrina* for his daughter. Parallel cousins are distinguished from cross-cousins and equated with the sister who is the daughter of the father and mother. And the distinction among cross-cousins between *amitina* and *consobrina* places the Latin system within the class of Sudanic systems. Following Lévi-Strauss, one may regard marriage to *amitina*, the daughter of *amita*, the father's sister, as typical of Indo-European marriage. This is still consistent with a restricted, discontinuous exchange system. Descent is patrilineal. But the language will see the

extension of the term *avunculus* to all uncles, and simultaneously that of *consobrina* to all cousins, which may already betray a generalisation of the prohibition.

The City of the People of the early Roman patricians was organised into *three* tribes. Each tribe consisted of around a hundred clans grouped *in tens within ten* phratries. The numbers alone may indicate an already rational organisation. The other Indo-European nations of the western group underwent a comparable evolution. In Sparta, the number of tribes rose from three (presumably the original number among the Indo-Europeans¹⁴⁹) to five, and to four in Athens, where each tribe consists of three phratries of thirty clans each. In theory, every adult Roman citizen is a member of his *curiate assembly* (*comitia curiata*), which is the general assembly of his phratry (¹⁵⁰). It is the thirty curiate assemblies of the City that are supposed to elect a king for life (¹⁵¹). But this is an archaic remnant, and in historical times the curiate assemblies no longer met. Each clan (*gens*) has its own senator, who first, at the level of the tribe, sits in a senate comprising around a hundred members (since the tribe comprises around a hundred clans), and then, with the

¹⁴⁹ Georges DUMÉZIL, *Myths and Gods of the Indo-Europeans*, Paris, Flammarion, 1992, pp. 81 ff. (extract from *The Tripartite Ideology*, Brussels, Latomus, 1958); Jean HAUDRY, *The Indo-Europeans*, n.p., Les éditions de la forêt, n.d., p. 40.

¹⁵⁰ See the *Apella* in Sparta and the *ekklésia* in the Agora in Athens.

¹⁵¹ Léon HOMO, *Roman Political Institutions: From City to State*, Paris, Albin Michel, 1950, p. 2. Cf. the Archigete in Sparta, the Basileus in Athens.

confederation of the three tribes, three hundred¹⁵². The senate confirms the election of the king¹⁵³. The City also has three hundred lictors, with each *gens* providing one. Still in Rome, each phratry has its own standard, a *signum* for a centuria (from the perspective of military organisation, the evolution of which we shall not discuss here), under the command of a centurion. Each of the ten clans of the phratry provides one *equites*, and eight to ten *milites* organised into a *contubernium* under the leadership of a *decamus* or a *caput contubernii*¹⁵⁴. Each tribe thus has its own legion with its eagle and its tribune, giving the City three hundred horsemen and three thousand infantrymen under the command of a king.

Finally, on the religious front, each phratry has its own *curio* priest and flamine, each a member of their respective tribal and civic colleges. There is one augur and one major flamine per tribe. It was Georges Dumézil who drew the connection between the three flamine majores—*dialis*, *martialis*, *quirinalis*—the three gods—*Jupiter*, *Mars*, *Quirinus*—the three Roman tribes—*Ramnes*, *Luceres*, *Titenses*—the three ethnic groups—Latins, Sabines, Etruscans—and the three functions—priests, warriors, producers¹⁵⁵. All these elements, bearers of a distant past, had already become thoroughly

¹⁵² See the Gerousia in Sparta and the Boule in Athens.

¹⁵³ *Ibid.*

¹⁵⁴ Ancient armies were therefore based on the family, Victor Davis HANSON, *The Western Model of War* (1989), Paris, Tallandier, 2007, pp. 164 and 279.

¹⁵⁵ DUMÉZIL, *op. cit.*; cf. Guido LIST, *Die Armanenschaft des Ario-Germanen*, Leipzig and Vienna, 1908, p. 4 (according to Nicholas GOODRICK-CLARKE, *The Occult Roots of Nazism*, Puiseaux, Pardès, 1989, p. 79).

confused even for the ancient Romans themselves. City-state or confederation, tribe, phratry, clan and family are categories found in primitive societies¹⁵⁶. But upon their entry into history, the organisation of the Romans corresponded no more than that of the Greeks to what it represented in the primitive political world. The world of myths has closed in on itself. There is a telling moment of upheaval in the history of Greek law: the transition in Sparta, Athens and other city-states from voting by clan to voting by district—a shift, if you will, from blood to soil, or, if you prefer, from race to social class.

But the feature that marks the most radical break with the ‘savage’ phase is that, from now on, matters of incest would be referred to magistrates, legal experts, the Senate and the administrative bodies composed of educated jurists who served the consuls, and later the emperors and prefects. So many scholars have addressed these issues in the schools¹⁵⁷. I do not believe that the diverse evolution of *archaic* kinship systems, matrilineal inversions or sudden shifts from one system to another are then due, in Lévi-Strauss’s words, merely to ‘the palaver and councils of old men’. That would be to misunderstand the primitive mindset¹⁵⁸. *Auctoritas*, in the ancient world, is the world of spirits, and it is this that governs. The *shaman*, the oracle and those who act as their interpreters

¹⁵⁶ MORGAN, *op. cit.*; FUSTEL DE COULANGES, *op. cit.*

¹⁵⁷ Max WEBER, *Sociology of Law*, Paris, PUF, 1986, p. 157.

¹⁵⁸ Perfectly described by LÉVY-BRUHL, *op. cit.*

communicate with it¹⁵⁹. There is no council without dreams or ecstasy¹⁶⁰. The Romans of the late Republican era were only just emerging from this age, they who did nothing without consulting the augurs¹⁶¹. The savage does not perceive kinship rules as we do through the prism of general cases, by means of schemas and an individualistic view of the person reduced to an abstraction. The savage does not perceive himself in relation to his environment in the same way as we do; for example, brothers may perceive themselves as the same, and a grandfather may identify with his grandson¹⁶².

It is our rationalist vision that arises precisely from a whole universe of discussions, though not, incidentally, from the ‘discussions of old men’ (as Lévi-Strauss *put it*). The absolutely decisive role of academic controversies, in which the *auditores*—that is, the novices—are invited to give their opinion, has long been recognised¹⁶³. It is no longer a matter of ecstasy, charisma or revelation, but of understanding. The link with the afterlife is thus severed. Neither ancestors nor gods govern the living any longer¹⁶⁴.

¹⁵⁹ WEBER, *op. cit.*, pp. 122, 124–125 and 130; Marcel MAUSS, *Sociology and Anthropology*, Paris, PUF, 1978, ‘Outline of a General Theory of Magic’, pp. 1–141.

¹⁶⁰ WEBER, *op. cit.*, p. 130. Here one must think of drugs (drinks, food or fumes), music and dance, all things leading to delirium and visions.

¹⁶¹ Fritz GRAF, *Magic in Greco-Roman Antiquity*, Paris, Les Belles Lettres, 2004.

¹⁶² BENVENISTE, *op. cit.*, I, p. 235; cf. LEVY-BRUHL, *op. cit.*, p. 419 and MICHELET, *op. cit.*, pp. 59 ff.

¹⁶³ WEBER, *op. cit.*, p. 157. Cf. the *Rule of Saint Benedict*, chapter 3.

¹⁶⁴ Marcel GAUCHET, *The Disenchantment of the World*, Paris, Gallimard, 1985, describes this vast transition from heteronomy to autonomy—which he understands as a shift from ontological unity to ontological duality—as a departure from ‘religion’ (meaning archaic religion).

Sophocles' theatre also bears witness to this crisis. Antigone represents the old world of the law of the gods, which stands firm against Creon, and the new world of the law of men¹⁶⁵.

It is said that by the time of the Law of the Twelve Tables, the *gens* was already nothing more than a memory. The clan, taking with it the phratry and the tribe, seems to have dissolved from above into the *res publica*. And from below, it has, as it were, broken down into the *familia*, which sees the great families—each represented by the last living progenitor, once united by common ancestry—gaining autonomy. And what we witness in the late Republican era, and then at an accelerated pace under the Empire, is the very disintegration of what remains of the *familia*, the last entity that can still give us an idea of the old order. The *familia*, an expression of lineage, is breaking down in the face of the individual and the household; and inheritance law no longer takes lineage into account¹⁶⁶. All that survives of this world is an aristocracy that soon becomes difficult to distinguish from the plebs, and even sometimes from the proletariat (in the ancient sense).

Whilst the City-state does not yet represent the liberal state society of Hobbes and Grotius, with an inter-state order, it is no longer a tribal society where the clan or phratry is the unit from which relations of friendship and hostility are determined. If the *res*

¹⁶⁵ See also HERODOTUS, *The Histories*, III, 80–84, where in Persia a clan retains its sovereignty by remaining outside the social contract that binds all others.

¹⁶⁶ VIGUIER, *De la famille clanique au couple parental homosexuel*, *op. cit.*, p. 33; THOMAS, *La mort du père*, Paris, Albin Michel, 2017.

publica had truly retained a kinship system worthy of the name, within the framework of widespread exchange, we might at least have observed the perpetuation of the clan. Even if marriages with cross-cousins and with the matrilineal parallel cousin had been permitted, there would have been a prohibition on marriage with the patrilineal parallel cousin, and so on ad infinitum. For the latter is a member of the clan. This is how Freud understood the incest taboo in the era of *Totem and Taboo*. A man and a woman belonging to the same totem, who share the same ancestor—whether living or dead, real or imaginary—cannot marry, and a child cannot see the two parental branches unite under the same totem, regardless of the genealogical level at which this union occurs. Marriage would have been forbidden indefinitely within the *gens*, but permitted between members of different *gens*, and consequently from the fourth Roman degree onwards. Yet there is ample evidence that the ancient Romans did not maintain this aristocratic order for long.

Our sources for these ancient times are scarce and scattered. According to Tacitus, there was an uprising of the plebs in the 3rd century BC, outraged by the marriage of the patrician Cloelius, who is said to have married his collateral cousin—within the seventh degree—in 241 and 229¹⁶⁷. It is not known with certainty what kind of cousin this was (the text uses the term *cognationis*), but

¹⁶⁷ GIRARD, *op. cit.*, *loc. cit.*, note 2, which I quote *in full*: ‘Fragment reproduced in *Hermès*, 4, p. 372: *Livius libro vicesimo* (from 513 to 525). *B. Celius* (read *Cloelius*), *the first patrician, took a wife from within the seventh degree of kinship, contrary to the old custom*. Cf. TACITUS, *Ann.*, 12, 6. ’ P. OURLIAC and J. de MALAFOSSE, *Histoire du droit privé*, vol. III *Le Droit familial*, Paris, PUF, 1968, p. 168 (quoted in HÉRITIER, *Les deux sœurs et leur mère*, *op. cit.*, p. 95).

if the filiation was through the father on both sides, this would mean that incest was permitted within the *gens* from the seventh degree onwards. The treatise on kinship by the jurist Paulus does not go beyond this, and the earliest systems would have stopped at the sixth degree¹⁶⁸. We also read, without further detail, that after the Second Punic War (218–202 BC) marriage was permitted up to the sixth collateral degree¹⁶⁹. The other reference made by historians is that, according to Livy and Cicero, of a more recent prohibition on marriage between first cousins (collateral to the fourth degree in Roman law), which disappeared with the end of the Republic¹⁷⁰.

¹⁶⁸ V. THOMAS, in *Le dossier occidental de la parenté*, note 12, pp. 92–99, and note 40, pp. 117–118.

¹⁶⁹ GIRARD, *ibid* (in the text).

¹⁷⁰ GIRARD, *ibid.*, text and note 3 (LIVY, 42.43.3 and CICERO, *Pro Cluentio*, 5.11). I refer the reader to MOREAU, *op. cit.*, esp. pp. 187–191.

CHAPTER XIV

EASTERN ENDOGAMY

We have seen that Gaius' *Institutes* make no mention of the cousin. It is considered that under the Empire marriage was permitted, except for the interlude opened under the influence of Christian ideas by Theodosius, and which would not have closed for the eastern part until Justinian's reform. Our only source is a letter from Saint Ambrose of Milan dated 393, which mentions an edict by Theodosius (dated between 379 and 395) forbidding 'first cousins on the father's and mother's side from marrying'¹⁷¹. We must also mention the anomaly of the marriage between Claudius and his niece Agrippina, a case authorised by a senate decree in 49 AD, repealed in 342, which, by *a fortiori* reasoning, could authorise marriage to a paternal parallel cousin. And it should be recalled that in 295 Diocletian had to prohibit marriage to a maternal niece (third

¹⁷¹ TODD, *Où en sommes-nous ?*, Paris, Seuil, 2017, p. 127.

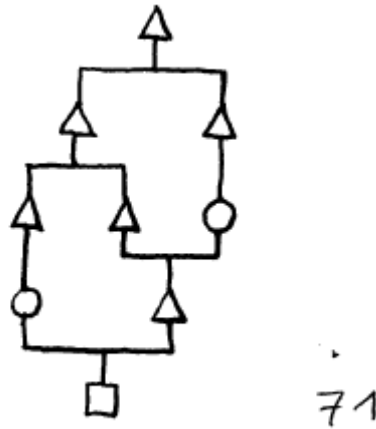
degree in Roman law), which suggests that marriage to a maternal cross-cousin (fourth degree collateral) was permitted¹⁷².

Let us take a step back. The end of the Republic and the beginnings of the Empire were marked by two phenomena whose combination was undoubtedly a source of chaos. Firstly, the encounter between the Romans, who had only just entered the phase of civilisation, and, on the one hand, the already ancient Semitic or Persian peoples, and, on the other, the Celtic or Germanic tribes who were still barbarian. We have seen, with Egypt, Judaism and Zoroastrianism, what civilisation was capable of producing in terms of incest, and we can surmise the nature of the family system in which the Celts and Germans were still caught up. Secondly, one must also take into account the schism between East and West and the dominance of the ecclesiastical institution—first the councils and then the Curia—in the western part of the Empire. The study of a given people's law cannot do without geography any more than it can do without chronology. From the time of Diocletian in 285–286, the Empire was divided, and from 395 onwards all communication with the western part ceased.

In light of what we have already said about the rules on incest in ancient Egypt and under the Ptolemies, in Zoroastrianism and in the Bible, it is not surprising that in the Semitic world and beyond, not only is marriage to cousins permitted, indeed exclusive,

¹⁷² For further reading, see MOREAU, *op. cit.*

but even marriage to the daughter of one's father's brother is considered ideal and preferable¹⁷³ (Figure 71).



Ethnographic studies have documented this practice in Iran, Lebanon, Syria and throughout the Bedouin world. The practice is widespread throughout North Africa. In the Maghreb as well as the Mashreq, among the Berbers as well as the Arabs. The boundary lies in the middle of the Sahara, as the practice is not attested among the Tuaregs south of the desert¹⁷⁴. In the Levant, it concerns the three Abrahamic religions, but it does not apply to Orthodox Greece. This form of marriage is observed today in Muslim Turkey. In Asia, it extends as far as Afghanistan.

Leviticus meticulously sets out a whole series of prohibitions, whether concerning relatives or in-laws, spouses of relatives or relatives of spouses, but the cousin is not mentioned

¹⁷³ TILLION, *op. cit.*, pp. 120–122 and 131.

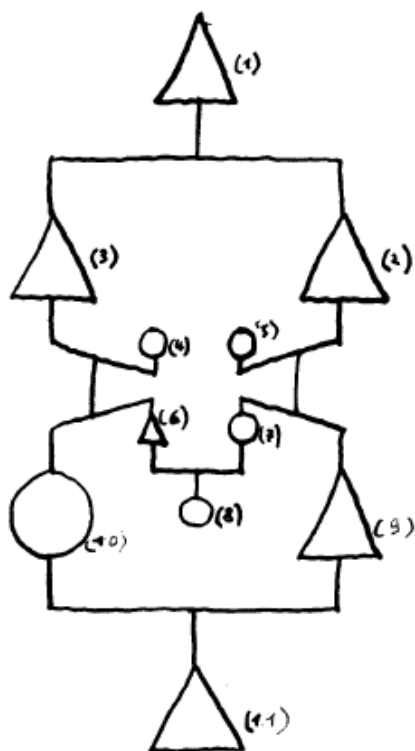
¹⁷⁴ *Ibid.*

(Leviticus 18:6–18 and 20:11–21)¹⁷⁵ . Nevertheless, the case of the daughters of Zelophehad may attest to an ancient practice prohibiting marriage between parallel paternal cousins. But it is so that Yahweh, through the voice of Moses, *may impose* marriage between cousins when, in the absence of a brother, the daughter is the heir (Numbers 26:33, 27:1–11, 36:1–12; Joshua 17:3–6)¹⁷⁶ . Endogamy is a characteristic of the Jewish family, both Ashkenazi and Sephardic, which can still be observed today. For example, the Rothschild family is typical of an endogamous clan (Figure 73), and in the case of Lionel Walter’s genealogy, it exhibits precisely the structure of restricted exchange found in half-tribes (Figure 72)¹⁷⁷ .

¹⁷⁵ Nor the daughter, which lends credence to the discoveries made by RYSEN on a literary basis. RYSEN, *L’antisémitisme sans complexe ni tabou*, *op. cit.*, pp. 205–224.

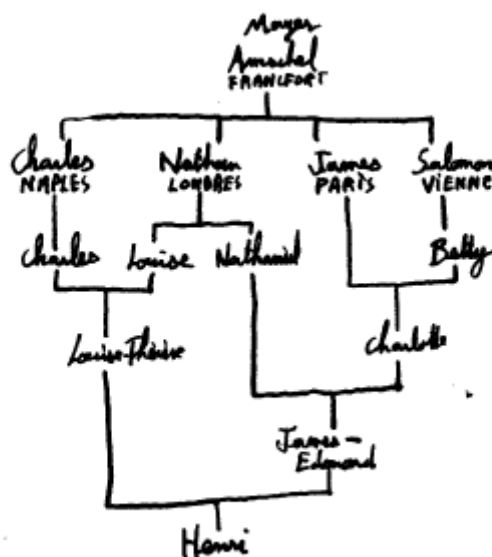
¹⁷⁶ See VIGUIER, *op. cit.*, pp. 30, 74–75.

¹⁷⁷ Edouard DEMANCHY, *The Rothschilds. A family of Jewish financiers in the 19th century* (1896), Saint-Denis, Kontre Kulture, n.d., pp. 140–145 (diagrams); Frédéric MORTON, *The Real History of the Rothschilds*, Paris, Gallimard, 1962; see also Cyril GRANGE, *A Parisian Elite. The Families of the Jewish Upper Middle Class (1870–1939)*, CNRS, 2016, pp. 204–207 and 207–216 on the clans (which the author calls ‘cliques’ – in the sense used by Everett and Borgatti).



1. MAYER AMSCHEL
2. Nathan MAYER de Londres
3. Karl MAYER de Naples
4. Adelaide HEATZ
5. Johanna COHEN
6. Charles de Naples
7. Louise de Londres
8. Emma de Naples,
mère de Lionel Walter
9. Lionel de Londres
10. Charlotte de Naples
11. Nathaniel de Londres
fils de Lionel Walter

72



73

Regarding Jewish Kabbalah, Gershom Scholem mentions certain Sabbatean tendencies concerning “the theme of the abrogation of sexual taboos, in particular the prohibition of incest, as a criterion of the Messianic Torah¹⁷⁸”. For the 18th century, he cites Baruchya, a Sabbatean from Thessaloniki, who declared that “the prohibitions against incest contained in the Torah were abolished¹⁷⁹”.

We have seen that under Justinian, on the eve of the Hegira and in an Eastern Empire whose territory corresponds exactly to the area of expansion of Sunni Islam, marriage between cousins was permitted. The Qur’an prohibits marriage to one’s brother’s daughter as well as one’s sister’s daughter, though this will not prevent the latter practice from continuing; however, it says nothing about marriage between cousins (Qur’an, 4:22–23). Todd notes that in the custom of marrying the children of two brothers, the father’s authority over his daughter is weak, since he has no say in the choice of husband nor in giving his consent¹⁸⁰. Hence the greater authority of women—mothers and aunts—in endogamous families. It should be noted that repudiation and polygamy allow the cousin, regarded as the first wife and expected to provide male offspring for the clan, to be free once her duty is fulfilled. *Over several generations, this endogamous practice can only result in the clan closing in on itself.* The tribe itself is no longer conceived as an

¹⁷⁸ Gershom SCHOLEM, *Jewish Messianism* (1971), Paris, Calmann-Lévy, 1974, p. 134, see pp. 134–136 (reference to Mishna, Keritot, I.i, for the list of prohibitions).

¹⁷⁹ *Op. cit.*, pp. 135–136 and 243.

¹⁸⁰ TODD, *Who is Charlie?*, Paris, Seuil, 2015, p. 191. Cf. TILLION, *op. cit.*, p. 121.

aggregate of clans foreign to one another but as the branches of a single original family, whether real or mythical. *And the nation can only be a nation of related clans.* In this imagination, all Arabs, Jews and Berbers are brothers¹⁸¹ .

It should be noted that this is a characteristic Semitic trait, predating Islam – that is to say, predating the prophethood of Muhammad. And whilst there is a coincidence between endogamy and the core Arab element of Islam, this correspondence should not be exaggerated. On the one hand, endogamy is not exclusive to Islam, since it is found in Eastern Christian, Jewish and Zoroastrian communities; on the other hand, it is also present beyond the Arab world, among the Turks, the Persians and in Afghanistan; finally, the Qur'an would rather have tended to restrict its practice, specifically to cousins.

It is understandable that the patrilineal Aryan societies of the West, for whom the paternal uncle is the *patruus* and his daughter the *soror patrueles*, might have abhorred this practice¹⁸² . However, it is precisely the Aryan portion of the Christian world, and it alone, that would engage in a fierce struggle not only against strictly endogamous practices but also, it seems, very early on, against cousin marriage *in general*, and well beyond the Roman fourth degree. It was in the western part of the Empire that the Roman Catholic Church would step in to compensate for failing

¹⁸¹ Muammar GADDAFI, *The Green Book*, Saint Denis, Kontre Kulture, pp. 62–66.

¹⁸² Although Jean VARENNE suspected that Mazdean incest was an archaic Indo-European trait: VARENNE, *op. cit.*, p. 68.

political institutions. The Doctors of the Church, the councils and the bishops took over from the imperial apparatus and its assemblies of jurists¹⁸³. Developing a genuine holy horror of incest, succeeding the Roman Empire, and armed with rational law, the Catholic Church waged a merciless war against the barbarians sweeping in from the North and the East. This struggle can be understood as a reaction to Arab endogamy, but, led by a Celtic, Latin and Germanic clergy, it amounts to a reckless struggle against the European peoples themselves.

Notable figures from the 4th century include Saint Ambrose, Basil the Great, Bishop of Caesarea¹⁸⁴, and the Councils of Elvira (306) and Neo-Caesarea (314)¹⁸⁵. It should be noted that *the Epitome of Gaia* dates from 320. However, for the late ancient period, the most important source remains the famous chapter of *The City of God* by Saint Augustine, Bishop of Hippo (Book XV, Chapter XVI). We have previously mentioned this text, written between 413 and 426. It is significant for its historical context, as it is prominently cited under Cause 35 in the Decree of Gratian (Question 1, single canon). It is curious that Gratian omitted the passage concerning the cousin, even though it is this very case that raises questions, whether in Augustine's time or in Gratian's century. Augustine observes that whilst no law, whether divine or human, formally prohibits

¹⁸³ WEBER, *op. cit.*, pp. 182–183.

¹⁸⁴ Epistle 160, *Patr. Gr.* XXXII col. 621.

¹⁸⁵ Calixte I (born in 155, pope from 217 to 222) has been mentioned previously in connection with the patrilineal parallel cousin.

marriages between cousins, such marriages are rarely practised (*City of God*, XV.^{XVI.2}: ‘*raro per mores fiebat*’)¹⁸⁶. Yet a sentence later he notes that the ancients willingly married ‘women of their own kin’. Nevertheless, he observes that because of the closeness of the cousin’s kinship to that of a sister—the very fact that cousins call each other brothers—the horror of incest with a sister, on which he has insisted, operates by contagion. And he ultimately laments that these ancient practices were not prohibited sooner¹⁸⁷. Nothing too radical yet. And precisely, perhaps this is the explanation for his censure in the first canon of Cause 35. For whilst setting the precedent, he remains far too timid in the face of what doctors, popes and councils would subsequently decide, and above all of the fury that would seize the Church during the time of the Gregorian Reform (1045–1075).

¹⁸⁶ I do not believe this constitutes custom in the strict sense of the term, which, as a source of law, would apply *contra* or *praeter legem*, but rather de facto practices, or customs. Custom is referred to as *consuetudo*.

¹⁸⁷ See Robert MOORE, *The First European Revolution: 10th–13th Centuries*, Paris, Seuil, 2001, p. 156.

CHAPTER XV

WESTERN EXOGAMY

In the Early Middle Ages, one can speak of a complete loss of reference points. Several phenomena came together. Firstly, any distinction between agnatic and cognatic descent disappeared. The criterion of descent through the male line, which determined clan membership and the transmission of inheritance, tended to fade away, giving way to a complete lack of distinction between the sexes. Consequently, kinship, upon which the concept of incest is based, no longer had any clearly defined limits. The boundary was therefore sought both in terminology and in the number of degrees. Kinship would cease where there was no longer a name to designate the person. As for the figure given as the limit of kinship, it continued to rise, only beginning to decline at the start of the 13th century. But above all, the Roman method of calculating degrees—a scholarly approach—found itself gradually challenged by the Germanic and

popular method¹⁸⁸. This competition was a source of uncertainty, since faced with the same given number, one might doubt which method to use as a reference and arrive at different results. And the worst possible confusion that could be feared on this point did indeed occur. Figures established to designate cases according to the Roman system were interpreted according to the Germanic system, thereby widening the boundaries of kinship (Figure 62).

Agde 506 (canon 61), Epaone 517 (canon 30), Toledo 527 (canon 5, sanction of excommunication), Clermont 535, Orléans 540, Paris III 557 (canon 4), Tours 567 (canon 21), Mâcon 585 (canon 18), Auxerre 590 (canons 27–32); for the 6th century, no fewer than nine councils—eight of them in Gaul—are cited regarding incest, along with the letter of Saint Avitus, Archbishop of Vienne¹⁸⁹. The Councils of Epaone in 517 and Clermont in 535 extended the prohibition on marriage between first cousins to include second cousins (I understand this to mean the 6th Roman degree, or the 3rd canonical generation)¹⁹⁰. It was in this context that, in 506, the Breviary of Alaric (the Visigoths' Roman law) was compiled, a work containing *the Epitome*, as well as the *Sententia Pauli*, which deal with the right of *succession* up to the seventh Roman degree (in IV.11, *de gradibus*), and from which the canonical prohibition on *marriage* up to the

¹⁸⁸ We shall examine both of these methods of calculation in Chapter XXII, 'The Conflict of the Computs'.

¹⁸⁹ Jean GAUDEMET, *op. cit.*, pp. 100–101.

¹⁹⁰ TODD, *Où en sommes-nous ?*, *op. cit.*, p. 126.

sixth Roman degree was derived¹⁹¹. At the beginning of the 6th century, we have a letter from Augustine, the first Archbishop of Canterbury, who asks Pope Gregory the Great a question regarding the prohibition of marriages between relatives (up to the 4th Roman degree?), and the Pope's reply, which is an important text for what follows¹⁹². In the 8th century, Pope Gregory II replied to Boniface that spouses should not have common ancestors over four generations¹⁹³. And under this same pope, at the Council of Rome in 721, the prohibition on marriage was extended to the seventh degree *of the Roman computus* inclusive¹⁹⁴. This now coincided with the limit of agnatic succession within the patrilineal clan established by the Romans.

It appears that the earliest evidence of a Germanic interpretation of a number previously established by Roman computus dates from the 9th century. In 843, the *De institutione laicali* (II, 8) is thought to be the first manifestation of this¹⁹⁵. A council was held in Meaux in 845. In 845–847, the apocryphal collections of Benedict the Levite reproduced the canons of the

¹⁹¹ Adhémar Esmein, *Marriage in Canon Law*, Paris, Larose, 1891, vol. 1, pp. 341–343; Jean GAUDEMET, *op. cit.*, note 12, p. 100, cites *the Roman Law of the Visigoths* 3.5.1, *the Edict of Rotharis* 185 and *the Edict of Liuprand* 33, 34.

¹⁹² MOORE, *op. cit.*, pp. 156–157. PETER DAMIAN, 'De parentelae gradibus', in MIGNE, *Patrologia Latina*, CVL, col. 179–192, under the title 'Letter I', in *The Western Dossier on Kinship*, *op. cit.*, pp. 130–165, (cited here as 'Letter I' with reference to paragraphs) paragraphs 15 and 16; Decree of Gratian, Case 35, Questions 2–3, canon 20 and Question 5, canon 2 § 5.

¹⁹³ *Ibid.*

¹⁹⁴ TODD, *op. cit.*, *loc. cit.*

¹⁹⁵ BARRY, *op. cit.*, pp. 539–540, based on ESMEIN, *Marriage in Canon Law*, 2nd edition, vol. 1, 1929, pp. 385–386.

Council of Mainz of 813, where the number four is interpreted according to a Germanic computus that extends the prohibition to the eighth Roman degree. It was still in the 9th century that the Church is said to have maintained that the prohibition extended to the seventh degree *of canonical computation*. But the Church showed leniency; a letter from Pope Leo VII (931–939) provided for dispensations beyond the ‘second degree’ (which, in canonical computation, appears to refer to the first cousin)¹⁹⁶. Above all, it is not possible to speak of doctrinal unity, let alone a coercive ecclesiastical apparatus at the European level, prior to the Gregorian Reform. For it was only with this that the 11th century saw the Catholic Church become truly Roman, acquire its unity, gain its autonomy, establish the hierarchical superiority of spiritual authority over temporal power, and impose its discipline both within its own ranks and in the wider world. It is in this context that one of its most ardent reformers, namely Peter Damian, reports in a treatise **De parentelae gradibus** that he intervened in a virulent controversy said to have taken place in the city of Ravenna¹⁹⁷.

In the 11th century, Ravenna was, alongside Parma, Venice, Florence, Bologna, Pisa and Genoa, one of the most important cities in Northern Italy. Already a major city by the end of Antiquity, Ravenna was the capital of the Western Empire until its collapse, and

¹⁹⁶ GOODY, *The Evolution of the Family and Marriage in Europe*, Paris, Armand Colin, 2012, pp. 200–201 (based on DAUDET).

¹⁹⁷ PETER DAMIAN, Letter I, *op. cit.*

then, in the Early Middle Ages, the seat of an exarchate of the Byzantine Empire. The controversy, in which Florentines were also involved, centred essentially on the method of calculating the degree, to determine which case was covered by the canonical prohibition in the seventh generation. There was a dispute over the choice between the Roman and Germanic computus, which Peter Damian presented as grounded in Scripture. There was also hesitation between two of the methods of calculating by generation – to the two methods mentioned first, Peter Damian would add a third in his Letter II¹⁹⁸ – and the doubt ultimately centred on the exact status, whether the seventh generation was the last prohibited or the first permitted.

It is always very difficult to date texts from those periods. We are dependent on their modern editions and, for earlier times, on their preservation and the vagaries of the manuscript tradition; finally, the texts themselves come from a time of which we have only fragments and of which we know at least that falsification was commonplace. In his Letter I, Peter Damian is firm on one point. He rejects the use of the Roman computus for the interpretation of the canonical interdict. This decision was formalised by Pope Alexander II in a decretal to the Italian bishops dated 1076 (and sometimes 1063). This decretal is published in the *Decretum Gratiani* (it is Canon 2 of Question 5 of Cause 35). The Church's decision formally dates only from this decretal. The discussion centres on the doctrinal and

¹⁹⁸ PETER DAMIAN, 'De gradibus cognationis', in MIGNE, *Patrologia Latina*, CVL, col. 192–196; under the title 'Letter II', in *The Western Record of Kinship*, *op. cit.*, pp. 166–175. Cited as 'Letter II' with reference to the paragraphs.

practical choice, as well as on the personal role played by Peter Damian. It is difficult to say whether the jurists in Ravenna who defended the Roman computus against him were seeking to prevent the adoption, or even the spread, of the Germanic computus, or whether they wished to restore the old Roman computus. Be that as it may, the result was a division between the two legal systems, a division that did not exist prior to the time of this controversy. To my knowledge, the Ravenna controversy was one of the first manifestations of this, perhaps even the first, and it was one of its defining moments. The Roman computus was assigned to secular law, the Germanic computus to canon law. Whilst the desire to abandon the Roman computus may not have originated in the mind of Peter Damian, and whilst the idea of interpreting the seventh generation in the Germanic sense may not have emerged in history with the suddenness of a flash of lightning, the fact remains that his intervention was certainly decisive, whatever the exact chronology of the texts.

Peter Damian's Letter I is sometimes dated to 1046, and his Letter II, in which he amends his position, to 1049 – the year in which the Council of Reims was held. This dating¹⁹⁹ places his writings *prior to* an encyclical by Pope Nicholas II issued in 1059 and the holding of a council in Rome in the same year. We shall instead adopt this chronology because, in his Letters, Peter Damian addresses John, Bishop of Cesena (a certain John II served as bishop there from 1042

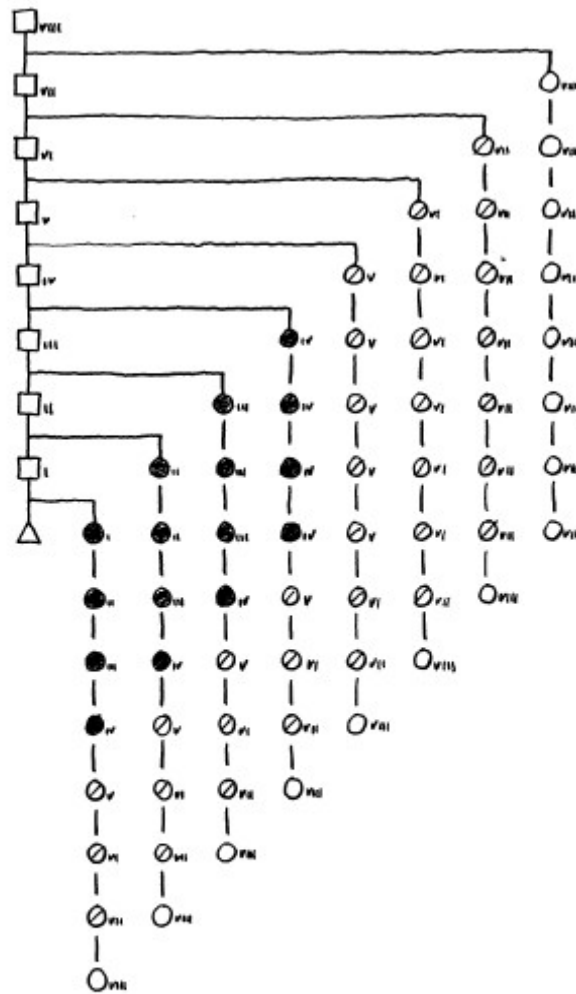
¹⁹⁹ REINDEL'S dating, adopted by SCHÜTZ, in *Le dossier occidental de la parenté*, p. 191 and note 1 on p. 215.

to 1053), and makes no mention of either the encyclical or the council. In this case, it is Peter Damian who would not simply have applied but, on the contrary, influenced the Pope and the Fathers of the council. However, we still find the dates of 1060 for Letter I and 1063 for Letter II²⁰⁰. To date Peter Damian's writings after the encyclical and the council of 1059 is to regard them as virtually contemporary with the councils of Tours in March 1060, and again, it seems, with that of Rome in 1062 (or 1065), and it places them shortly before Alexander II's decretal (when dated 1063 rather than 1076). Be that as it may, the dispute over the issue of incest with a cousin was not to die down. It persisted, even after the 11th-century decision had been reversed. In essence, it was not resolved within the Church until 1983.

For several decades, the Roman Church campaigned to apply the prohibition on incest, the establishment of parentage and marriage between collateral relatives up to and including the seventh generation of the canonical reckoning, throughout the West. That is to say, for a cousin of the same generation as the man, up to the fourteenth degree of the Roman calculation, a collateral relative with whom we share a common ancestor, our sextis-great-grandparent, that is to say, our seventh-degree ascendant, and of whom we are the seventh generation. In the generation of the great-great-great-great-great-grandfather, the prohibition extends to the next generation, and so on down to the female descendants of the

²⁰⁰ Dating accepted by MOORE, *op. cit.*, pp. 157 and 326, and GOODY, *op. cit.*, p. 201 (who draws on DAUDET).

first cousin, who are prohibited up to the ninth Roman degree (Figure 74). This applies equally to relatives on the male and female sides. And all the wives of male relatives at these degrees are also prohibited, as are all the female relatives of the wife.



En noir les collatérales toujours interdites.
En blanc celles interdites entre 78 et 1215.
En blanc les collatérales toujours permises.

74

The rule, which was practically unenforceable, was a source of uncertainty. When – year in, year out – the family relationship could be established, if this was done *before* the

marriage, the couple could still go ahead with the wedding by obtaining a dispensation in return for a fee; if it was done *afterwards*, there were grounds for having the marriage annulled, which amounted to a de facto divorce. Flexibility was shown, the rule was abused, and a distinction was drawn between diriment impediments and those that were merely prohibitive. Eventually, the rule was revised. At the^{Fourth} Lateran Council in 1215, Pope Innocent III thus secured a reduction of the prohibition to the fourth canonical degree, that is to say, for the widest circle, for the cousin of the same generation as the man, up to the collateral relative of the great-great-grandparent, a cousin ‘of the same generation as the first cousin’, at the eighth Roman degree (see Figure 61) – which still appears to be the rule today for the Greek Orthodox Church²⁰¹. In the line of the great-grandfather, this extends to the next generation, down to the daughter of the cousin ‘of the same generation as the father’s siblings’, and so on down to the granddaughter of the first cousin.

At the Diet of Mainz in 1439, the Fathers asked the Vatican Council to reduce the prohibition to the second degree (canonical calculation, i.e. the first cousin). In the 16th century, the Reformation led to the Protestant crisis, which, incidentally, centred largely on marriage. Canonical rules would therefore evolve differently according to denomination, and above all, it was the State—which intervened in ways that varied from one country to another—that would henceforth take charge. The decrees of the Council of Trent in

²⁰¹ TILLION, *op. cit.*, p. 123.

1545–1563 provided for dispensations for the third degree (canonical calculation) ‘if the request is sufficiently well-founded’²⁰². In 1917, the Catholic Church codified its entire law and, on that occasion, reduced the degree of consanguinity by limiting the prohibition to the third canonical generation, i.e. at most the second cousin and the daughter of a first cousin, before the 1983 Code adopted the current rule. Canon 1091 § 2 of this Code prohibits marriage up to the fourth degree *according to an original method of calculation ‘by line and by degree’, which amounts to the same as the Roman method*. Adopted in Canon 108, the canonical method of calculation continues to consider the generations to which the persons in question belong, without counting the stem, but now by adding the collateral lines... As for the State, in France from 1804 onwards the Civil Code no longer prohibited marriage between cousins (Articles 162 and 164 *ne varietur*)²⁰³.

I believe that the kinship system of the whole of Western Europe was profoundly and lastingly marked by the crisis it underwent during the period between the 11th and 13th centuries. One finds no equivalent to such a revolutionary crisis except in Mao’s China, where the prohibitions extended only to the fifth canonical generation (the tenth Roman degree in the lineage of the great-great-great-grandparent). Consequently, our current rules do not in any way reflect the Western mindset and imagination. It is

²⁰² GOODY, *op. cit.*, p. 211.

²⁰³ Compare the Civil Code for the German Empire (‘BGB’) of 1896, § 1310; Swiss Civil Code (1907), Art. 95.

rather this medieval crisis that is crucial and most revealing of the specific characteristics of the Western perspective on incest.

CHAPTER XVI

THE MEDIEVAL REVOLUTION

From the second half of the 11th century until the beginning of the 13th century, the Catholic Church imposed upon society a highly original family structure which remains to this day the principal characteristic of the West. It did so by extending the prohibition on incest to the seventh canonical generation, which, for the most distant collateral line, corresponds to the fourteenth Roman degree. We shall seek to understand the doctrine that animated the Church at that time, both in the light of Peter Damian's account of the famous Ravenna controversy in his **De parentelae gradibus**, and in the light of its subsequent developments as they emerge from Case 35 of the **Decretum** of Gratian (1135/1140²⁰⁴), from Question 1 onwards, and in particular with the decretal of Alexander II (1063 or 1076)²⁰⁵, which constitutes Canon 2 of Question 5. The first task is to explain

²⁰⁴ The date on which the drafting of the Decree began remains a matter of debate. See 'Le Décret de Gratien revisité', *Revue de droit canonique* 48/2 (1998).

²⁰⁵ These texts were the subject of my lectures in 2019–2020 as part of the *Égalité et Réconciliation training programme*.

why and how the Church came to possess such power. After all, the phenomenon is certainly curious. We must also establish the basis for its right to take charge of the matter, which will help clarify how it understood it, and what specific abhorrence of incest as such it developed and disseminated throughout Western society at the time.

The upheaval of the Western kinship system did not occur at just any time. Many scholars have pointed out that this was an absolutely crucial period (among our contemporaries, I am thinking of Marcel Gauchet, Pierre Legendre and also Carl Schmitt)²⁰⁶. Yet one need only browse through a few works from various fields to see that it remains far too obscure. We still speak of the ‘Iron and Lead Age’ for the 10th century, and of *the ‘Dark Ages’* for the period preceding the 12th century. This is what seems to remain of the division of history into three successive periods: Modernity, rising up against the Middle Ages, for the rebirth of a ‘Golden Age’ referred to as Antiquity. For whilst we have been able to trace the Renaissance of the 16th century back to the 12th century, we have not gone further back; and whilst we sometimes speak of a Carolingian Renaissance (8th–9th centuries), this was clearly a Renaissance without a future. For when it comes to the 10th and 11th centuries, there is decidedly a kind of impasse. In reality, these centuries are obviously no more obscure than our own; *it is we* who regard them as obscure, and it must be said that this is due to obscurantism.

²⁰⁶ Georges DUBY, *Warriors and Peasants*, Paris, Gallimard, 1973.

Western Europe did, in fact, undergo a period of ‘cultural revolution’ for *roughly* a century, between 1040 and 1140. Its aspects encompassed the economy, technology and demography as much as philosophy, theology and law. It is quite rightly that the term ‘revolution’ has been applied to the period in question. Robert Moore uses the terms ‘first European revolution’²⁰⁷, and Harold Berman speaks of a papal revolution, the first of a series comprising six, including the Protestant crisis, the English Revolution, the American Revolutions (Independence and Secession²⁰⁸), the French Revolution and the Russian Revolution – of which the German Revolution of 1933 and the Chinese Revolution would be mere replicas²⁰⁹. It was Edgar Quinet who is said to have been the first to describe the Gregorian Reform (1045–1075) as a ‘true revolution’²¹⁰. Admittedly, given the legal distinction between reform and revolution, there is every reason to proceed with caution²¹¹. But the term is not too strong if it is simply a matter of expressing the idea of a profound upheaval of the whole of society, *in capite et in membris*.

In short, the Gregorian Reform (1045–1075), the Great Schism of the East (1054)²¹², the dispute with the Empire over the investiture of bishops (1062, 1075–1122), the Truce of God (1040), the

²⁰⁷ MOORE, *op. cit.*, p. 23.

²⁰⁸ The War of Independence and the American Civil War are viewed from England as the second and third English Revolutions.

²⁰⁹ Harold BERMAN, *Law and Revolution*, Aix-en-Provence, University of Aix-en-Provence, 2002, p. 34.

²¹⁰ Jean TOUCHARD, *History of Political Ideas. Volume 1: From the Origins to the 18th Century*, PUF, 1959 (3rd edition, 1969, p. 147).

²¹¹ SCHMITT, *Political Theology*, Paris, Gallimard, 1988, pp. 165–166.

Reconquista becoming a holy war (1063), the preaching of the First Crusade (1095), the capture of Jerusalem (July 1099), to which we might add the Battle of Hastings (1066); this was undoubtedly a crucial period. And the profound upheaval in the rules and practices of kinship is by no means the least significant of these events, provided one regards the family—structured by these rules—as the basic unit of society²¹³. But there is more, and even better, for whilst the reform of marriage fits well within a whole institutional and theological framework, it is, in reality, the *reform* itself that provides the key to understanding it, rather than being, in turn, illuminated by it. The reform of the law on marriages prohibited on grounds of incest must be seen in conjunction with a complete overhaul of all European institutions, and also with a restructuring of the philosophy of history—phenomena whose significance is very clear when viewed through the lens of the Ravenna controversy.

In this regard, before examining the text of the main document in the file, it is worth noting that the *career* of the author of **De parentelae gradibus** is in itself exemplary. The author, named Peter Damian (1007–1072), was one of the highest-ranking Roman dignitaries²¹⁴. Appointed cardinal-bishop in 1057, he could very well have ended his career as Bishop of Rome. And he was one of the key figures in the so-called Gregorian Reform. He played a very active

²¹² The *Filioque* Controversy. It was in 1014 that the Latin version of *ek monou tou Patros* became *ex Patre Filioque procedit*.

²¹³ TODD, *The Diversity of the World*, Paris, Seuil, 2017 – a compilation of *The Third Planet* (2011) and *The French Mystery* (2013), – p. 210.

²¹⁴ SCHÜTZ, *op. cit.*, p. 191, refers to a ‘high-ranking dignitary of the ecclesiastical hierarchy’.

role in the 1059 synod at the Lateran, which established the Sacred College – which he called the Senate of the Church²¹⁵ – as the body responsible for electing the pope, a role it has retained to this day. It was then that, in accordance with the Donation of Constantine, the Pope and the Curia truly succeeded the Emperor and the Roman administrative apparatus, the Sacred College succeeded the Senate, and the papal legates succeeded the prefects, adopting a constitutional structure found throughout the Empire, with, in every monastery, the abbot, his council and the chapter, and in every diocese, the bishop, the cathedral chapter and the synod. Thus developed means of unifying the law such as neither the Muslims, nor the Jews, nor the Orthodox had ever known, and which would enable the Western Church to raise sacred law to an unparalleled level of rationalisation. This is an observation by Max Weber that never ceased to strike Carl Schmitt²¹⁶.

Let us also recall that Peter Damian was, above all, a hermit monk. In 1043, he was prior of the monastery of Fonte Avellana. For it was not just any Church that seized power with the Gregorian Reform. It was a Church of monks, hermits and cenobites hostile to the world. And indeed, around the year 1000, there was a great surge of monastic and hermitic fervour. The monastery of

²¹⁵ Brian TIERNEY, *Foundations of the Conciliar Theory*, Cambridge, Cambridge University Press, reprinted 1968, p. 70: PETER DAMIAN describes the cardinals as *spiritualis ecclesiae universalis senatores* in *Contra Phylargyriam*, in MIGNE, *Patrologia latina*, CVL, col. 540.

²¹⁶ WEBER, *op. cit.*, pp. 181–183, and the ‘preliminary remark’ in **Collected Essays on the Sociology of Religion**, Vol. I, paragraph 2 at the end (published in **The Protestant Ethic and the Spirit of Capitalism**, Paris, Flammarion, 2000, p. 50); SCHMITT, *op. cit.*, pp. 159–160.

Cluny, founded in 909, was then exerting its influence throughout Europe. The 11th century was the golden age of a form of monasticism such as the West had never before known, and such as it has never known since. This century was marked by a keen tension ‘between Martha and Mary’, between action and contemplation. It was also the age of nascent Catharism (we were still a long way from the repression of the 13th century). Saint Bruno retired to the Carthusian monastery in 1084, and Cîteaux was founded in 1098. When Peter Damian campaigned for clerical chastity, and, going beyond merely excluding concubines, denounced homosexuality, he distinguished four cases, the first of which—barely less serious than the other three—was solitary masturbation²¹⁷. Our contemporaries will find it hard to believe that it was ascetics and mystics who, at the turn of the year 1000 and for nearly three centuries, took the helm of Western Europe.

But we must not overlook the period preceding 1035, before his first withdrawal from the world. For Peter Damian was also one of the most illustrious scholars of his time. Ernst Kantorowicz regarded him as the purest mind of the entire period²¹⁸. Through the references scattered throughout his writings, he shows us that he was thoroughly familiar with the world of lecture halls, and even the world of courtrooms – indeed, he is said to have

²¹⁷ PIERRE DAMIEN, *Livre de Gomorrhe*, Marseille, ACRF, 2018, p. 9. Cf. John BOSWELL, *Christianisme, tolérance sociale et homosexualité*, Paris, Gallimard, 1985, pp. 271–274.

²¹⁸ KANTOROWICZ, *op. cit.*, p. 316.

practised as a lawyer²¹⁹. Now, in the 1020s and 1030s, when he completed his own studies in Ravenna, Faenza and Parma, and then went on to teach in Parma, where he is said to have founded a school²²⁰, we are precisely at the dawn of a renaissance of the liberal arts (generally dated to 1040)²²¹. It has long been recognised that the 11th century was a period of renaissance across all branches of knowledge. And this was well before the universities; yet it was the cathedral schools and monasteries that were the driving forces. In theology and philosophy, for example, the mid-11th century marks the beginning of the Quarrel of the Universals, and I believe that, in reality, there was no other period in which the opposition between realists and nominalists was clearer, more sharply defined, or better grounded in experience²²². Of the seven liberal arts, the *trivium* comprises grammar, rhetoric and dialectic²²³. Grammar is to be understood in the philosophical sense, and it includes *hermeneutics*. Rhetoric includes the art of *advocacy*. Finally, dialectic concerns *logic*

²¹⁹ André CANTIN, 'Introduction to Peter Damian', in PETER DAMIAN, *Letter on Divine Omnipotence*, Paris, Cerf, 1972, p. 17.

²²⁰ Jean JOLIVET, in *History of Philosophy. I. East – Antiquity – Middle Ages*, Paris, Gallimard, 1969, p. 1277.

²²¹ JOLIVET, *op. cit.*, pp. 1277–1280; Étienne GILSON, *Philosophy in the Middle Ages*, ^{2nd}ed., Paris, Payot, 1962, p. 240.

²²² JOLIVET, *op. cit.*, p. 1291; GILSON, *op. cit.*, pp. 233, esp. 236–238. It is therefore surprising that Alain de LIBERA, *La querelle des universaux*, Paris, Seuil, 1996, overlooks the 11th century.

²²³ Fernand Van STEENBERGHEN, 'The Organisation of Studies in the Middle Ages and its Repercussions on the Philosophical Movement', *Revue philosophique de Louvain*, ^{3rd}series vol. 52, no. 36, 1954, pp. 572–592.

– and more specifically the syllogism. Each of these three branches is therefore relevant to law²²⁴.

However, it would appear that in the organisation of studies at that time, that is to say nearly a century before the famous Renaissance of the 12th and 13th centuries, law was not merely addressed within the *trivium*. The latter constituted only the necessary *preparatory course* for subsequently deepening one's study, unless one chose to pursue theology. Lanfranc, a contemporary (1005–1089), studied law in Bologna and founded the school of law at Le Bec, in Normandy, where Yves de Chartres (1040–1115) would later study. The Venetian Gerard (1000–1046) founded a school in Csanád, now in Hungary, which included the liberal arts, law and theology. And let us consider that at the time, in Constantinople, law was undergoing a renaissance, and that John Xiphilin (1010–1071), nicknamed 'the Living Code', was also teaching there. The rediscovery of a significant volume of the Pandects dates from 1070, and the founding of the 'School of Bologna' by Irnerius dates from 1088, but the movement thus originated from higher up²²⁵. It is therefore undoubtedly legitimate, when examining the **De parentelae gradibus**, to seek to identify a line of reasoning in Peter Damian, to carry out a methodical analysis by distinguishing the case, the question and then *the solution*—which, in logical terms, will

²²⁴ VIGUIER, *Persona ficta. A Study of the Legal Nature of Joint Ownership*, Saarbrücken, OmniScriptum, 2014, p. 597.

²²⁵ Marcel FOURNIER, 'The Church and Roman law in the 13th century', *Nouvelle revue historique de droit* (1890), pp. 80 ff.; Paul FOURNIER, 'A turning point in the history of law. 1060–1140', *Nouvelle revue de droit français et étranger* 41 (1917), pp. 129–180.

consist of two premises and a conclusion—and to conclude with a commentary on the meaning, value and scope of the latter.

PART FIVE

THEOLOGY

CHAPTER XVII

INCEST AND THE APOCALYPSE

In assessing the emergence in Ravenna of doctrines which he believes justify incest, Peter Damian positions himself from the outset on theological ground. He presents Christians with a choice between the ceremonies of the old man and the laws of the new grace of the Gospel, between the rites of the Synagogue and the Church (paragraph 18)²²⁶. And the first premise of his reasoning is as follows: to commit or justify *incest is to Judaize*.

We have seen that Saint Augustine gave a general reason why a Christian should avoid incestuous unions. The fact is that one ought to love one's neighbour, seek peace and avoid discord in society; if we assume that there is friendship between relatives but hostility between strangers, fostering harmony consists in avoiding incest, which needlessly combines two kinships in a single person, and instead spreading these ties through marriage to complete

²²⁶ *Ibid.*

strangers. This Law of Love, which is to save humanity through the commandment to marry a stranger, is timeless. It has been in force since the beginning of the world. But in the early days, the law of grace was subject to violations, justified by the state of necessity. Cain, Abel, Seth and Enoch had to marry their sisters because humanity had not yet moved beyond these first parents²²⁷. And later, necessity again compelled Abraham's clan to practise endogamy; as the sole preserver of the faith, he risked losing it through alliances with pagans and idolaters²²⁸. Under the Old Covenant, through Moses, Yahweh again gave the Hebrews a law permitting them to marry their cousins²²⁹, and at times obliging them to do so²³⁰. But God became man, and since the Incarnation, the law of grace in the Gospel has abolished these still-binding provisions. Only the Synagogue still rejects the law of Love in order to remain slavishly attached to the old law, the law that God has abolished²³¹.

Canonists following Peter Damian would find in the implications of this fact a further argument for fostering the abhorrence of incest and its Jewish character. It is written in the *Decretum Gratiani* that the union of Jesus of Nazareth with the early Church, composed exclusively of Jews, still had something of an

²²⁷ Adam and Eve – the clergy dare not consider in their writings the case of incest with the mother.

²²⁸ *Decretum Gratiani*, Causa 35, Questio 1, *dicta post, princ.*

²²⁹ Leviticus 18:6–18, 20:11–12, 14, 17, 19–21.

²³⁰ The daughters of Zelophehad: Numbers 26:33, 27:1–11, 36:1–12; Joshua 17:3–6.

²³¹ All these arguments are developed by GRATIAN: Decree of Gratian, Case 35, Question 1.

endogamous nature, since, being a Jew by the flesh taken from the Virgin Mary, Christ the Bridegroom was still of the same race as the chosen people. In this way, he was still perpetuating the horrible endogamous practice of the law of necessity, to which the first humans were subject. But when Jesus of Nazareth abolished the old law that governed the Jews, a part of that people did not follow him. The Jews were unfaithful to their covenant. Thus, at his resurrection, Christ repudiated the Jewish nation. And just as Adam and Eve, Yahweh and Israel, and the Holy Spirit and the Virgin Mary, he entered into a new and eternal covenant with the pagan nations. God has reconciled himself with those men who follow his law. Though a Jew by birth, it was with the nations that he made a covenant, thus giving, through his new life, the sign of a decision in favour of exogamy²³².

This thus goes far beyond the mere question of Christian marriage. It is an entire *weltanschauung* that is placed under the sign of the covenant²³³. The risen Christ is the head and the bridegroom of the nations, humanity being both body and bride. The spouses together form a single mystical body, the Church, of which Christ is the head, and of which all nations, united as brothers and sisters, form the members. Just as the Pope is the spouse of the universal Church, so every abbot is the spouse of his monastery and every

²³² Decree of Gratian, *dictum post* Case 35, Question 1, canon 1, § 1.

²³³ See Eugenio CORECCO, *Theology and Canon Law*, Fribourg, Éditions universitaires de Fribourg, 1990, pp. 183–185, esp. note 35.

bishop of his diocese. The links between incarnation, resurrection, incorporation and covenant are worth exploring.

Everything is modelled on this chaste, monogamous and indissoluble Christian marriage. Husband and wife form a single mystical body, a single flesh (*una caro*). Let us note, in passing, the importance of the union of flesh – presented by Peter Damian as the reunion of the original body after Adam had one of his ribs taken away (paragraphs 7 and 8²³⁴). It is under the sign of charity that the spouses form one flesh. There is no lawful union except in conjugal love, which seals a monogamous and indissoluble marriage – hence the intolerance of debauchery, cohabitation, adultery, divorce or polygamy. And the child, the flesh of the flesh of his parents, much as Eve was of Adam's, in turn devotes filial love to them. This explains very well why love for a parent extends to the flesh of that parent's flesh, that is to say, to the parent's spouse; and why love for the spouse also extends to the flesh from which they came, to the spouse's parent²³⁵. Gratian's Decree, which proceeds case by case through concrete examples, addresses Case 35, devoted to incest, through the story of a widower who remarries a relative—not a sister, but specifically the distant cousin of his late first wife (this would be our eighteenth case); and Question 2 of this same Case 35 concerns the prohibition arising from the alliance between relatives by marriage (our seventeenth case). We even find the Decree

²³⁴ *Op. cit.*, pp. 137–139.

²³⁵ For the latter case: *Decretum Gratiani*, C. 35, Q. 2–3, canon 14 (ISIDORE OF SEVILLE, excerpt from the Council of Chalon-sur-Saône, 813).

addressing the case of the spouse of the spouse's relative (the wife of the spouse's cousin)²³⁶ .

It is in the light of this entire ecclesiology that marriage becomes a *res mixtae*, a blend of the temporal and the spiritual which, in the context of a duality of authorities, is liable to give rise to a conflict of jurisdiction. Indeed, it was precisely in the 11th century that the constitutional articulation of *auctoritas* and *potestas* took the form, for the West, of a duality of authorities. And it is this duality of jurisdiction that gives rise to a duality of jurisprudence. Peter Damian explains very clearly that there are two laws, divine law (*sacri canones*) and secular law (*leges*), that they are not necessarily in agreement, and that in the specific realm of spiritual matters, such as the question of incest, it is divine law that must prevail²³⁷ . This reconfiguration coincides with the separation of the two disciplines, theology and law. Christian marriage falls under the jurisdiction of the ecclesiastical institution as regards the Christian's salvation in the hereafter, and under that of the temporal institution as regards their earthly destiny.

And if, in the 11th century, the Church began to judge, in the light of an emerging canon law, the lawfulness of Christian marriage, it seems clear that initially this was not, as one might suppose, because marriage is a sacrament that only the Church could celebrate, but rather in the name of the sacredness of the union and

²³⁶ Decretum Gratiani, C. 35, Q. 2–3, c. 22.

²³⁷ Paragraph 12, p. 143, and paragraph 17, p. 151.

parentage, free from any incest. For in the 11th century, the doctrine of the sacraments was still being developed²³⁸. It was from the perspective of its concern regarding the issue of incest that the Church examined the validity of unions, which gave it the power both to annul marriages already contracted, to grant dispensations for future ones, to judge the legitimacy of children and, indirectly, to influence the transmission of inheritances²³⁹. Owing to the superiority of its organisation, it subsequently extended its sphere of influence to include the matter of matrimonial property regimes²⁴⁰.

Peter Damian seems unable to find words harsh enough to condemn incest and the doctrines which he believes justify its practice²⁴¹. But in technical terms, it is a *heresy* and, more precisely, a *heresy of the Antichrist*²⁴². This last proposition strikes me as the culmination of his entire argument. It is based on a syllogism. If, as the first premise, incest is Jewish, we may conclude that incest is a heresy of the Antichrist, since, as the second premise, the Antichrist, upon his coming, teaches men to Judaize (*antichristus veniens*

²³⁸ GAUDEMET, *op. cit.*, pp. 188–191. The sevenfold classification would only appear with Peter LOMBARD (1096–1160), hence the subsequent distinction between sacraments and sacramentals.

²³⁹ Thomas HOBBS criticised the link between marriage and the sacrament, the lawfulness of marriages, the legitimacy of children and the right of succession (*Leviathan*, Chapter 47, paragraph 9).

²⁴⁰ Raoul NAZ, *Dictionnaire de droit canonique*, Paris, Letouzey, 1935, vol. VI, p. 281.

²⁴¹ Dangerous error, ridiculous assertion, heresy, absurdity (PETER DAMIAN, Letter I, paragraph 2), insult to the Church (paragraph 18), basilisk, conflagration, a cancer eating through the bowels of the Church (paragraph 25), an error of such great perversity, a deadly leprosy upon the body of the Church, a plague (paragraph 26), the venom of dogmatic perversion (paragraph 26), nonsense, etc.

²⁴² *Op. cit.*, paragraph 18, p. 153.

*iudaizare homines doceat*²⁴³)²⁴⁴ . Whilst the link between incest and Judaism should come as no surprise to us²⁴⁵ , the idea of a link between Judaism and the Antichrist is far less accessible to us. “It is a well-known fact,” says Pierre Damien. Admittedly, Norman Cohn reports that there has “long been” an association of Jews with the Antichrist in eschatological tradition²⁴⁶ . The Antichrist, a mysterious historical figure or actor in whom, according to him, one should see “the gigantic embodiment of all destructive and anarchic powers”²⁴⁷ . But Bernard Lazare says nothing about the 11th century in his work on anti-Semitism²⁴⁸ . Hervé Ryssen merely notes that after the Early Middle Ages, “the situation of the Jews only began to darken once more in the heart of Europe from the end of the 11th century onwards”²⁴⁹ . And the author mentions a council in Rome in 1078 under Gregory VII²⁵⁰ . Olivier Rioult also mentions a letter from the same Gregory VII dated 1081²⁵¹ . This is very little, even if these are

²⁴³ *Ibid.*

²⁴⁴ To the inquisitive and hostile eye reading this, I would point out that PETER DAMIAN is not speaking of the Jews, but of Judaism, and he does not establish an immediate link between the Jews and the Antichrist, but between Judaism and the Antichrist.

²⁴⁵ See chapter XIV *above*.

²⁴⁶ Norman COHN, *The Apocalyptic Fanatics* (1957), Paris, Julliard, 1962, p. 69.

²⁴⁷ *Op. cit.*, p. 32.

²⁴⁸ See the chapter ‘On Anti-Judaism from the 8th Century to the Reformation’ in Bernard LAZARE, *Anti-Semitism: Its History and Causes*, Kontre Kulture, 2011, pp. 61–78; cf. Jules ISAAC, *The Origins of Anti-Semitism*, Paris, Calmann-Lévy, 1956, p. 319.

²⁴⁹ RYSEN, *A History of Anti-Semitism*, 2nd ed., Levallois, Baskerville, 2010, p. 99, see also pp. 99–101.

²⁵⁰ *Op. cit.*, p. 100.

²⁵¹ Olivier RIOULT, *On the Jewish Question*, Saint Agobard, 2018, p. 176, see also pp. 167–170.

valuable clues, and this question warrants further investigation²⁵². Be that as it may, we have our text, dated by some to 1046, to conclude that *incest is a heresy of the Antichrist*.

Let us fully explore all the implications contained within this statement. We must begin by understanding that incestuous doctrines can only originate from the Antichrist, and that consequently, the observation of their spread even amongst Christians is proof of his presence amongst us. Indeed, it was a widespread belief in the Middle Ages that the Antichrist had already been born²⁵³. But we must delve deeper into the explanations to fully grasp the meaning of the statement. For an 11th-century monk well-versed in the classics (the Apocalypse of Saint John, the Epistles of Saint John and Saint Paul, Saint Augustine's *City of God*), the coming of the Antichrist signifies that we are at the very end of time. The observation, from Ravenna, of the spread of incestuous doctrines ultimately signifies that the end of time is very near. We are, writes Peter Damian, 'today facing the imminence of divine judgement'²⁵⁴. Elsewhere he notes that 'the life of humanity is drawing to a close'. Norman Cohn observes that "in the eyes of medieval people, the dreadful drama of the Last Days was by no means a chimera with a more or less vague and distant deadline: it was an infallible

²⁵² Franz SPIRAGO, *The Antichrist and the Jews* (1921), La Maison du Salat, 2017.

²⁵³ COHN, *op. cit.*, p. 66.

²⁵⁴ *Op. cit.*, p. 163.

prediction which one felt, almost at every moment, was on the verge of coming true²⁵⁵ ". "At any moment," notes Norman Cohn, "the Antichrist may set up his throne in the Temple of Jerusalem²⁵⁶ . " And, returning to the link between the Antichrist and the Jews, he notes that "if the Jews appeared more powerful, their machinations more intolerable and their sorcery more disastrous than ever, this was merely further proof that the End was near²⁵⁷ ". As for Armageddon, the final battle is about to begin and it is time to choose sides. This is the key to understanding—let us not say the fervour or radicalism, but the fanaticism—with which this revolution is taking place.

²⁵⁵ COHN, *op. cit.*, p. 32; cf. BERMAN, *op. cit.*, p. 41, who, incidentally, draws on COHN'S work.

²⁵⁶ *Ibid.*

²⁵⁷ COHN, *op. cit.*, p. 70.

CHAPTER XVIII

TREATISE ON ESCHATOLOGY

Currently, in history, philosophy and theology, there is *a consensus* that this belief in the nearness of the end of time was very much alive in the Middle Ages. It is almost its defining characteristic, even if some note its resurgence right into our modern era, including the most contemporary²⁵⁸, and, albeit more controversially, in more or less secularised forms²⁵⁹. Yet very few avoid lumping all beliefs together under the umbrella of ‘millenarianism’ in a confused manner. Norman Cohn, for example, fails to perceive any nuance at any point, and even goes so far as to write that after the defeat of the Antichrist, Christ will reign until the end of the world. Yet the statement is false, or at the very least requires interpretation²⁶⁰.

²⁵⁸ GAUCHET, *The Advent of Democracy III. Put to the Test of Totalitarianism 1914–1974*, pp. 499–500 (‘secular religiosity’ and the National Socialist ‘apocalyptic scheme’).

²⁵⁹ Karl LÖWITH, *History and Salvation*, Paris, Gallimard, 2002; Hans BLUMENBERG, *The Legitimacy of Modern Times*, Paris, Gallimard, 1999, p. 140 ff.

²⁶⁰ *Op. cit.*, pp. 62–63.

Harold Berman is no clearer²⁶¹. For my part, I believe that none of the major events of this crucial period in our history can be understood unless one bears in mind even the slightest idea of what *exactly* the imminence of the Judgement might have meant. Only a fear of the Last Judgement as intense as the agony of a man flayed alive can help us understand the driving force behind this European revolution²⁶². But one will search in vain for the Antichrist in the Catechism of the Catholic Church, or, worse still, in that of the Bishops of France²⁶³. Even hell and the Last Judgement are repressed there as taboos. They have become almost heresies. This is precisely why it is necessary to explain this belief as best we can.

As a canonist who claims to be neither a theologian nor a historian of ideas, I shall content myself with formulating the following thesis. The historical figures of the 11th century clearly had a religious perception of *time*. But the conception they developed set Western Christianity firmly apart, distinguishing it from all other religions of the Book, even though it was never anything more than the development of certain shared potentialities. It was not until the 11th century that a certain theology—²⁶⁴—or, if you will, a

²⁶¹ *Op. cit.*, p. 41 ff.

²⁶² Georges SOREL, *Selected Texts* (1908), Kontre Kulture, pp. 96, 162, 216; WEBER, *The Protestant Ethic and the Spirit of Capitalism*, II. 1 (the religious foundations of intramundane asceticism), Paris, Flammarion, 2000, p. 193; SCHMITT, *Parliamentarism and Democracy*, Paris, Seuil, 1988, pp. 84–85 and 94–95, cf. *The Concept of the Political*, *op. cit.*, p. 97.

²⁶³ *Catechism of the Catholic Church*, Paris, Mame/Plon, 1992; *Catechism for Adults by the Bishops of France*, Paris, 1991 (a single, very brief occurrence in the *Catechism of the Council of Trent*).

²⁶⁴ Guy DEBORD, *The Society of the Spectacle* (1967), Paris, Gallimard, 1992, Chapter V.

philosophy of history based on the reading of Saint Augustine, reached full maturity. I can therefore do no better than to refer to *The City of God*, and, with particular regard to the last ends, to its Book XX. The following lines are intended solely to clarify the general framework within which my own understanding of the prevailing philosophy of history in the 11th century is situated. This is first and foremost a clarification necessary in my own eyes and for my personal use, but I feel I owe it to my reader as well, for the sake of transparency. This should suffice to justify that this brief digression has no other ambition than to set out, albeit in a somewhat overly simplistic manner, a few basic principles and broad outlines. For greater clarity, I shall proceed by propositions, in five points.

1. *Time is the emergence of the finite within the infinite.* – The linear conception of time is closely associated with that of creation *ex nihilo*. *Before* the world there is no time, and there is no time *after* the end of the world. Time is therefore established within eternity, and it is for us, from within creation, that the narrow and limited idea develops not only of a *before* and an *after*, but also of a *during*—a linear duration which, like any line segment, has a beginning, a middle and an end. That is not all. This linear duration is interrupted in the middle by a point, an axial event marking an irruption of the infinite into the finite, which cuts it into two segments, and which alone can give us a measure of an irreversible

time that allows us, in other words, to escape cyclical time²⁶⁵. For the historical actor who must situate his present time on this segment, two eras and two worlds may therefore stand in opposition: that of before and that of after the axial event²⁶⁶.

We have thus established the framework that will enable us to resolve the confusion between the two radically opposed conceptions of the end of time and ‘millenarianism’. We are, in a sense, following the path taken by Saint Augustine himself, who began by situating the *millennium* in the future, before situating it in his present.

2. Initial conception: *the present world is evil; the millennium is yet to come*²⁶⁷. – When we situate our present before the pivotal event, we are in an age of misfortune, within a world where evil predominates; indeed, according to the most extreme conceptions, our entire physical universe is evil, created by a God who is himself evil, a demiurge whom Gnosticism identifies with the Father, the vengeful God of the Old Testament, God of Israel and the Jews. But fortunately, the Event is about to take place. A Saviour will come; a wise, good and merciful God, currently still hidden and

²⁶⁵ DEBORD, *ibid.* Cf. René GUÉNON, *The Principles of Infinitesimal Calculus*, Paris, Gallimard, 1946, Chapter VII, pp. 49–54; *The Multiple States of Being*, Paris, Guy Trédaniel, 1984, Chapter V, pp. 37–40; Saint AUGUSTINE, *op. cit.*, XI–vi; EUSEBIUS OF CAESAREA, *Praise of Constantine*, VI, 3–6.

²⁶⁶ The term is from Karl JASPERS, *The Origin and Meaning of History* (1949), Paris, Plon, 1954, but is said to have already appeared in HEGEL.

²⁶⁷ DEBORD, *op. cit.*, § 136; Mircea ELIADE, *The Myth of the Eternal Return*, Paris, Gallimard, 1969, pp. 120 ff.; COHN, *Cosmos, Chaos and the World to Come* (1993), Paris, Allia, 2000; COHN, *The Fanatics of the Apocalypse*, *op. cit.*, p. 102; CORBIN, *op. cit.*; Karl LÖWITZ, *History and Salvation*, Gallimard, 2002; SCHOLEM, *op. cit.*, pp. 23, 132, 170.

unknown, will reveal himself. A gigantic battle will take place, good against evil, the elect against the damned, which will result in the regeneration or the disappearance of this corrupt world in favour of another world, a new world for a time of perpetual happiness. According to Jewish or Christian Gnostics²⁶⁸ the Messiah or Christ will chain the Devil and reign with his elect for a thousand years. This is the *Millennium*. This is why we speak of messianism and millenarianism. The historical action in the world of those who are convinced they belong to the elect of the world to come, or, better still, that they themselves are the Saviour who will change the world, may manifest itself as much through a motionless and passive waiting as through a much more active approach.

The Hellenistic period is entirely dominated by this conception, which is not purely internal. Gershom Scholem contrasts Judaism and Christianity as external, secular and historical versus internal and ahistorical spirituality. Henry Corbin, too, systematically contrasts eschatology and history, esotericism and exotericism. In reality, there is no religion, however inward and spiritual it may be, that does not have an impact on the world; conversely, there is no known form of politics whose indifference to all religion does not nevertheless have its theophanic aspects.

3. A shift in perspective: *the reign of evil is past, the millennium is present...* – Such is the bold theological break that had been brewing for centuries, the most influential formulation of

²⁶⁸ DEBORD, *op. cit.*, § 138.

which is commonly attributed to Saint Augustine²⁶⁹, and which was to come to fruition in the 11th century. The Incarnation is the pivotal event. It lies in our past, or, to put it more precisely, it is constitutive of our present. The Kingdom of God, the reign of Christ and his elect, are present realities. The *Millennium* is the time of the institutional Church. This world is therefore the very last. There will be no other. Nothing can be better than the hypostatic union of the divine nature and the human nature. When the Devil is loosed, the final battle will take place, and this will be the end of ends, the second coming of Christ, his parousia, his glorious return for the resurrection of the dead and for the Last Judgement. The world will disappear, and the infinite will open up for eternity, for some to paradise, for others to hell.

4° Supplement: ... *but the Antichrist is already at work...* The *millennium* does not suddenly lead into eternity – be it an eternity of delights or an eternity of torments. Without delving too deeply into the details of Catholic eschatology, we cannot fail to point out that, towards the end, the Devil is loosed, and that, before the Resurrection of the dead and the Last Judgement, the end times are those of a final struggle between the elect and the damned. It is a return of misfortune that rages against the elect, at first in a confused manner, before the final struggle in which evil will be definitively crushed. It is throughout this final phase of time that we speak of the active presence, first hidden and then apparent, of the mysterious

²⁶⁹ *Ibid.*

figure of the Antichrist, also known as the Lawless One, the Man of Lawlessness, the Son of Perdition or the Adversary²⁷⁰. Once again, the aim is not to delve into all the nuances and ramifications of the multitude of interpretations that have developed on this theme, but merely to sketch out the broad framework within which they fit. In this instance, the starting point and duration of *the millennium* were subjects of much debate²⁷¹, linked, of course, to two other questions. The first, and more fundamental, was whether the Devil had been released, and consequently whether the Antichrist was present; and the second, following on from that, was whether the final battle was about to begin, or had already begun.

Much has been said about a great fear of the year 1000 in Western Europe during the 10th century; it seems this was a historical legend. But there is no denying that there was a fear of the End around the year 1033. If Christ fought the first battle by descending into hell in 33 AD, and if he bound the Devil for a thousand years, then, taking this figure literally, the Devil was unbound and the Antichrist active from 1033 onwards. The Apocalypse had begun. The serpent has emerged from its slumber; it bites, and its venom spreads through the body of the Church²⁷². Until he has revealed himself beyond doubt, it remains merely a blind

²⁷⁰ ST JOHN, *First Epistle*, 2.18–19 and 4.1–6; ST JOHN, *Revelation*, 20.2–15; ST PAUL, *Second Epistle to the Thessalonians*, 2.12.

²⁷¹ AUGUSTINE, *op. cit.*, XX-xiii-xiv, discusses at length whether or not this final period of time should be included in the calculation of a thousand years; earlier, he discusses the meaning of this figure (XX-vii-2).

²⁷² PETER DAMIAN, Letter I, para. 26.

struggle. But at the time, many already identified the Antichrist in the features of this or that prelate or prince. And, in his confrontation with the Pope, Frederick II of Hohenstaufen (1194–1250) went so far as to say, ‘I want to be the hammer’²⁷³. The Antichrist is born, he is active, and never has personal salvation coincided so closely with the salvation of the world.

5th Clarification: ... *against whom the kat-echon fights*. – It was Carl Schmitt who drew our attention to a certain Christian conception of history, now forgotten but alive from Late Antiquity to the Middle Ages²⁷⁴. In this context, he emphasised what he saw as the importance of *the kat-echon*. Widely discussed by the Church Fathers, and in particular by Saint Augustine, this notion relating to the end times is mentioned by Saint Paul in his Second Epistle to the Thessalonians. The Apostle to the Gentiles writes to them not to be too quick to believe that we are in the Day of the Lord’s Coming and that it is already time to gather together with him (chapter 2, verse 2). He reminds them that first, in due course, the Man of Lawlessness, the Son of Perdition, the Adversary—the figure identified as the Antichrist (*ibid.*, verses 3–4, 6, 8–10)—must be revealed, only to be destroyed precisely by the Coming of the Lord. He then speaks twice of ‘that’ which restrains the Antichrist, ‘that’ which must disappear

²⁷³ KANTOROWICZ, *Emperor Frederick II* (1927), in *Works*, Paris, Gallimard, 2000; cf. Friedrich NIETZSCHE, *The Antichrist* (written 1888–1889).

²⁷⁴ SCHMITT, *On the Political*, Puiseaux, Pardès, 1990, pp. 174–175 (‘Unintended Accelerators’ (1942)) and 247–248 (‘The Unity of the World (II)’ (1951)); *The Nomos of the Earth* (1950), Paris, PUF, 2001, pp. 63–66; ‘Three Possibilities for a Christian Vision of History’, *Arbor* 62 (1951), pp. 237–241.

to allow him to be revealed (verses 6–8). This will mark the end of time once the Antichrist is no longer restrained by this force or by this mysterious person. There is no reason to doubt that Peter Damian situates his remarks within the framework of his contemporaries' beliefs, if indeed he is not one of their ardent proponents. When he refers to the Antichrist, it is not merely to claim that the doctrines he is combating in Ravenna are those of the Antichrist, but rather as an allusion to the Antichrist's occult activity.

The Antichrist is present, but held back, restrained and therefore hidden. By delaying the end of time, the *kat-echon* perpetuates our world and prolongs the duration of *the millennium*. Some have wondered about the meaning of *the kat-echon's* actions, but the historical perspective is no longer the same if, instead of placing yourself within an evil world that may vanish to make way for a perfect world, you place yourself in a world that is good in itself but which the forces of evil threaten with the most definitive and complete of disappearances. There is a close confusion between individual salvation and collective salvation. Whoever wishes to escape eternal torment must immediately take up the cause of Christ. The last words of Peter Damian perfectly illustrate the world to which this apocalyptic tension opens up. Once absurd doctrines have been rejected, once heresy has been extinguished and harmony restored, 'may the serpent,' he writes, 'numbed, cease to spread the

venom of dogmatic perversion, and may the Church of Christ henceforth abide wholly in the purity of her modesty²⁷⁵.

One might say that I have, in a manner of speaking, summarised history in the form of a trial. The trial *in jure* always comprises three phases: curse, blessing and judgement. The duration of a trial is confined to the hearing, which the magistrate opens with one formula and closes with another. Everything else takes place outside this timeframe, whether before, with the preliminary investigation, after, with the execution, but also intermittently during adjournments of the hearing, and especially during the critical and secret moment of deliberations. I have several good reasons to put forward in defence of this perspective. Firstly, I make no secret of the fact that, being a lawyer myself, my view is necessarily biased. Secondly, this framework also has educational value for my readers, since I am inevitably addressing lawyers, whether seasoned or newly qualified. Finally, the historical conception of time is certainly linked to the law itself. I note that power, religion, writing, law and history are in²⁷⁶. Consequently, the lawyer is perhaps not the least well-placed to understand what history is.

²⁷⁵ PETER DAMIAN, Letter I, line 26.

²⁷⁶ DEBORD, *op. cit.*, §§ 131 and 134; Ezra POUND, *How to Read*, Paris, Pierre-Guillaume de Roux, 2012, Part 1, III and IV; GOODY, *The Graphic Reason* (1977), Paris, Minuit, 1979.

CHAPTER XIX

THE TURNING POINT OF THE^{11th}CENTURY

This view of time and history has had a lasting impact on Western thinking right up to the present day²⁷⁷. Yet it was merely a fleeting phenomenon, as it soon began to fade and lose its rigour. The rise of the concept of purgatory bears witness to this development. If the end of time is near, there is no time for a purgatory which presupposes, in addition to predestination, a distinction and a temporal gap between the particular judgement and the general judgement. It is telling that purgatory scarcely began to emerge in people's consciousness until the mid-13th century, with the Council of Lyon in 1274 under Innocent IV, only to be truly integrated with the Council of Florence in 1439 and even more firmly with the

²⁷⁷ Claude DUBAR, 'The End of Time: Christian Millenarianism and Temporalities', *Temporalités* 12 (2010).

Council of Trent (1545–1563)²⁷⁸ . Another marker of the same phenomenon is the view of history held in 1190 by the monk Joachim of Fiore (1131–1202). Time is no longer divided into two, but into three reigns: the past reign of the Father, the present reign of the Son, and the future reign of the Holy Spirit²⁷⁹ . We are no longer in the end times, nor in the binary radicalism of Gnosticism. Perhaps our historians have inherited this conception with their triptych of Antiquity-Middle Ages-Modern Times, a conception which, in any case, stands in opposition to the simple dichotomy between the Ancients and the Moderns.

The Protestant Reformation would rearticulate the same fundamental structure to further accentuate the divide between the temporal and the spiritual. For Lutherans, the elect resurrected in Christ are all brothers and children of God, but, on earth, indiscriminately mingled with the reprobate, they are subject, along with them, to the same law of Caesar. The apocalyptic perspective saw a resurgence more in Calvinist circles, particularly among the Puritans. One should look more closely at the New Jerusalem project of the *Pilgrim Fathers*, who left England aboard the *Mayflower* in 1620 to found a colony in America. A few decades later, at the height of the Republic (1649–1660), the members of the Puritan *Levellers* sect gathered around Oliver Cromwell had a rather curious

²⁷⁸ Jacques LE GOFF, ‘The Birth of Purgatory (12th–13th Centuries)’, in *Proceedings of the Congress of the Society of Medieval Historians in Public Higher Education* (1975), pp. 7–10; *The Birth of Purgatory*, Paris, Gallimard, 1981.

²⁷⁹ LÖWITH, *op. cit.*, pp. 184–199.

programme concerning the Jews—their dispersion followed by their gathering in Palestine for the reconstruction of Solomon’s Temple—and they were preparing to welcome Christ on his return to live peacefully with him for a thousand years²⁸⁰. If this is indeed the case, it is a form of millenarianism with a rather Gnostic structure: the elect, scattered among the nations, will gather in the place of triumph, and a world of peace will succeed this world of misery. These ideas remain relevant in the United States, where the War of Independence (1775–1783) and the American Civil War (1861–1865) are viewed from England as the second and third English civil wars²⁸¹.

Bossuet’s historical vision of seven ages may bring to mind that of Saint Augustine, yet it differs from it on a crucial point. Saint Augustine divides time into seven parts. The first part begins with the creation of the world and with Adam. Then the ages follow one another until Christ, through whom the sixth and penultimate age of the world begins. The seventh and final age is that of eternal rest, which begins with the Last Judgement. In Bossuet’s view, there are indeed seven ages of the world that follow one another from the creation, but he adds, following Moses, an additional age between Abraham and Solomon, whereas Saint Augustine counts only one age between Abraham and King David, so that the seventh and final age begins with the birth of Jesus Christ and extends to the present day²⁸²

²⁸⁰ Thierry MEYSSAN, *The Big Lie 2*, Plogastel, Saint-Germain, Demi-Lune, 2018, pp. 124–125.

²⁸¹ *Ibid.*

²⁸² BOSSUET, *Discours de l’histoire universelle* (1700), Part 1.

. “It is in six ages,” writes Peter Damian, “that the history of the world unfolds, and the life of humanity comes to an end²⁸³ .”

Be that as it may, from the perspective of the history of religions, the upheaval of the 11th century must be understood as the direct aftermath of the Axial Age, itself a product of the vast movement of departure from primitive religion that Marcel Gauchet described as the ‘religion of the departure from religion’, and which Max Weber had previously termed the ‘disenchantment of the world’. From the dawn of the earliest civilisations to the ferment following Zoroastrian eschatology, the turning point consists in moving from unity to ontological duality, that is to say, in coming to terms with the loss of a One world, where communication with the invisible is possible, and in accepting that there are two worlds, and that there is no communication between our world and that of transcendence²⁸⁴ . In the 11th century, the offensive of the One against the Many – to borrow Marcel Gauchet’s analytical framework – resulted in a marked decline of monism and a rise in metaphysical

The Catholic conception may have experienced a revival in France in the 19th and 20th centuries, largely outside the hierarchy, notably through the visions of Maximin Giraud and Mélanie Calvat. Louis MASSIGNON said of Mélanie’s account, published in 1878, that it was a crystallisation of her view of Catholic eschatology. MASSIGNON, *Parole donnée*, Paris, Julliard, 1962, p. 182. Melanie’s writing published by Léon BLOY, *Celle qui pleure*, Paris, Mercure de France, 1945, pp. 211–220; see pp. 216–220 for the end of the millennium (nos. 21–33). Émile APPOLIS, ‘On the margins of contemporary Catholicism: millenarians, cordiphores and Naundorffists; on the “secret” of La Salette’, *Archives de sociologie des religions* 14 (1962), pp. 103–121. Eric MURAISE, *He Who Comes from the Darkness. History and Legend of the Great Monarch*, Paris, Albin-Michel, 1975.

²⁸³ *Ibid.*, p. 139.

²⁸⁴ SCHOLEM, *The Major Trends in Jewish Mysticism* (1946), Paris, Payot, 2014, pp. 19–22; GAUCHET, *The Disenchantment of the World*, *op. cit.*, pp. 86–89.

dualism²⁸⁵ . We now understand that social reform can proceed under the banner of unity, charity and alliance, yet paradoxically through a mode of radical distinctions. Under the banner of the distinction between heaven and earth, the era emphasises the division between clergy and laity. ‘There is no longer man and woman,’ says the Apostle, and Christ teaches that at the Resurrection there is no longer husband or wife²⁸⁶ ; thus, whilst on earth the Christian’s salvation depends on the sacrament of marriage, within the Church it is celibacy that prevails. Whilst the layperson is offered the choice between salvation through Christian marriage and perdition through debauchery, the cleric is assigned celibacy and chastity²⁸⁷ . It is the apocalyptic ideas of the imminent division between heaven and hell, and of a final struggle between the elect and the damned, that dictate these distinctions between clergy and laity, canon law and secular law, and even between Christians and Jews. The Papal Revolution was indeed a fanatically driven enterprise. The legal dispute over incest was therefore far from being confined to Ravenna, Italy or even the West alone. The stakes were universal from the outset; it was the salvation of mankind that

²⁸⁵ ‘The paradox here being that the emergence of the theme of the One points towards transcendence and ontological duality, whereas the ancient economy of the multiple is the condition and the key to the representation of a single world’ (GAUCHET, *op. cit.*, p. 88).

²⁸⁶ SAINT PAUL, *Epistle to the Galatians*, 28. SAINT MATTHEW, *Gospel*, 22:30, “at the resurrection men will not take wives, nor will women take husbands, but they will be like the angels of God in heaven”; cf. *ibid.* 19:29, SAINT MARK, *Gospel*, 10:29, SAINT LUKE, *Gospel*, 18:29.

²⁸⁷ There is a connection to be explored between Western monasticism and Marcionite Gnosticism. Jacob TAUBES, *Paul’s Political Theology*, Paris, Seuil, 1999, pp. 89–91.

was at stake. I have no doubt that Peter Damian was driven by the conviction that he was participating in the struggle against Satan.

It therefore marks a break with the Gnosticism that still prevailed during the early centuries of Christianity, even though it would continue to haunt the Middle Ages and resurface from time to time right into the heart of our modern era. Over four or five millennia, religions have been the subject, since the earliest civilisations of the Fertile Crescent, the Ganges and China, of slow and meticulous elaboration²⁸⁸. Credit must be given to Henry Corbin for establishing that the Gnostic perspective had not yet been freed from the cyclical conception of time²⁸⁹. It is only with the Catholic eschatology of the Great Church—that of the theology of the hypostatic union of the two natures—that we enter decisively into irreversible time. This is also an observation made by Guy Debord. ‘The Middle Ages (...) is the moment when cyclical time (...) is truly eroded by history.’ And he pinpoints this moment precisely to the era that concerns us: ‘irreversible time (...) slowly revealed itself as the unknown work of the era, when the great official historical enterprise of this world had failed with the Crusades²⁹⁰.’ He also noted, a fundamental point for our subject, the coincidence of this moment with the dissolution of blood ties and, in the context of the

²⁸⁸ COHN, *Cosmos, Chaos and the World to Come: From the Myth of Combat to Eschatology*, *op. cit.*

²⁸⁹ For example, *Face of God, Face of Man*, Paris, Entrelacs, 2008, pp. 317 and 339; *The Paradox of Monotheism*, Paris, L’Herne, 1981, pp. 54–55, 93–94, 113, 123–126.

²⁹⁰ DEBORD, *op. cit.*, § 137.

birth of political power, the shift from the succession of generations to the succession of powers²⁹¹.

There is certainly a systematic coherence, or if you will, a profound structural relationship between our perception of time, whether as a wheel or a cascade of grains, the vision we form of the succession of generations—as the eternal return of the same, in the identity of *the avus* and the *nepos*—or as a chain cast into nothingness, clinging to the present link that passes without return—and the conception of incest that this implies. This possible connection between the philosophy of time and history, succession and incest brings us back to the heart of our subject. Inheritance law, which governs the transfer of property between generations, is therefore the first to be concerned. To demonstrate the logic of this, we must now lay aside the robes of the canonist and don those of the civil law scholar, and join Peter Damian in the still-burning fire, a thousand years on, of the Ravenna controversy.

²⁹¹ DEBORD, *op. cit.*, § 131.

PART SIX

DOGMATICS

CHAPTER XX

RESPONSE TO PETER DAMIAN

We have just seen the zeal, not to say fanaticism, with which the Church enforced the rules against incest. But all this has not made it any clearer to us why it permitted marriage only to a cousin of the seventh or eighth degree, without distinguishing between descent through the male and female lines. The immediate cause of the extension of the incest prohibition in the 11th century is well identified by historians. It is perfectly established that canonists took figures used to designate a certain relative in the Roman mode of computation and transposed them into the framework of canonical computation, with the consequence that an entirely different relative was thereby designated. Before providing further details regarding these competing systems of calculation, it is necessary to examine in greater depth the initial cause which, combined with the conflict between the systems, led to the catastrophe of Western exogamy.

There is a reason behind the choice of the numbers seven or eight. It is well known that they derive from Roman inheritance law. After the *de cujus*'s heirs (relatives related to the *de cujus* through the female line at the time of his death) and the agnates (relatives of *the de cujus* through the male line), the praetor's edict admitted the cognates (the *deceased's* relatives, whether through the male or female line) into a third class, for which succession generally applied only up to the sixth degree, and up to the seventh for the son and daughter of the first cousin (according to Justinian's *Institutes*, Book 3, Title 5, § 5). This is why the numbers six and then seven were chosen *for the prohibition*. But what cannot be emphasised enough are the assumptions underlying such a choice.

The primary idea, repeated time and again by Peter Damian and by canonists, is that one right excludes the other. The right to inherit excludes the right to marry. For if one has the right to inherit from someone, it is because one is their relative²⁹² ; and, in other words, when the kinship ceases, the right to inherit ceases with it. This is already a premise that merits examination. But that is not all. If one is a relative, then it is no longer possible to marry, for that would constitute incest. The implication of this second premise is the defining feature of the 'Arab', Semitic or Eastern conception. And after all, why should kinship cease at a certain degree among human beings, if we are indeed all descendants of Eve? Is not every woman

²⁹² Council of Meaux, cited by PETER DAMIAN, Letter I, para. 9, and the postulate is invoked in paras. 10 and 11. PETER DAMIAN also cited Pope CALLIXTUS (*op. cit.*, para. 3). This council is mentioned in the Decretum Gratiani, Case 35, Questions 2–3, Canon 1.

on this earth my cousin, my sister, my aunt or my niece, if she is not my mother or my daughter? It is here that we part ways with the Orientals, for whom, since all alliances are fundamentally endogamous, there is no longer any obstacle to marriage with a first cousin, or even a sister, as we have seen with the Egyptians and the Mazdeans. Westerners, on the contrary, assume that kinship, founded on presumed affection, is lost with the passing of generations. It is precisely the role of marriage to rekindle this affection which, so to speak, had been slipping away²⁹³. This is why marrying a relative, for whom affection is already present, would be a waste of time, whereas marrying a stranger is a way of working towards peace on earth. The whole system becomes clear when one considers that affection is expressed above all through worldly possessions.

Money, land and movable property—in short, the family estate—is supposed to be the measure of affection. Those to whom it is passed on can only be people for whom one has affection, and since one can only have such deep affection for one's relatives, it follows that the heir can only be a relative. Kinship ceases with affection just as affection ceases with kinship; inheritance accompanies affection, so when it ceases, it is a sign that kinship has ended. Once again, this is a conception entirely different from that of the Orientals, who may shamelessly, and sometimes even must, marry people with whom there is a mutual right of succession. The

²⁹³ AUGUSTINE, *op. cit.*, XV-XVI-2; PETER DAMIAN, Letter I, para. 7 (for an application).

circle of heirs and that of marriageable women coincide in the case of the cousin. Moreover, it is less noticeable that even a spouse who is a stranger to the family inherits. If there is one paradox in Western law, it is this very right, which was adopted very late, for if there is one person in our law who should not inherit simply because they are not a relative, it is the spouse. Islam, on the contrary, recognises rights not only for the cousin, but also for the surviving spouse²⁹⁴. Within the framework of the Eastern system, this makes sense. But it is as though a part of this Eastern system—the spouse’s right of succession—had been transposed into the Western system, in place of the prohibition on inheritance that *originally* applied to the spouse. This is a recent rule in our law²⁹⁵.

I believe that the crisis of the 11th century can be explained by an aporia of the same kind. For the West, the premise linking inheritance law and incest was true in the collateral line as long as inheritance law remained patrilineal, clan-based and still aristocratic. But it became false when the model of inheritance law was adopted from the other clan system, the Eastern one of endogamous aristocracy. It is this catastrophic shift that we must make clear to people’s minds. At the heart of every system, on either side of the anthropological divide between exogamy and endogamy, lies the status of women—as sisters, cousins, wives, mothers or daughters. This calls into question women’s inheritance rights—long

²⁹⁴ Quran, 4:12.

²⁹⁵ See the open letter from a group of law professors opposing the law of 3 December 2001: ‘237 signatories representing 37 universities’, *Dalloz* (2001), pp. 2899–2900.

excluded in the West, granted very early on in the East—and the far older practice of the dowry and bride price, which would plunge us back into the primitive world.

The quest for the boundaries of kinship

Drawing the boundaries of the clan, distinguishing the relative from the stranger, and thereby enabling men to know to whom property belongs and which women are forbidden and which are permitted—this, as we have seen, is the primary concern that underpins all primitive systems of kinship. Thus, to take this example, the patrilateral parallel cousin is forbidden, for she is a relative, and conversely her brother, the patrilateral parallel cousin, is also a relative, sharing in the clan's common property. I shall not elaborate in this work on the question of property—communist property within a clan framework, then private and capitalist at a later stage. It suffices to note, regarding primitive origins, this logical coincidence between the ownership of property and the prohibition of women. Where there is 'common property', there is a 'forbidden woman', and where there is 'another's property', there is a 'permitted woman'. Ownership ceases at the clan's boundary, and it is marriage that becomes permitted. Property is appropriated and is already, in a sense, passed on between clan members, and it circulates between clans in exchange for women as a bride price – or as blood money.

When canonists seek the limits of kinship, to define which relative is no longer a relative and may be married as a stranger,

they are acting on an understandable concern. Except that for millennia this did not require a council or reflection. When they draw the connection between the loss of the right of succession and the opening up of the right to marriage, they are fundamentally correct. But they proceed blindly, failing to see that this coherence stems from a higher principle. They no longer perceive the clan entity. Deriving the loss of kinship from the loss of inheritance rights remains acceptable so long as inheritance law itself adheres strictly to clan logic. But if it departs from this, in other words if property comes to be passed on by inheritance outside the clan, it is no longer true to say that the heir is necessarily a relative and that such a relationship is prohibited.

Changes in Roman law

For a long time, the Romans maintained a strictly patrilineal system of inheritance. From the Law of the Twelve Tables onwards, the legal entity known as *the familia*, which is merely one of the branches of the clan (the *gens*), served as the primary framework for inheritance. The clan comprises all relatives descended from the same ancestor through the male line. He who has no living ascendants is the head of a *familia*. He may be alone if he himself has no descendants. Otherwise, all his descendants are members of his *familia*. An estate is attached to *the pater familias*. On his death, this estate passes to his children under his authority, who in turn become *pater familias*. These heirs are the sons of the head of the family, who in turn will pass on their share of the estate to their

sons. In Rome, a daughter inherits, unless she has been married *cum manu* (which has placed her under her husband's authority); in that case, upon her death, her property passes to her brothers or to her nephews (the sons of her brothers), not to her own children, who belong to another *familia*. A woman is either her father's daughter, in the case of an unmarried daughter or one married *sine manu*, or her husband's daughter, in the case of a marriage *cum manu*.

Property therefore never leaves the *family* through *inheritance*. In the absence of descendants, the property passes to the agnates, then to the entire *gens*. The agnates are the closest relatives; the *gens* comprises all the descendants of the same ancestor. It is here that the concepts later adopted by canonists come into play. Whether the memory of exact kinship relationships has been lost, or whether they are too distant for there to be a name to designate them, or whether they exceed a certain number, in any case two members of the same *gens* are indeed heirs to one another, however far back their common ancestor may go. As for the agnates, this is once again a strictly patrilineal system of succession. The agnates are close relatives on the male side: uncles, brothers, cousins, nephews, etc.

The Romans had made extensive and often abusive use of emancipation, adoption and adrogation, which ultimately reduced the *familia* to an abstract framework for family relations. The emancipated person leaves the *familia* and is therefore no longer in the position of son or grandson. Here, the Romans made a distinction

between legitimate parent and natural parent. Although no longer a legitimate parent, the emancipated person remains a natural parent. The Romans sometimes referred to a member of the *familia* who had left it through emancipation as a cognatus. The emancipated person becomes *pater familias*, and this creates a new entity. Conversely, the adopted person, who is not a natural parent, takes the place of a son or daughter within the *familia*, and as such is a legitimate parent. The adrogated person sees their *familia* absorbed into that of the adrogator.

There is no question of inheritance passing to women, since either they come from other clans, or, if they are from the same clan, their descendants, on the other hand, do not belong to it. In this context, it is true that the right to inherit and the right to marry are mutually exclusive. In a previous work, I explained how this system underwent its first deviations²⁹⁶. The Roman praetor, in contradiction to civil law, eventually granted to cognates, relatives through the wife, the mother's sons and daughters, and the daughter's sons and daughters, not a right strictly speaking, but a right of entry into possession, and only on condition that there were neither descendants within the family nor an agnatic successor – that is to say, to the exclusion of any other relatives, more distant members of the *gens*. It is clear that at this point it becomes doubly false to infer kinship from the law of succession, as long as the family system remains exogamous. Let us emphasise once again that the

²⁹⁶ VIGUIER, *From the Clan Family to the Homosexual Parental Couple*, *op. cit.*, p. 33.

clan is a universal social phenomenon. The rules of succession and the norms of incest, which accompany the clan, were those of the barbarian tribes in the Middle Ages, and the European aristocracy remains attached to them to this day.

Endogamy and gender equality

If one wishes to maintain the transmission of property within the clan despite opening up succession to the daughter's children and the children's mother, this comes at the cost of repealing the incest prohibition. If the daughter of the father's brother may be married, succession may be transmitted—without leaving the clan—to the daughter and her children as well as to the mother or the wife. In this case of inheritance passing to and through women, provided that kinship has been previously or simultaneously relinquished as an obstacle to marriage, kinship can nevertheless still be correctly inferred from the right of succession. Historians and anthropologists may consider whether the inheritance by daughters is accepted in a society because that society was already endogamous, or whether, conversely, it is the inheritance by daughters that, in turn, transforms the society²⁹⁷. The latter version would apply to the Hebrews. The account of the daughters of Zelophehad attests that property was passed down from male to male. When a head of household had no sons, the estate passed to his uncles or brothers. Moses altered the rule, granting

²⁹⁷ TODD, *op. cit.*, pp. 216–219 (*La troisième planète*, 1983); *L'origine des systèmes familiaux*, *op. cit.*, p. 498; Béchir BILANI, in *Les principes généraux du droit*, Brussels, Bruylant, 2005, pp. 105–106.

inheritance to daughters with the proviso that they were obliged to marry only members of their own clan²⁹⁸. Thus, at the cost of incest, property did not leave the clan. Something similar occurred in Greece, where a daughter without a brother was married to a cousin—the son of her father’s brother—and her husband was adopted by her father²⁹⁹. We have seen the Romans operate in the same way, employing a three-step technique to avoid incest: 1) emancipation of the daughter, 2) adoption of the future son-in-law, 3) marriage³⁰⁰. One should study the system of inheritance that existed in the ancient East, specifically among the Egyptians and the Mazdeans, where the worst forms of incest were seen to proliferate³⁰¹. It seems that endogamy and women’s right to inherit date back a long way.

It was the rules of this Orient that were adopted by Emperor Justinian and his jurists from the Roman colony of Berytos. Justinian’s legislation contains both an openly cognatic system of inheritance and permission to marry one’s cousin, even if she is the daughter of one’s father’s brother. This is a law that is almost Islamic in nature. As for the nomadic Arabs, it is certain that before Islam their inheritance law was patrilineal and excluded women. For them, the Qur’an represented a sudden break³⁰², yet it was in

²⁹⁸ VIGUIER, *op. cit.*, p. 30.

²⁹⁹ Louis GERNET, ‘Sur l’épiclérat’, *Revue des Études Grecques* vol. 34/no. 159 (Oct–Dec. 1921), pp. 337–379.

³⁰⁰ See *above*, Chapter VIII.

³⁰¹ TODD, *The Origin of Family Systems*, *op. cit.*, pp. 530 ff., 544–548.

³⁰² TILLION, *op. cit.*, note 2, p. 109, p. 178.

continuity with the ancient Eastern laws right up to Justinian's Roman law.

CHAPTER XXI

THE WESTERN CATASTROPHE

Westerners in the 11th century were faced with the question of where kinship ends. By this they meant that whilst we are all descended from the same first parents, incest is forbidden with *close* relatives. A *distant* relative is no longer a relative, which allows marriage without incest. Kinship must absolutely have a limit, and it is this limit that they sought for the salvation of their souls. This led them to consider fame and memory. Kinship was thought to extend as far back as one could remember³⁰³. Terminology was also discussed. Kinship was deemed to cease when there was no longer a word to designate the person. ‘Kinship,’ wrote Peter Damian, ‘continues as long as the terms designating the successors endure³⁰⁴.’ Diagrams were even drawn up³⁰⁵. Only those appearing in these

³⁰³ Decree, Cause 35, Questions 2–3, canon 18, Council of Worms (quoted by Peter Damian, Letter I, para. 18); Decree, Cause 35, Question 5, canon 2, § 8, decretal of Alexander II.

³⁰⁴ PETER DAMIAN, Letter I, para. 5.

³⁰⁵ *Op. cit.*, para. 3.

diagrams would be considered relatives. And finally, attention turns to the relationship between incest and succession. Nevertheless, there are doubts as to whether this is an effective criterion. For indeed, Peter Damian notes that there are cases where the right of succession knows no bounds³⁰⁶. And it is true that in the agnatic family, passing from male to male, there is no reason to set a limit. But at no point do the canonists see, or wish to see, the clan and the crucial *distinction* between clan members and outsiders. Whatever the case may be regarding the voluntary or involuntary nature of this blindness, it explains the entire logic of the Western system of kinship, which was then decisively established.

The work of the canonists takes place at a very specific moment in the millennia-long history of Roman law. With the Gregorian Reform and the Investiture Controversy, we are at the dawn of the Medieval Revolution. There is no comparison between the knowledge of Roman law in the 11th century—when most of the texts we know today had not yet been discovered and university teaching was still in its infancy—and the state it would reach in Europe by the 13th century. And in the 11th century, there was no concept of either historical perspective or philological criticism, which would only be developed in the 16th century. No distinction was yet made between the Roman law of the Eastern Emperor Justinian, that of the late-Republican jurists, and that of the Law of the Twelve Tables. The Church therefore incorporates the numbers

³⁰⁶ *Op. cit.*, para. 10.

six and seven by decontextualising them³⁰⁷. Indeed, it is in relation to the right of succession of the cognates that a limit of six and another of seven are mentioned (for the son and daughter of the first cousin). However, the cognates are relatives through the female line; in other words, by definition and in contrast to the agnates, they are relatives excluded from the clan, and should therefore normally be excluded from the succession.

It is therefore already absurd to take as a criterion of kinship a degree that was originally established solely to set a limit on the transmission of inheritance specifically to non-relatives. Cognates are, by definition, non-relatives or, in the case of women, ineligible to inherit. In Justinian's law, it is quite possible that cognates were regarded as relatives. The fact remains that even for the first two classes of heirs (his own heirs and agnates), agnation is no longer respected at all. This is a law of succession consistent with the abolition of all limits on incest with the first cousin. When marriage law and inheritance law are understood as a whole, this constitutes a family system that can unhesitatingly be described as endogamous. The entire drama of the Western family stems from the abrupt introduction in the 11th century of this Eastern inheritance law, yet—apart from its marriage law—within a system *that thus remains* radically exogamous. It must be understood that this ill-conceived amalgamation produced a completely unprecedented system, the third of its kind in human history.

³⁰⁷ *Institutes of JUSTINIAN*, Book 3, Title 5, § 5, *in fine*.

In the first system, property is passed down only within the clan, between relatives, and wives may only come from another clan. The second system allows women to inherit, but property continues to be passed down within the clan, because wives either come from the clan or are integrated into it. The Western system is absurd in that property passes from one clan to another at the whim of the order of deaths and through alliances that constantly add more forbidden kinship ties. It is as if one were running a race against one's own shadow. With every new alliance, the scope of inheritance extends ever further beyond the clan's boundaries, and the incest taboo immediately quickens its pace to evade the right of inheritance. Whilst in the East, up until Justinian, the extension of inheritance rights to female relatives prevented them from leaving the clan whilst simultaneously closing it to the entry of foreign women, in the West the same inheritance rights granted to foreign women as to relatives tended to dissolve the family.

Economy and society

In our history, this system, like any revolutionary system, did not achieve the full effectiveness desired by the reformist clergy. We have even noted that society's resistance led to a relaxation of the requirements. From the 13th century onwards, the limit was reduced to four, and dispensations became possible. We shall not delve into the history and sociology of this period. The Reformation of the 16th century, the emergence of the State, which took over from the Church in marriage legislation, and the French Revolution itself,

which resolutely embraced the entire system of Justinian – including incest – meant that even the legislation no longer corresponded to the paradoxical system that had taken shape in the 11th century. But this moment left a lasting mark on people’s minds. It shaped the mindset of Western man as we still see it today³⁰⁸.

In the ‘savage’ world, the tribe is endogamous but not incestuous, for within it the clans, which are strangers to one another, are exogamous. Our Western criteria shatter this entire political organisation, for it appears to us as a single, vast, composite and incestuous family. In the endogamous East, the tribe also dissolves, for there is no longer any possible bond between the clans, which regard one another as strangers despite the familial and religious unity of the human race. In the West, social movements have run in opposite directions depending on the class. The main effect has been the complete dissolution of the clan and the family, driven by the rise of public, associative, communal, ecclesiastical or religious, and state life, etc. The secondary effect has been the organisation, year in, year out, of resistance by aristocratic circles that did not wish to disappear. This resistance manifested itself through a whole range of strategies involving alliances and wealth management. This was reflected in particular in company law, through the separation, on the one hand, of the small estates of

³⁰⁸ In essence, our civil law is perfectly compatible with endogamy. Incest is permitted and inheritance extends to cognates as well as to the surviving spouse (there are Muslims who even consider this to be *Sharia law*, with some arguing that NAPOLEON borrowed the Civil Code from jurists in Cairo). But the situation is different in practice, and in this area the sociology of law becomes indispensable.

individuals and married couples, and on the other, of large land, industrial or financial estates, but also through recourse to the very public life comprising municipalities and states, churches and religious institutions. The two political effects of absolute exogamy may therefore have partly moved in the same direction, but, against a backdrop of immigration by endogamous communities, they certainly also paved the way for two classes that would soon become politically antagonistic: the bourgeoisie and the proletariat.

CHAPTER XXII

THE CONFLICT OF COMPUTS

To conclude, we shall now enter into the technical details of the explanations for the most central and best-known problem of the Ravenna controversy. We shall not go much further than establishing a framework that can serve to analyse the scattered rules and opinions spanning nearly two millennia. The problem is all the more delicate because, in reality, counting the mixed variants, there are not two but five modes of computus. In the 11th century, there were three Germanic modes of computation, all opposed to one another and collectively to the Roman mode³⁰⁹. Nevertheless, there are fundamentally two ways of calculating the genealogical distance between individuals. There is a scholarly method of calculation, which derives from Roman law and is also that of civil law, and there is a popular and Germanic method, which the Church chose for

³⁰⁹ We have seen that, among collateral relatives of the same generation, the numbers differed between the four competing methods of calculation (*see* p. XXX and *fig. 4 ibid.*).

canon law. To distinguish them clearly, we shall review all the mental operations necessary for calculating degrees of kinship.

1° – First, one must know what is the subject of the calculation, that is to say, what is to be counted. In the Roman method of calculation, each individual is considered as a person. The term ‘person’ must be understood in the sense of a mask or a role played within the kinship relationship. For example, father, grandfather, brother, uncle and cousin are persons. The individual is regarded as occupying a place within a relationship between persons. The father, for example, will be of the first degree. Next, the persons are arranged one after the other in the order of descent, in a direct line between ascendant and descendant, or in a broken or collateral line between two descendants of a common ancestor³¹⁰.

The Germanic method of calculation serves the same purpose, but it considers individuals less as persons and more by reference to the whole ‘generation’ to which they belong (in the sense that generations follow one another in time). Whether direct or collateral, kinship is organised in relation to the ancestor who heads the line. In the direct line, it is clear that parent and child belong to distinct generations, since it is precisely their relationship that forms the basis of the succession of generations. Collateral relatives are grouped by generational cohorts. Thus, brothers, cousins, first cousins, second cousins, and so on all belong to the same generation.

³¹⁰ We have discussed the calculation of the alliance in Chapter IV *above*.

Note that an uncle and a nephew, who are collateral relatives, belong to different generations.

2° – First, let us clarify exactly what unit of measurement is used; to give an analogy, this would correspond, in the calculation of degrees of kinship, to the hour, day, month or year in the calculation of time, and to the metre, foot or acre in that of space. Here is the question: do we count the people, or the spaces between them? There is much confusion on this point. Whilst in the Germanic system no one disputes that it is not the spaces separating the generations that are taken into account, but rather the generations themselves, it is said that in the Roman system one would count as a degree not the person but the space immediately separating two people³¹¹. The degree would, in a sense, be the empty space that must be crossed, as between the beads of a necklace, or, to borrow this image from the jurist Paul, like the vertical space of a staircase, the gap between two steps, each step representing a person³¹². The French Civil Code states that ‘each generation is called a degree’ (Article 741 in April 2020, Article 735 in 1804) and that in the direct line ‘there are as many degrees as there are generations *between* the persons’ (Article 743, paragraph 1 in April 2020, Article 737 in 1804,

³¹¹ GOODY, *The Evolution of the Family and Marriage in Europe*, *op. cit.*, p. 202 (comparison of Germanic and Roman methods).

³¹² See LEGENDRE, *Le dossier occidental de la parenté*, *op. cit.*, p. 39 on PAUL’S *Treatise* and pp. 103–107 on THOMAS’S note. The same Yan Thomas once drew, in his seminar, an analogy between the word *gradus* and the conception of time as a succession of grains. The notion of *gradus* should be reconsidered in terms of the ‘step’, which refers to the augural art of land surveying (see note 304 *below*). There is undoubtedly a coherence between the measurement of space and the measurement of time, of which the pontiffs were the guardians. I mention this as a topic for further research (particularly drawing on DUMÉZIL). See note 305 *below*.

our emphasis). The BGB referred to ‘the number of intermediate births’ (BGB § 1589, paragraph 1). Some civil law scholars addressing the issue³¹³ therefore teach at times that generation is synonymous with degree and that this should be understood as what separates the parents (Voirin)³¹⁴ , and at other times that “the degree denotes the interval separating two generations” (Flour)³¹⁵ ; but, whether generations are understood as the bodies of the lineage or as the spaces between the bodies, in any case it is considered that it is the interval that must be counted.

Conversely, one would have to consider that it is the person who is the unit of measurement representing a generation or a degree. This is what Girard seems to suggest, as he too takes up the image of the staircase when he says that each step is occupied by a generation³¹⁶ . The Civil Code appears to adopt this perspective with regard to collateral lines. Immediately after stating, as we have noted, that in the direct line ‘the number of degrees is equal to the number of generations *between* the persons’, he continues with these

³¹³ Unless we are mistaken, there is not a word on the subject in Marcel PLANIOL, *Traité élémentaire de droit civil*, vol. III, 3rded., Paris, LGDJ, 1905, in PLANIOL and Georges RIPERT, *Traité pratique de droit civil français*, vol. IV *Successions*, by Jacques MAURY and Henri VIALLETON, Paris, LGDJ, 1928, or in Alain SÉRIAUX, *Les successions. Les libéralités*, Paris, PUF, 1986, pp. 28–29.

³¹⁴ Pierre VOIRIN, *Civil Law. Notarial Private Law*, 10thed., Paris, LGDJ, 1967, p. 13: ‘the closeness of kinship is established by counting as many degrees as there are generations between the two relatives’; Michel DE JUGLART, *Civil Law. Notarial Private Law*, 2nded., Paris, Montchrestien, 1968, p. 215.

³¹⁵ This is certainly the case with François TERRÉ and Yves LEQUETTE, *Civil Law. Inheritance. Gifts*, 3rded., Paris, Dalloz, 1997, p. 63, who speak of ‘generations separating the *deceased* from the parent in question’, and with Gabriel MARTY and Pierre RAYNAUD, *Civil Law. Inheritance and Gifts*, Paris, Sirey, 1983, p. 35, and thus explicitly by Jacques FLOUR and Henri SOULEAU, *Inheritance*, Paris, Colin, 1991, p. 31.

³¹⁶ GIRARD, *op. cit.*, p. 159.

words regarding the collateral line: “degrees are counted by generation, from one of the parents up to and not including the common ancestor, and from the latter to the other parent” (Article 743(2) as of April 2020, Article 738¹ in 1804). Perhaps this is one of those compromises typical of this Code, a reconciliation of civil law and canon law?

But I confess I wonder whether it would not be more accurate to say that even in Roman computation it is indeed the persons who are considered as degrees or generations. The argument for counting the spaces seems to me to be a matter of convenience. For between a father and his son, there is one degree. Two persons, one degree. It is tempting to assume that it is the space that is counted when one supposes that counting the persons would yield the number two. However, this assumption may be called into question. One might also consider that the first unit in question in a scholarly calculation is simply never taken into account. This is the traditional principle in the calculation of time limits for the *dies a quo: dies termini non computatur in termino*³¹⁷. The same would apply to the calculation of kinship. If there is a degree between two people, it would not be because one counts the space between the

³¹⁷ Roger PERROT, *Private Judicial Law*, Lectures on Law (1980–1981), Paris, R. Perrot, 1980, Volume I, p. 155; for a much more detailed account, see BERRIAT-SAINT-PRIX, *Lectures on Civil Procedure*, 3rd edition, Paris, Nève, 1813, Volume I, pp. 136–140. In ancient Roman land surveying, a distinction was made between the boundary (the line separating plots of land) and the centuria (the plot of land between two boundaries): there was disagreement as to whether or not the initial boundary was included in the calculation; see HYGINUS THE GROMATIST, 1.16 and 3.1–6 (in *Les arpenteurs romains. Volume I*, Paris, Les Belles Lettres, 2005, pp. 81, 86–88), HYGINUS (not to be confused with the previous author), 1.8 (in *Les arpenteurs romains. Volume II*, Paris, Les Belles Lettres, 2010, pp. 2–3).

two steps, but because the starting step is not counted³¹⁸. Be that as it may, the calculation unfolds with every step taken, the foot resting, person after person.

3° – The two endpoints of the calculation are the two persons whose relationship is in question: father and son, grandfather and grandson, uncle and nephews, brothers or cousins. To begin the calculation, one must distinguish the *terminus a quo* from the *terminus ad quem*. In Roman law, this is what the jurist Paulus explained as early as § 9 of his Treatise on Computation³¹⁹, and which Yan Thomas translated as follows: ‘whenever one wishes to know the degree of kinship of a person, one must adopt the perspective of the person in relation to whom one is seeking this kinship³²⁰’. It should be noted that by ‘person’ we mean the role played in the relationship. Thus, the father is a father in relation to his son. Therefore, to determine the degree of kinship of a father, one must start from the son and move towards the father. In this example, the son is the *terminus a quo*, the point from which one starts, whilst the father is the *terminus ad quem*, the point at which one arrives.

³¹⁸ For this aspect of the study, I have not consulted all the textbooks and treatises on inheritance law, but this explanation is found at least in DE JUGLART, *Succession Libéralités*, Volume 4^{2nd} – 2nd volume of the *Leçons de droit civil* by Henri, Léon and Jean MAZEAUX,^{2nd} ed., Paris, Montchrestien, 1971, p. 66: ‘the deceased is not counted, and each of the intermediate parents is counted, as well as the person who is the subject of the calculation’. To go further, one would need to consider the rules of versification in general, metre and prosody, poetry and music, and even grammar (the distinction between the *imperfect* and the *perfect*).

³¹⁹ *Nam quotiens quaeritur, quanto gradu quaeque persona sit, ab eo incipiendum est cuius de cognatione quaerimus.*

³²⁰ THOMAS, in *Le dossier occidental de la parenté*, op. cit., p. 39.

The perspective here differs from that of Germanic computation, which always takes the head of the lineage into consideration first, whether as the terminus in the direct line or as the intermediate term between relatives in the collateral line.

4° – Having clarified all this, questions arise regarding the counting itself which are decidedly common to all systems of calculation in general. We must determine the relationship between the sequence of numbers and the sequence of persons; specifically, on the one hand—as we have begun to see—between the starting point and the *terminus a quo*, and on the other between the point of arrival and the *terminus ad quem*³²¹.

As we have already stated, in the Roman system the *terminus a quo* is not counted. Father and son are therefore related to one another by one Roman degree, grandfather and grandson by two Roman degrees, and so on. In the collateral line, a brother and sister are related to each other by two Roman degrees, for from either child one must count one degree to ascend to the common ascendant, and a second to descend to the other child. First cousins are

³²¹ It should be noted that, regardless of the method of calculation, questions were also raised, in the context of the incest taboo, regarding the status of the collateral relative bearing the number indicated by the rule—whether they were the first permitted or the last prohibited. In other words, to remain within the analogy with the calculation of time, the question was to determine the status of the *terminus ad quem*. It is known that for a time limit, the *dies ad quem*, the last day reached, is in principle the very last day within the limit, but that it is only the penultimate day within the limit when the time limit is described as ‘grace’. It was by starting from the first idea and arriving at the result of the second that the French legislature believed it could clarify this issue by stating that the ‘last day is not counted’, so that the final day is carried over to the following day, the last working day (Decree of 26 November 1965, but the new Code of Civil Procedure, Article 642 has reversed this rule).

therefore four Roman degrees apart, second cousins six degrees apart, and third cousins eight degrees apart.

As for the Germanic system, two questions arose regarding the end point of the calculation. The first was specific to this system and concerned collateral relatives. Since we count by generation in relation to the common ancestor, which generation should be chosen when they do not belong to the same generation? From the third degree onwards, when determining the computus, one might hesitate between the closest and the most distant from the common ancestor, between the uncle, of the first generation, and the nephew, of the second generation. On the advice of Peter Damian, the Church made the most rigorous choice³²².

The second question concerned the starting point of the comput, a question that is decidedly common to all computs in general. There are three variants, all of which were in contention in the 11th century.

In the simplest method, all generations are counted, including the *starting point*, which is the progenitor, and the common progenitor for collateral relatives. The generation of the head of the line is the first; his child is therefore in the second, and his grandchild in the third. In the collateral line, brothers and sisters are in the second generation after the common father, first cousins in the third after their common grandfather, second cousins in the fourth, and third cousins in the fifth. This is a method of calculation

³²² PIERRE DAMIEN, Letter I, para. 19.

that Peter Damian had not mentioned in his initial Letter on the degrees of kinship, but to which he would devote his second Letter to amend the first³²³, basing himself on the biblical calculation of the Adamic lineage. When Saint Gregory shows tolerance towards marriages at the fourth or fifth degrees, but absolutely forbids marriage at the second degree, it seems to us that his prescription might correspond to this first variant of the Germanic method of calculation, which is the least rigorous of the three³²⁴.

The second method is the one the Church would eventually adopt towards the end of the 11th century³²⁵. The ascendant is not taken into account here. In this calculation, as Peter Damian wrote, there is always the generation ‘plus one’, that of this original ascendant. The child is therefore in the first generation, and the grandchild in the second, which in the direct line gives the same numbers as the Roman computus. On the other hand, since in the canonical computus collateral relatives form as many generations, until 1983 there was a discrepancy with the civil computus.

Finally, the third and last method, the only one that is authentically Germanic, begins the count only with the grandchild. For in this system, parent and child are regarded as together forming a single trunk, the trunk of a tree, or, in an anthropomorphic view, the head and trunk of a body. The count begins only with the

³²³ LEGENDRE, *op. cit.*, pp. 166–175.

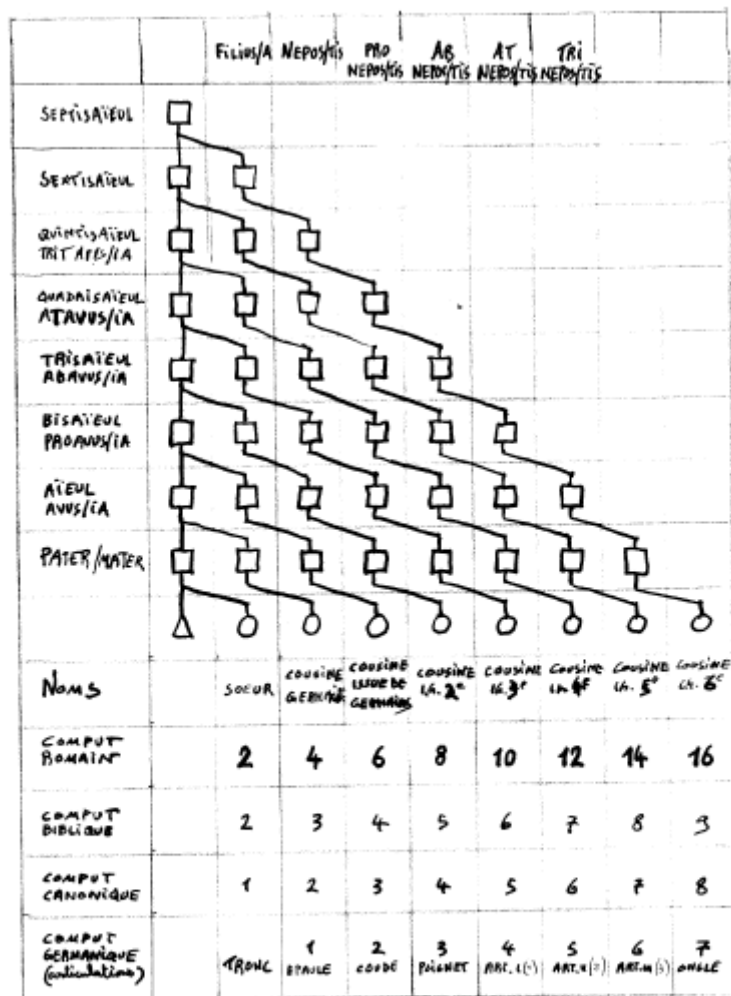
³²⁴ See *above*, Chapter XV.

³²⁵ Decretal of Alexander II in 1076, published in the Decretum Gratiani, case 35, question 5, canon 2.

branches or limbs. The child is therefore still in generation zero, and it is the grandchild who is in generation one. Thus, first cousins are in the first generation, second cousins in the second, and third cousins in the third.

At the beginning of this text, we provided an initial table showing the discrepancy between the four methods of direct line computation (Figure 4). In what will be the final table of our study, we compare the figures obtained from the four methods of computation then in use in the 11th century, concerning collateral relatives within

the same generational bracket (Figure 75).



(1) Metacyn. phalangien; (2) Interphalangien; (3) Interphalangien distal.

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After much hesitation, the canonists opted for the intermediate Germanic solution. It is this that we have referred to in our text as the canonical degree. Between the Germanic and Roman methods of calculation, convergence of results had therefore already existed in the direct line since the 11th century. The divergence remained for the collateral lines. I do not know whether it has already been noted that the 1804 Code is, in reality, on this point as

on others, a work of compromise. As regards collateral lines, it takes a step towards canon law, as we have said. Indeed, it adopts the Germanic approach by counting from the head of the line. Nevertheless, it adds the two branches together, without counting that head. An intellectual sleight of hand that leads to the same solution as the Romans. But in 1983 the Catholic Church aligned itself with the French Civil Code on this point. Not, therefore, that it had abandoned the Germanic method of calculation. It still starts from the progenitor to count the generations, in the collateral line as in the direct line, but in the collateral line it now adds the two branches together (Canon 108, §3). Just as, I must emphasise, the Civil Code had done since 1804. Thus, as far as the results are concerned, the convergence between civil law and canon law is now complete. The issue is now purely theoretical. The Ravenna Controversy has become a purely academic matter.

EPILOGUE

A thousand years after Peter Damian, incest is still on the agenda, and the controversy is not over. But compared to the 11th century, the dispute obviously no longer takes the same form. The protagonists, for a start, have changed considerably. Their beliefs are no longer the same. Who, today, would still be moved by Peter Damian's central argument, namely that incest is a Jewish practice, and that if it spreads it is a sign of the end of time, because at that final moment the Antichrist will drive men to adopt Judaism? Moreover, legal scholars have withdrawn from the controversy³²⁶. Nowadays, whilst they may not have lost interest entirely, they keep their distance, leaving it to the many new disciplines that have emerged since then. For knowledge has certainly evolved considerably. In the 11th century, the Church began to withdraw from the liberal arts, now regarded as profane, thus ushering in the history of science. A major phenomenon: over nearly a millennium of experiments and discoveries, libraries have become enormous, filling up with shelf after shelf of compartments. History, archaeology, anthropology, genetics, linguistics, psychology, sociology, economics, etc.: with its continual growth, knowledge has branched out into specialisms. And the focus of the debate, subsequently, has also changed completely. The major discovery for our subject is that incest is not purely a question of sexuality and that it is not even, contrary to what has been believed since antiquity—and what a certain ideology of racial mixing would still have us

³²⁶ BATTEUR, 'L'Interdit de l'inceste', *op. cit.*, no. 2, p. 760.

believe—a problem of genetic biology. Rather, the fabric of human societies is made up of structured family systems, and these structures are capable of evolving. In this respect, incest is a borderline case that serves as a useful criterion. A new field of knowledge has thus opened up, one that we must now explore.

Unfortunately, faced with the sheer volume of research output, every researcher runs the risk of confining themselves to their own field, where they scrupulously and jealously cultivate the definitions of their method and subject matter. They end up cutting themselves off from the world. And even if they still find the time to venture into neighbouring disciplines—another pitfall—they will not truly have access to them, lacking the keys that open their doors. This is how the mass of knowledge becomes an insubstantial and unworkable mass, and ultimately an obstacle to understanding. The industrialisation of science comes at the price of a complete loss of bearings. Research is experiencing a phenomenon that could be described as a speculative bubble, very much akin to what is observed in the financial sphere. I therefore believe that, compared to the 11th century, we have above all lost depth and precision of analysis.

Some therefore call upon the contribution of legal scholars. This is because the science of law has retained its reputation for rigour and a certain aura of rationality. The anthropologist Alain Testart views law, in its relationship to the

social sciences, as mathematics relates to the physical sciences³²⁷ . And it is true that Morgan, the founder of anthropology, was a lawyer, and that Bachofen was a magistrate. But help could only come from a scientific law, that is to say, one that is empirical and critical, which it unfortunately is no longer. For the science of law obviously does not escape the phenomena affecting all fields of knowledge. Moreover, being more openly linked to political power, this discipline suffers from the seemingly disorderly and accelerated proliferation of legislation and case law. Thus – so as not to lose sight of our subject – a legal scholar constrained by the compartmentalisation of the subject matter is no longer able to see that the law of marriage and the law of parentage can, together with the law of succession, form a system dominated by the prohibition of incest. Yet it should be obvious that the rules of devolution, which form one aspect of inheritance law—and which determine, for example, whether the deceased's assets go, and in what proportion, to his uncle, son or daughter—will tell us nothing about the transmission of family heritage as long as we remain ignorant of their background, that is to say, the rules of kinship, marriage and filiation—and thus also of incest—which do tell us who this uncle, son or daughter is. If, as I believe, legal research consists, in the words of

³²⁷ On the legal approach, Alain TESTART, *L'institution de l'esclavage*, Paris, Gallimard, 2018, text pp. 13–14 and note on p. 13; SCHMITT, 'La situation de la science européenne du droit', *Droits* 14 (1991), paragraphs 38 and 47; this is the revised text of a lecture delivered, notably, on 16 May 1944 in Coimbra, but in French, which can be found in the *Boletim da faculdade de direito de universidade de Coimbra* XX (1944), 603–621 – paragraph 19 already stated: 'We (we jurists) perform (...) a task from which no other form or method of the human mind can relieve us. We safeguard the foundation of a rational human existence, which cannot do without the principles of law'.

Michel Miaille, in moving beyond the isolated analysis of different institutions to reveal the relationships and structures that organise a single legal system, then it is fair to say that it has become impossible for the legal scholar lost in the intricacies of their specialism to take in this fundamental core³²⁸. In reality, this discipline is completely overwhelmed. There is a crisis in the law³²⁹.

I put forward a diagnosis and propose a remedy. I believe that lawyers have lost sight of the fact that their foundation lay in practical, concrete experience: the experience of the trial – understood in the broadest sense, as both a legal exercise and a judicial procedure. Indeed, the sole purpose of law is the rational resolution of conflicts. Defining the case, posing the question, hearing the arguments for and *against*, finally stating the solution, then analysing and commenting on it, comparing it with precedents: the whole science of law is casuistry, and it is in this way, if it remains true to its vocation, that it will be of value to all other sciences. The case is the anecdote, real or fictional, from which arises the enigma whose resolution presupposes that the mind has grasped a concept, or at least requires the construction of a justification³³⁰. A single case can clarify an entire subject and provide the bridge we were seeking with other disciplines. The experience of the case is the heart of this

³²⁸ Michel MIAILLE, *Une introduction critique au droit*, Paris, Maspero, 1976, p. 362. And regarding kinship, to which Miaille was referring, see THOMAS, in *Le dossier occidental de la parenté*, *op. cit.*, p. 30.

³²⁹ At the end of my first year of law school, in the summer of 1986, I came across the two volumes of MICHEL VILLEY'S **Philosophie du droit**, published by Dalloz (Volume I, 4th edition, 1986; Volume II, 2nd edition, 1984).

³³⁰ HOCINE, *op. cit.*

science³³¹ , which thrives solely on the fire of controversy³³² . Entrenched on this impregnable ground, I believe lawyers are capable not only of rallying social science specialists, but also of engaging those in the hard sciences, and even artists. We must therefore move beyond a superficial view of law. We must return to casuistry.

In this regard, I would like to emphasise once again the importance of the lectures and talks I have given in recent years through the association Égalité et Réconciliation. Using a method I owe first to the teachings of Jean-Claude Montanier and subsequently to the late Yan Thomas, I have been able to address numerous cases and questions that form the fabric of this book. On several occasions I have revisited the same texts: Roman law, Sophocles' *Oedipus Rex*, Chapter XVI of Book XX of St Augustine's *City of God*, and finally, as my course for 2018–2019 became a course in canon law, Case 35 of the *Decretum Gratiani*, and the Letters of Peter Damian.

³³¹ Christopher LANGDELL, *Law of Contracts*, Boston, Little Brown, 1871, p. v; VILLEY, *op. cit.*, vol. II, 'the Roman example' no. 209, pp. 158–159 (reference to THOMAS, thesis 1976); Alvaro D'ORS, 'Principles for a Realist Theory of Law', *Revue de la recherche juridique. Droit prospectif* 1981/3, no. 103, p. 387. Cf. Mao ZEDONG, 'Where Do Correct Ideas Come From?', in *Selected Works of Mao Zedong*, Beijing, 1972, p. 544.

³³² See KANTOROWICZ, *The King's Two Bodies*, *op. cit.*, p. 283.

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